WEST LAFAYETTE
HOME of PURDUE

CITY COUNCIL
Monday, February 5, 2024 at 6:30 PM

Meeting Agenda

Common Council is held at Margerum City Hall, 222 North Chauncey Avenue, West Lafayette, IN 47906. Comments can be submitted to the Clerk's office by emailing clerk@westlafayette.in.gov.

Electronic Options:

- Live stream without participation via the Meetings & Agendas section of our website.
- Stream via Microsoft Teams or phone: +1-574-367-5293, Code: 869 451 584

1. CALL TO ORDER

2. NEW FLAG PRESENTATION CEREMONY
   Presented by the West Lafayette Fire Department's Honor Guard

3. PLEDGE OF ALLEGIANCE

4. ROLL CALL: Bellisario, Blanco, Burr, Dennis, Lee, Leverenz, Parker, Sanders, Veidemanis

5. PRE-COUNCIL ACTION ITEMS:
   a. Ordinance No. 27-2024 [To Amend Certain Portions Of The Unified Zoning Ordinance Of Tippecanoe County, Indiana, Designating The Time When The Same Shall Take Effect. (D. A. Man, LLC) (R1B to R4W)] was withdrawn by the petitioner. [*Documents can be found on the Pre-Council Agenda.*]

6. MINUTES:

   a. Approval of Minutes: January 4, 2024 Pre-Council Meeting and January 8, 2024 Council Meeting
      Documents:
      - January 4, 2024 Pre-Council Minutes
      - January 8, 2024 Council Minutes

7. REPORTS OF CITY DEPARTMENTS ON FILE IN THE CLERK'S OFFICE

   a. Parks and Recreation Report - January 2024
      Documents:

- Parks and Recreation Report - January 2024

b. WWTU Report-December 2023

Documents:

- WWTU Report

c. Fire Report - January 2024

Documents:

- Fire Report

d. Street Dept. Report

Documents:

- Street January 2024

e. Police Report - January 2024

Documents:

- Police 2024 January

f. Building Report

Documents:

- Building

g. Rental Housing Report

Documents:

- Rental Housing

h. Engineering Report - January 2024

Documents:

- Engineering Report - January 2024

8. REPORT OF APC REPRESENTATIVES: Leverenz, Parker

9. PUBLIC RELATIONS:

a. Council Appointments:

i. Redevelopment Commission - Arnold Chen
ii. Traffic Commission - Elizabeth Strickland
iii. Go Greener Commission - Iris O'Donnell Bellisario

Documents:

- Chen Application
- Strickland Application

10. FINANCIAL REPORT: City Controller

a. Finance Report

Documents:

- Finance

11. LEGAL REPORT: Corporation Counsel

12. JOINT BOARD REPORT: Burr

13. SPECIAL REPORTS:

14. UNFINISHED BUSINESS:

    a. Ordinance No. 01-2024 Historic Preservation Commission: Additional Historic District (Submitted by the Historic Preservation Commission and the Department of Development) [No. of Readings 2 of 2]

    Documents:

    - Ordinance No. 01-2024

    b. Ordinance No. 02-2024 (Amended) An Ordinance Amending The West Lafayette Traffic Commission (Sec. 38-98) To Modify The Membership Qualifications For Citizen Representatives (Sponsored by Mayor Dennis) [No. of Readings 2 of 2]

    Documents:

    - Ordinance No. 02-2024 (Amended)
    - Ordinance No. 02-2024

15. NEW BUSINESS:

    a. Ordinance No. 03-2024 An Ordinance Transferring Certain Land And Accepting Certain Land In The City Of West Lafayette, Indiana And Vacating Portions Of Howard Avenue And Brown Street (Landmark Levee PD) (Sponsored by Mayor Easter) [No. of Readings 1 of 2]

    Documents:

    - Ordinance No. 03-2024 [Proposed Amendment]
    - Petition Vacate [Proposed Amendment]
    - Ordinance No. 03-2024
    - Petition to Vacate
    - Consents to Petition
    - Draft Quit Claim Deeds

    b. Ordinance No. 04-2024 An Ordinance To Annex Certain Lands Into The City Of West Lafayette, Indiana (Purdue Research Foundation) (Submitted by Marianne Mitten Owen of Stuart & Branigin LLP) [No. of Readings 1 of 2]

    Documents:

    - Ordinance No. 04-2024
    - Petition
    - Map

c. Ordinance No. 05-2024 An Ordinance To Establish The Cumulative Capital Development Fund And Readopt West Lafayette City Code Provisions Concerning The Fund (Submitted by the Controller) [No. of Readings 1 of 2]

Documents:

- Ordinance No. 05-2024

d. Resolution No. 02-2024 Resolution To Protect Our Wetlands In The City Of West Lafayette And State Of Indiana (Sponsored by Bellisario and Parker) [No. of Readings 1 of 1]

Documents:

- Resolution No. 02-2024

e. Resolution No. 03-2024 A Resolution Reappropriating The Necessary Funds Resulting From The 2019 Community Development Application Of The City Of West Lafayette Under Title I Of The Housing And Community Development Act Of 1974, As Amended (Submitted by Department of Development) [No. of Readings 1 of 1]

Documents:

- Resolution No. 03-2024 [Proposed Amendment]
- Resolution No. 03-2024

16. REPORT BY THE MAYOR

17. COMMUNICATIONS

18. PUBLIC COMMENTS

We welcome public comment and encourage active participation at this meeting.

There will be an opportunity for public comment on each Ordinance or Resolution currently before the Council, and again at the end of the meeting for general issues or concerns. These comments should be limited to three (3) minutes in length and should be courteous and respectful of all. If you need additional time, please consider sending your questions, comments, or concerns to the City Clerk at: clerk@westlafayette.in.gov.

If you wish to speak, we request that you sign in on the designated sheet at the podium.

Your contribution to this meeting aids the efforts of the Council in addressing issues that are important to the citizens of West Lafayette.

19. ADJOURNMENT

Next Regular Council Meeting: March 4, 2024

Note: Pre-Council meets on an as-needed basis and will be announced on public meeting notices from the Clerk's Office.

CITY OF WEST LAFAYETTE
COMMON COUNCIL
PRE-COUNCIL MINUTES
January 4, 2024

The Common Council of the City of West Lafayette, Indiana, met in Council Chambers at Margerum City Hall on January 4, 2024, at the hour of 4:30 p.m.

CALL TO ORDER
Corporation Counsel Eric Burns called the meeting to order and indicated that the Council will need to elect a President. There are also a couple of preliminary matters, including swearing in Councilors who have not yet taken their Oath of Office.

OATHS OF OFFICE
Mayor Erin Easter administered the Oath of Office to Councilor Laila Veidemanis, who was both seen and heard via Microsoft Teams. Mayor Easter then administered the Oath of Office to Councilor James Blanco.

ROLL CALL
Clerk Sana Booker called the roll to determine members present or absent.

Members Present: Iris O'Donnell Bellisario, James Blanco, Stacey Baitinger Burr, Michelle Dennis, Colin Lee, Larry Leverenz, and Kathy Parker.

Members Present Electronically via Microsoft Teams: David Sanders and Laila Veidemanis.

Absent: None

Also present: Mayor Erin Easter, Corporation Counsel Eric Burns, Clerk Sana Booker, Public Works Director Ben Anderson, City Controller Peter Gray, Police Chief Troy Harris, WWTU Director David Henderson, Parks Superintendent Kathy Lozano, Fire Chief Jeff Need, Building Commissioner Chad Spitznagle, and Deputy Director of Development Jen Van Schuyver.

COUNCIL ELECTIONS
Council President Nomination and Election
Counsel Burns requested a motion or motions to nominate a President for the Council.

Councilor Parker motioned to nominate and approve Larry Leverenz as Council President. Councilor Leverenz abstained from voting, and the motion passed by an otherwise unanimous roll call vote with no further nominations.

Counsel Burns turned the meeting over to President Leverenz.

Council Vice-President Nomination and Election
President Leverenz requested nominations for Council Vice-President.

Councilor Bellisario motioned to nominate and approve Kathy Parker as Council Vice-President. Councilor Parker abstained from voting, and the motion passed by an otherwise unanimous roll call vote with no further nominations.

UNFINISHED BUSINESS:

Ordinance No. 27-2023 To Amend Certain Portions Of The Unified Zoning Ordinance Of Tippecanoe County, Indiana, Designating The Time When The Same Shall Take Effect. (D. A. Man, LLC) (R1B to R4W) (Submitted by Area Plan Commission) [No. of Readings 1 of 1] *This item is continued from the November 30, 2023, Pre-Council meeting.*

President Leverenz read Ordinance No. 27-2023 by title only.

Ryan Munden (Reiling Teder & Schrier, LLC), representing the petitioner, stated that this rezone had a negative recommendation from the Area Plan Commission. Therefore, his client is still trying to determine if there are viable alternatives for this project, and they are requesting another continuance to the February meeting. He noted that their due-diligence period expires at the end of February, so this will be the last continuance.

Councilor Blanco motioned to continue Ordinance No. 27-2023 to the February meeting. Councilor Parker seconded the motion, and the motion passed by unanimous roll call vote.

There was no further discussion.

Ordinance No. 28-2023 An Ordinance Providing For Temporary Loans (2024) (Prepared by Controller) [No. of Readings 2 of 2]

President Leverenz read Ordinance No. 28-2023 by title only.

There was no discussion.

Ordinance No. 29-2023 An Ordinance To Approve Blanket Bond Coverage For 2024 (Prepared by Clerk Booker) [No. of Readings 2 of 2]

President Leverenz read Ordinance No. 29-2023 by title only.

Clerk Booker explained that this blanket bond coverage is approved every year. It is in the amount of $750,000.00. The bond is set in place to protect the City and those who handle money for the City.

Councilor Blanco moved for passage of Ordinance No. 29-2023 on second reading, and that the vote be by roll call. The motion was seconded by Councilor Parker.

There was no further discussion.

Clerk Booker called the roll call vote:

Councilperson	**Vote**
Bellisario	Aye
Blanco	Aye
Burr	Aye
Dennis	Aye
Lee	Aye
Leverenz	Aye
Parker	Aye
Sanders	Aye
Veidemanis	Aye

Clerk Booker stated that the vote was 9 AYES and 0 NAYS.

President Leverenz announced that Ordinance No. 29-2023 passed on second and final reading.

NEW BUSINESS:
Ordinance No. 01-2024 Historic Preservation Commission: Additional Historic District (Submitted by the Historic Preservation Commission and the Department of Development) [No. of Readings 1 of 2]

President Leverenz read Ordinance No. 01-2024 by title only.

Deputy Director of Development Van Schuyver explained that this Ordinance is a voluntary request for the historic designation of two West Lafayette cemeteries. The request was made by the Wabash Township Trustee, Angel Valentín, who will be here for the Council meeting.

There was no further discussion.

Ordinance No. 02-2024 An Ordinance Amending The West Lafayette Traffic Commission (Sec. 38-98) To Modify The Membership Qualifications For Citizen Representatives (Sponsored by Mayor John Dennis) [No. of Readings 1 of 2]

President Leverenz read Ordinance No. 02-2024 by title only.

There was no discussion.

Resolution No. 01-2024 A Resolution To Amend The Comprehensive Plan For Tippecanoe County To Include An Update Of The Multi-Hazard Mitigation Plan (Submitted by Area Plan Commission) [No. of Readings 1 of 1]

President Leverenz read Resolution No. 01-2024 by title only.

There was no discussion.

ADJOURNMENT
There being no further business at this time, Councilor Parker moved for adjournment. President Leverenz adjourned the meeting, the time being 4:49 p.m.

CITY OF WEST LAFAYETTE
COMMON COUNCIL
MINUTES
January 8, 2024

The Common Council of the City of West Lafayette, Indiana, met in Council Chambers at Margerum City Hall on January 8, 2024, at the hour of 6:30 p.m.

Vice-President Parker called the meeting to order and presided. The Pledge of Allegiance was recited.

Members Present: Iris O'Donnell Bellisario, James Blanco, Michelle Dennis, Colin Lee, Kathy Parker, and Laila Veidemanis.

Members Present Electronically via Microsoft Teams: Stacey Baitinger Burr, Larry Leverenz, and David Sanders.

Absent: None

Also present: Mayor Erin Easter, Corporation Counsel Eric Burns, Clerk Sana Booker, Public Works Director Ben Anderson, Director of Technology Chris Benavidez, Human Resources Director Rebecca Shane, City Controller Peter Gray, Police Chief Troy Harris, WWTU Director David Henderson, Parks Superintendent Kathy Lozano, Fire Chief Jeff Need, Building Commissioner Chad Spitznagle, and Deputy Director of Development Jen Van Schuyver.

PRE-COUNCIL ACTION ITEMS:

a. Mayor Erin Easter administered the Oaths of Office to Council members.

b. Councilor Larry Leverenz was elected as Council President, and Councilor Kathy Parker was elected as Council Vice-President.

c. Ordinance No. 27-2023 was continued to the February 2024 meeting. *Note: Public Comment correspondence received by the Clerk's Office will be attached to this item on the February agenda.*

d. Ordinance No. 29-2023 (An Ordinance To Approve Blanket Bond Coverage For 2024) was approved on second and final reading.

MINUTES

Councilor Blanco moved for acceptance of the minutes of the November 30, 2023, Pre-Council Meeting, and the December 4, 2023, Common Council Meeting. Councilor Bellisario seconded the motion, and the motion passed by unanimous voice vote.

REPORTS OF CITY DEPARTMENTS ON FILE IN THE CLERK'S OFFICE

There were no comments.

REPORT OF THE APC REPRESENTATIVES

Councilor Leverenz stated that the January Board of Zoning Appeals (BZA) has two West Lafayette transient guest house petitions for the January meeting which were continued from the last meeting.

PUBLIC RELATIONS:

Appointments to Boards, Commissions, and Committees

Vice-President Parker noted that a list of appointments to boards, commissions, and committees for the Council to consider is linked on the agenda.

Mayor Easter stated that with many of the appointments, whether Councilor or Mayoral, the terms will extend until there is a chance to do the appointments. However, there are two positions on the Redevelopment Commission (RDC) that need approval before the RDC can act on budget matters at their January meeting.

Councilor Blanco asked if the Council can approve all the appointments if there are no issues with them. Counsel Burns responded that the Council may do so since the information is in writing.

Councilor Blanco moved to approve the appointments to the Boards and Commissions as provided in the document attached to the agenda. The motion was seconded by Councilor Bellisario.

Councilor Bellisario asked about the notation on the document that Peter Bunder would be changed from a Council to a Mayoral appointment for the Historic Preservation Commission (HPC). Mayor Easter responded that she does not yet have a replacement Mayoral appointment and suggested that the Council may move forward with Mr. Bunder continuing as a Council appointment, and it can be adjusted later. It will allow Mr. Bunder to still serve at the next HPC meeting.

Councilor Dennis reminded the Councilors that she is listed as an appointment to the Area Plan Commission (APC) along with Councilors Leverenz and Parker. There can only be two Council representatives on the APC. She confirmed that she will step down from APC, and Councilors Leverenz and Parker can remain on APC.

Counsel Burns stated that the motion can remain with the deletion of Michelle Dennis as a Mayoral Appointment to the APC.

The motion passed by unanimous roll call vote.

2024 Council Schedule

Vice-President Parker explained that the Council needs to approve a schedule for 2024. There are two documents on the agenda. One is a traditional schedule where the Council meets every month for Pre-Council on the Thursday before Council. The other option, which the Council has been doing for a while, is that the Council just meets for Pre-Council as the President of the Council and the Mayor determine is necessary.

After Councilors Parker, Blanco, and Leverenz voiced a preference for the schedule with the optional Pre-Council meetings, Councilor Blanco moved to approve the 2024 Council Schedule with Pre-Council meeting on an as-needed basis. The motion was seconded by Councilor Bellisario, and the motion passed by unanimous voice vote.

FINANCIAL REPORT

Controller Gray reported that for the end of 2023, the City came in under budget, at approximately 80%. Much of that in the General Fund was due to personnel vacancies and some planning funds that have not been spent yet.

LEGAL REPORT
For the new Council members, Counsel Burns explained what the legal report is, and he noted that it is linked on the agenda. He is happy to answer any questions.

SPECIAL REPORTS:
Joint Board Report
There was no report.

UNFINISHED BUSINESS:
Ordinance No. 28-2023 An Ordinance Providing For Temporary Loans (2024) (Prepared by Controller) [No. of Readings 2 of 2].

Vice-President Parker read Ordinance No. 28-2023 by title only.

Councilor Blanco moved for passage of Ordinance No. 28-2023 on second reading, and that the vote be by roll call. The motion was seconded by Councilor Bellisario.

Controller Gray explained that the City gets a lot of funding in the General, Parks, and other Funds from the property taxes. We get those installments from the County twice per year, generally at the end of June and December. That can create a cash flow issue, so this is an annual Ordinance to provide for temporary loans to transfer between City funds to keep the cash flow going.

There was no further discussion.

Clerk Booker called the roll call vote:

Councilperson	**Vote**
Bellisario	Aye
Blanco	Aye
Burr	Aye
Dennis	Aye
Lee	Aye
Leverenz	Aye
Parker	Aye
Sanders	Aye
Veidemanis	Aye

Clerk Booker stated that the vote was 9 AYES and 0 NAYS.

Vice-President Parker announced that Ordinance No. 28-2023 passed on second reading.

NEW BUSINESS:
Ordinance No. 01-2024 Historic Preservation Commission: Additional Historic District (Submitted by the Historic Preservation Commission and the Department of Development) [No. of Readings 1 of 2].

Councilor Blanco read Ordinance No. 01-2024 by title only.

Councilor Blanco moved for passage of Ordinance No. 01-2024 on first reading, and that the vote be by roll call. The motion was seconded by Councilor Bellisario.

Deputy Director of Development Van Schuyver introduced Angel Valentín, the Trustee for Wabash Township. Deputy Director Van Schuyver explained that there are two properties listed in this Ordinance for voluntary historic preservation after applications were submitted by Trustee Valentín in 2022. It went through a process for approval by the Historic Preservation Commission (HPC) and now comes to the Council.

Vice-President Parker asked how old some of the markers are in the two cemeteries. Trustee Valentín responded that these are Pioneer Era cemeteries. The township has four, and these are the two that are within West Lafayette City limits. There are quite a few historic markers that are almost 200 years old. There is a Revolutionary War veteran that is interred at Burton Cemetery who served with the 1st Maryland Regiment almost 200 years ago. In the McCormick Cemetery, there are a range of dates. One of the more recognized names there is Art Hansen, who was a former Purdue President who passed away in 2010. However, there are also Civil War veterans interred there. The cemeteries have a rich history. He noted that the only new burials in these cemeteries are for those who previously purchased plots. The Township is trying to preserve the history there, and this is the first step in continuing to do that.

Vice-President Parker spoke of how, when she was growing up in Connecticut, she came across a cemetery in the middle of the woods where she saw Revolutionary War veterans. She expressed appreciation for the preservation of the two West Lafayette cemeteries.

There was no further discussion.

Clerk Booker called the roll call vote:

Councilperson	**Vote**
Bellisario	Aye
Blanco	Aye
Burr	Aye
Dennis	Aye
Lee	Aye
Leverenz	Aye
Parker	Aye
Sanders	Aye
Veidemanis	Aye

Clerk Booker stated that the vote was 9 AYES and 0 NAYS.

Vice-President Parker announced that Ordinance No. 01-2024 passed on first reading.

Ordinance No. 02-2024 An Ordinance Amending The West Lafayette Traffic Commission (Sec. 38-98) To Modify The Membership Qualifications For Citizen Representatives (Sponsored by Mayor John Dennis) [No. of Readings 1 of 2]

Councilor Blanco read Ordinance No. 02-2024 by title only.

Councilor Blanco moved for passage of Ordinance No. 02-2024 on first reading, and that the vote be by roll call. The motion was seconded by Councilor Bellisario.

Public Works Director Anderson stated that this is a request for a language change in the bylaws of the Traffic Commission. The seat that is appointed for the Council's District 1 area has been vacant for several years – since at least before 2020. The language would change it from being

a requirement to live in a specific district to a preference for it. There are people interested in being a part of the Commission, but the other seats are filled while there is always this vacancy. Currently, there is a Purdue student who is interested, but he does not live in District 1. This change would allow the Commission to keep the seats full with active members.

Councilor Bellisario noted that the Councilors received an email from a citizen with a concern that this change would be removing the representation of Purdue students, but it sounds like in this situation that it is a student who is interested even though they do not live in District 1. She asked if the goal of this would be to have student representation in the future, after this individual. Director Anderson noted that District 1 does not always mean that it would be a student living there, and the Commission is trying to leave it as close to that representation while also leaving it as open as possible to allow flexibility in the case of needing to find someone who is interested and be active in navigating traffic concerns across the City. In this case, the Purdue student is studying traffic engineering. Councilor Bellisario expressed agreement in having someone who is knowledgeable in the position.

Councilor Sanders stated that he has concerns that the Ordinance is written in such a way that it specifies District 1. It could become a general problem rather than just District 1. There has been some consideration to remove the language from the legislation. This will be a permanent part of the record for the City, and it seems inappropriate to specify one district as problematic because it happened to be of concern at a particular time. After some discussion, Councilor Sanders clarified that he is referring to the text in the Ordinance that provides the rationale for the change rather than the rule change itself.

Councilor Blanco noted that District 1 is mentioned in the second Whereas, but he feels that it is reasonable given that it has been the district with perpetually the most issues in having a representative. It is the rationale, but it is not the actual legislation. The legislation is flexible enough to allow for other districts in the future.

Councilor Sanders confirmed for Vice-President Parker that he would like an amendment to change the wording. Counsel Burns asked if the motion is to delete the reference to Council District 1 and to otherwise make that Whereas grammatical as opposed to picking the words that we take out. Councilor Sanders confirmed that is correct. Counsel Burns stated that we can remove the reference and then make a suggestion. He reviewed the procedure for making amendments, noting it can be done at the second reading next month. Counsel Burns stated that his understanding of the motion is that we would prepare language that would remove the reference to District 1 and then make it grammatical. Then there would be an opportunity to look at that before the next meeting, and it can be changed.

Councilor Bellisario seconded the motion on amending the language.

Clerk Booker called the roll call vote on the amendment:

Councilperson	**Vote**
Bellisario	Aye
Blanco	Nay
Burr	Aye
Dennis	Aye
Lee	Aye
Leverenz	Aye
Parker	Aye

Councilperson	Vote
Sanders	Aye
Veidemanis	Aye

Clerk Booker stated that the vote was 8 AYES and 1 NAY.

Vice-President Parker announced that the motion to amend passed.

There was no further discussion.

Clerk Booker called the roll call vote:

Councilperson	Vote
Bellisario	Aye
Blanco	Aye
Burr	Aye
Dennis	Aye
Lee	Aye
Leverenz	Aye
Parker	Aye
Sanders	Aye
Veidemanis	Aye

Clerk Booker stated that the vote was 9 AYES and 0 NAYS.

Vice-President Parker announced that Ordinance No. 02-2024 (Amended) passed on first and only reading.

Resolution No. 01-2024 A Resolution To Amend The Comprehensive Plan For Tippecanoe County To Include An Update Of The Multi-Hazard Mitigation Plan (Submitted by Area Plan Commission) [No. of Readings 1 of 1]

Councilor Blanco read Resolution No. 01-2024 by title only.

Councilor Blanco moved for passage of Resolution No. 01-2024 on first reading, and that the vote be by roll call. The motion was seconded by Councilor Bellisario.

Councilor Leverenz stated that the first paragraph of the APC Staff Report explains the rationale and need for this update to the Multi-Hazard Mitigation Plan, and he noted that this is a federal requirement. Vice-President Parker noted that the Plan, which is over 150 pages, covers all the natural disasters that could happen.

There was no further discussion.

Clerk Booker called the roll call vote:

Councilperson	Vote
Bellisario	Aye
Blanco	Aye
Burr	Aye
Dennis	Aye

Councilperson	Vote
Lee	Aye
Leverenz	Aye
Parker	Aye
Sanders	Aye
Veidemanis	Aye

Clerk Booker stated that the vote was 9 AYES and 0 NAYS.

Vice-President Parker announced that Resolution No. 01-2024 passed on first and only reading.

REPORT BY THE MAYOR

Mayor Easter reported that members of the RDC and City staff spent the day interviewing firms for the City's strategic planning efforts. In the coming months, there will be meetings with Council members and community members as we look at the five-year vision for what the City will be. This will include what we want our goals to be as we go into the subsequent five years and hopefully far into the future. A contract with a planning firm will go for approval with the RDC at its January or February meeting.

Councilor Burr asked Mayor Easter to describe what the criteria might be for the selected firm. Mayor Eater responded that there was a comprehensive list in the request for proposals. One of the things we are looking for is how we measure economic growth, including how housing and early childhood education factor into the economic decisions we make. The list also includes an economic growth model, which is a matrix of how we make decisions when it comes to economic development. Additionally, it includes community-wide health and wellness initiatives which relate to parks and open space and integrating all the existing plans the City has. The final component is organizational and financial health for the City itself.

COMMUNICATIONS

There were no comments.

CITIZEN COMMENTS

There were no comments.

- Emails that were received at the Clerk email address regarding this meeting are made a part of these minutes. Emails that were received for Ordinance No. 27-2023, which was continued during the Pre-Council meeting, will be appended to the minutes of the meeting in which it is first heard; if it is withdrawn, the emails will be kept on file.

ADJOURNMENT

There being no further business at this time, Councilor Blanco moved for adjournment, and Vice-President Parker adjourned the meeting the time being 7:04 p.m.

From:	Zachary Baiel
To:	WL Clerk; Larry Leverenz; David Sanders; Kathy C.F. Parker; James S. Blanco; Laila Veidemanis; Michelle Dennis; Colin Lee; Stacey Burr; Iris Bellisario; Erin Easter; Erin Easter
Subject:	Opposition to Undemocratic Ordinance 02-2024: Table or Vote Down
Date:	Monday, January 8, 2024 1:35:29 PM
Attachments:	image.png

External

Good afternoon West Lafayette Clerk's Office, City Council, and Mayor:

I hope you and yours are well as we start 2024.

I am unsure if I will be able to attend tonight's meeting, so I wanted to write you to share my opposition to the undemocratic Ordinance 02-2024 and ask that you either vote down this measure or table it until exhaustive measures have been taken by the new City Council to find a representative in District 1, the only current open seat according to the City's website:

Appointed by the Council

NAME	DISTRICT
OPEN	District 1
Paul Bower	District 2
Grace Curry	District 3
Ralph Bline	District 4
Ernest "Chip" Blatchley	District 5
Stacey Burr	District 6

The proposed changes defeat the purpose of democratic representation and move civic participation to the lowest common denominator, a warm body within the City limits. This change would also afford a district with double representation. And the wording would only allow preference, not require geographic representation if someone was interested. There are many issues.

I was at the Traffic Commission meeting where this was discussed and shared the similar sentiments. It was an undemocratic idea then and continues to be an undemocratic idea today.

> ORDINANCE NO. 02-2024: AN ORDINANCE AMENDING THE WEST LAFAYETTE TRAFFIC COMMISSION (SEC. 38-98) TO MODIFY THE MEMBERSHIP QUALIFICATIONS FOR CITIZEN REPRESENTATIVES

> Each representative shall be a citizen of the City with preference being given to appointments which result in a citizen representative residing in each of the six city council districts.

Why would we soften the requirements for Traffic Commission membership due to the lack of interest in the District 1, which is predominantly, but not exclusively, Purdue students?

The first step for accountability would be to explore what recruit methods have been employed by the Traffic Commission, Councilor Laila Veidemanis, or the at-large candidates to find a member of the public that would be willing to serve. How many have been explored?

Since many traffic issues are geographic in nature, appointing someone simply because they live within City limits would provide an unfair bias towards a particular ideology given that there will now be two districts represented on the Traffic Commission.

Again, I ask that you either vote down this ordinance and aggressively pursue a District 1 representative. Don't move the goal posts for an easy victory.

Thank you for your time, care, and consideration. Please feel free to reach out over email, phone, or text (765-491-4920). I look forward to hearing from you and your discussion on this issue.

Take care,

--
Zachary Baiel
765-491-4920

WEST LAFAYETTE parks and recreation

MEMO

TO: West Lafayette Parks and Recreation Board

FROM: Kathy Lozano – Parks Superintendent

DATE: Monday, January 22, 2024

SUBJECT: West Lafayette Parks and Recreation Department Report

Below is a summary of the progress Department staff have made during the months of December 2023 – January 2024.

PARKS:

Shelters: Reservations for 2024 are open. You may reserve a shelter online at Catalog - City of West Lafayette Parks & Recreation (rec1.com)

PROGRAMS:

We continue to seek instructors to teach dance, music, acting, etc. for winter and spring programming. Please contact Brandy Payne to discuss class proposals at (765) 775-5110.

West Lafayette Parks and Recreation programs and activities – Winter programs and activities have begun – check out the following classes - Guitar Lessons, Song Writing Classes, Ballroom Dance, Karate, Brick Builders, Art and more! The programming for the community spaces at the Margerum City Hall is filling fast.
Find the classes here: Catalog - City of West Lafayette Parks & Recreation (rec1.com)

LILLY NATURE CENTER/CELERY BOG

- We installed a Reach device at LNC to showcase our program flyers and schedule, giving visitors a better opportunity to learn about our program offerings.
- The four programs that will begin starting next week: Ecosystem Architects, Whoo Whoo Whoo is That Owl?, Dutch Oven Discoveries, and a weekly CBNA Bird Count
- Working on bringing a conservation project to Celery Bog to be funded by Sycamore Audubon Society; a chimney swift roosting tower where migrating chimney swifts can use as roosting habitat in the decreasing presence of tree snags and chimneys.

- Worked with the AmeriCorps crew on removing invasive trees as well as large litter scattered about the water in Celery Bog.

Other Meetings and events: Audubon Society, TICHT monthly meeting, Seed collection clinic, and more.

WELLNESS CENTER:

The West Lafayette Wellness Center is open and is adding to its program offerings every day. Membership Sales are brisk. Please consider becoming a member!

Register online at: [Catalog - City of West Lafayette Parks & Recreation (rec1.com)]

Wellness Center Monthly Report
January 2024

Category	Month Prior (December)	YTD	Notes
Total Active Membership Units	3,607	3,580	Up 20% from same time in 2023
Total Family Membership Units	1,067	1,200	
Total Scans	24,961	276,906	Up 35.7% from 2022
Total Active Members	7,665	7,770	Up 1,546 from December 2022
Total Renew Active Members	615	615	
Total Silver & Fit Members	279	279	

ACCOMPLISHMENTS:

Programs. Building a facility from the ground up has proven to be a great challenge, but one that our programming staff has embraced. From swimming lessons, classes, wellness programs, camps, sports, special events, and more, building the programs at the Dennis Wellness Center has been a huge accomplishment. We are beginning to really find our place in the community and have established some core programs and services that will be long-term staples for the community. As we embark on 2024, we will continue to build programs that enhance the value and sense of belonging within the West Lafayette community.

CHALLENGES: Growth. As you can see from the numbers above, the Dennis Wellness Center has seen enormous growth since opening three years ago. Growth is always a challenge, especially when it happens in the short time that we have seen. From finding qualified staff, maintenance, cleaning, and members' frustrations with already full classes and programs, the growth of the facility will always present challenges to both staff and members. There is still a lot of potential for further growth, and we will strive to do so in an intentional and thoughtful manner.

STAFF HIGHLIGHT: Brian Mazzara joined the Dennis Wellness Center team on January 8, serving as a full-time associate at the front desk. Brian joins us from a previous career in the restaurant and hospitality industry, and his customer services skills seem to already be translating very well into his new position. We are excited to have Brian on the team and look forward to all that he will accomplish.

NOW HIRING: Wellness Center continues to seek staff members to work part time in the following areas: Camp Counselors, Custodians, Lifeguards, Swim Instructors, Water Safety, Water Exercise, Group Exercise Instructors, Personal Trainers, Fitness Coaches, Front Desk, Housekeeping, Childcare and many more.

Apply online at: Employment opportunities (munisselfservice.com)

AFTERSCHOOL PROGRAM:

Under the watchful direction of Ashley Connor, Youth Enrichment Coordinator, the afterschool program is running at capacity and smoothly. See the web site for more information.

MUNICIPAL POOL – The Municipal Pool had a successful season. It is buttoned up for the winter – see you next spring.

RIVERSIDE SKATING CENTER:

Riverside Skating Center had a great turnout for our extended holiday hours during the school break last month:

- We introduced a brand-new hockey program this season. Our second hockey clinic kicked off on January 9th with 20 skaters participating each week.
- 4 vs.4 adult pickup hockey games are well attended Saturday and Sunday mornings and Wednesday evenings. The community loves the opportunity to play hockey here in West Lafayette!

PARK MAINTENANCE:

Keeping our parks clean and attractive takes hard work and diligence. Aside from normal activities like mowing, cleaning, and mulching, our Parks department accomplished the following list of projects in the past month:

- Diagnosing and repairing the Lilly Nature Center HVAC.
- Replaced tires and wheel hubs on the Toolcat. We also resolved an electrical issue in the other Toolcat.
- Loaded and prepped the salt spreader for use.
- Placed plows on two trucks.
- Moved 50-60 cubic yards of wood chips onto the Siniger woods trails.
- Minor playground repairs - Loose bolts, cracked swings, and filed down some sharp edges.
- All vehicles and equipment got oil changes.
- Replaced and upgraded trail lights at Tapawingo park after we switched out the parking lot lights.
- Also upgraded the lights that shine on the Tapawingo shed to LED.
- Replaced old, faded trail signage - Stop signs, yield signs, instructional signs etc.
- Switched out faded trail Bollards.
- Mulched the muddy parts of the Happy Hollow Dog park.
- Removed furniture from changing rooms and touched up paint in the changing rooms at the Dennis Wellness Center. We are about ½ finished.
- Patched grout in flooring in the main lobby of the Dennis Wellness Center.
- Cleaned out the garage at the Nature Center.
- Henry did some repairs to the clubhouse playground.
- Salted and brined for the minor snow events as needed.
- Routine inspection to playgrounds and trail.

- Repaired a sink at Happy Hollow restroom
- Replaced the sink at the Dennis Wellness Center.
- Routine HVAC preventative maintenance - Replaced all furnace filters in all our heated buildings.

AMERICORPS PARK CONSERVATION CREW:

We currently have 5 AmeriCorps members serving with the goal of improving our public parks, land, and facilities and, thereby, improving health outcomes for our community. Below is a list of recent accomplishments.

- Removed a traffic cone from water in the Celery Bog. Cleaned up trash along trails and cleared brush debris.
- Supported the parks maintenance department with removal of invasive honeysuckle and Callery pear along 2.16 miles of city trails near US 231.
- Attended a day of training with Serve Indiana.
- Helped to plant 20 trees in Blackbird Farms neighborhood.

If you are interested in signing up to learn more about AmeriCorps events in the future, please click here: https://forms.gle/djT2ZuvJ8ebgBwTK7.
To learn more or for questions, contact Rachel Bingaman, Grant Administrator/AmeriCorps Director, rbingaman@westalafayette.in.gov or 765-715-7999.
Find more information on our website here: https://www.westlafayette.in.gov/americorps

COMMUNITY FORESTRY AND GREENSPACE:

- Secured funding for and launched the AmeriCorps program – federal grant to promote workforce development and support park conversation work in West Lafayette
- Approved the City's Park and Open Space Comprehensive Plan, last updated in 1981
- Approved the Community Forestry Management Plan, which includes management of Street and Park trees, woodland management, framework of emergency storm response, and operations plan for the next 10+ years
- Began construction of the municipal nursery

WEST LAFAYETTE
WATER RESOURCE RECOVERY

Wastewater Treatment Utility
500 South River Road
West Lafayette, Indiana 47906
Voice: (765) 775-5145
Fax: (765) 775-5149

MONTHLY REPORT OF OPERATIONS

National **P**ollutant **D**ischarge **E**limination **S**ystem -- **NPDES**

December 2023--MONTHLY AVERAGES				**Limit**
TSS		2.4	mg/l	(30.00)
CBOD5		1.7	mg/l	(25.00)
NH_4		0.102	mg/L	(6.00)
Cl_2		N/A	mg/L	(0.06)
Phosphorus		0.728	mg/L	(1.00)
E. COLI		N/A	#/100ml	125.00
FLOW	TOTAL	208.37	MG	
	AVG	6.738	MGD	
	MAX	9.861	MGD	
	MIN	5.284	MGD	
PRECIPITATION		2.81	INCHES	

December 2023--PERCENT REMOVALS

TSS	98.4	REPORT ONLY
CBOD	99	REPORT ONLY
Ammonia	99.6	REPORT ONLY
Phosphorus	83.1	REPORT ONLY

COMBINED SEWER OVERFLOWS

December 2023	**MG**	**HOURS**	**Events**
TOTAL FLOW	**208.37**		
PERCENT FULLY TREATED	**100.00**		
OVERFLOW POINT			
DEHART STREET	0.0000	0	0
QUINCY STREET	0.0000	0	0
Wet Weather Treatment Facility	0.0000	0	0
OVERFLOW TOTAL	**0.0000**	**0.00**	**0**

WEST LAFAYETTE FIRE DEPARTMENT

REPORT

Ensuring West Lafayette is always a safe and great place to work, live, and play.

TO: West Lafayette Common Council

FROM: Jeff A. Need, Fire Chief

DATE: February 5, 2024

SUBJECT: January 2024 Fire Report

Call Totals: West Lafayette Fire responded to 315 Total Calls in January: 208 Medical, 4 Fire, 9 Hazardous Condition, 34 Service Calls, 44 False Alarms, 2 Special Incidents, and 14 Other.

Training: January's monthly fire training included joint training with the Lafayette Fire Department, performing ice rescue scenarios at Harner Lake. TEMA (Tippecanoe Emergency Management Agency) members were also on hand. Medical training consisted of mandatory department-wide CPR recertification with the American Heart Association. Lieutenant Ben Jones completed the Command and Control of Incident Operations course at the National Fire Academy. Members performed numerous online training assignments as part of their yearly mandatory OSHA training. This brought the total training hours in January to 1154.5.

Inspections: The Inspection Division's January fire prevention and education included 111 general inspections, 8 re-inspections, 17 new construction inspections, 15 plan reviews, 1 consultation, 65 documentation reports and reviews, 36 code reviews, 1 fire alarm test, 5 sprinkler system tests, and 10 fire drills, bringing the January overall total to 273.

Respectfully submitted,

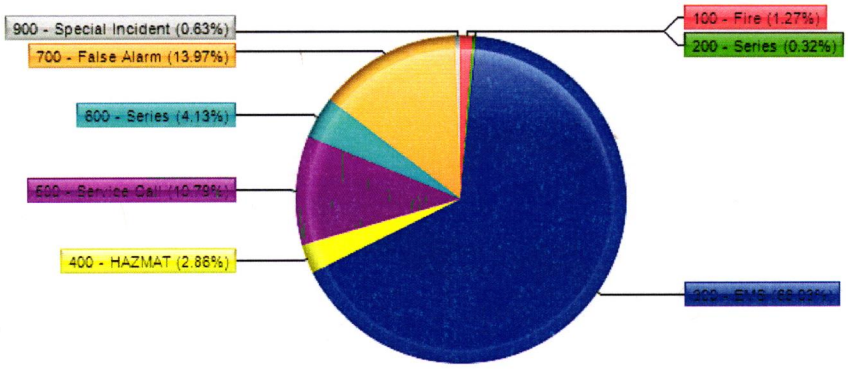
Jeff A. Need
Fire Chief, City of West Lafayette

Monthly Fire Incidents Type Totals	Date: Thursday, February 1, 2024 Time: 4:51:33 AM

Incident Date between 2024-01-01 **and** 2024-01-31

Fire Incident Type Breakdown

Incident Type Group	
100 - Fire	4
200 - Series	1
300 - EMS	208
400 - HAZMAT	9
500 - Service Call	34
600 - Series	13
700 - False Alarm	44
900 - Special Incident	2
	315



WEST LAFAYETTE FIRE DEPARTMENT

300 NORTH STREET
WEST LAFAYETTE, INDIANA 47906
765-775-5175

Ensuring West Lafayette is always a safe and great place to work, live, and play.

January Training Report

This month, we had Lieutenant Ben Jones attend the National Fire Academy. Lieutenant Jones completed the Command and Control of Incident Operations course. We have had several of our officers complete this week-long course.

January's monthly medical training included all our members being recertified in CPR. This is a two-year certification through the American Heart Association.

Fire training for January was conducted jointly with the Lafayette Fire Department at Harner Lake. Our crews performed an ice rescue scenario, working alongside members of the Lafayette Fire Department. Tippecanoe Emergency Management Agency members were there to assist with the training.

Our members were assigned numerous online training to be completed throughout the year. This covers the 30 hours of mandatory training required by OHSA. Each member is required to complete 228 hours of training each year.

Total person-hours spent training in January was 1154.5 hours.

Reported by

Captain Birge

Type	Monthly Hours	Monthly Units	Notes
Inspection-General	127	111	General fire inspection of building
Plan Review	22	15	Plan Review of new projects
Consultation	1	1	Review of project onsite
System Test-Fire Alarm	2	1	Tested fire alarm
System Test-Sprinkler system	6	5	Tested sprinkler system
Inspection-New Construction	34	17	Inspections/rough ins
Inspection-Re-Inspection	8	8	Re-inspection of building
Fire Drills	10	10	Monitor Fire Drill exercise
Complaints			Building Safety complaints
Documentations	97	65	Documenting reports & reviews
Code reviews	70	36	Verifing code concerns
Training/Continue Education	20	4	Recorded trainings
Fire/Life Safety Presentations			
TOTAL	397	273	

West Lafayette Street/Sanitation/Recycling Department
January 2024

SANITATION/RECYCLING

January Income Fee	$ 141,204.57		To Date	$	141,204.57
Recyclables Sales	$ -		To Date	$	-
Waste Land Filled	430.34	Tons	Tip Fee	$	23,845.14
Street Sweepings Land Filled	0.00	Tons	Tip Fee	$	-
Materials Recycled Curb Side	146.78	Tons	ATF	$	8,133.08
Yard Waste Composted	21.30	Tons	ATF	$	1,180.23
Leaves Composted	8.62	Tons	ATF	$	477.63

ATF: Avoided Tip Fee is $55.41/ton

ACTIVITIES	HOURS		
Street Sweeping	32.00	-	Tons Collected
Leaf Collection	0.00	8.62	Tons Collected
Pothole Patching/Street Repair	75.0		
Sign Maintenance	18.0		
Signal Maintenance	8.00		
Street Light Repair	9.00		
Sign Making	77.50		
Traffic Locates	7.00		
Sewer Locates	186.0		
Sewer Cleaning	14.0	595.00	Feet Cleaned
Sewer Televising	70.3	1,321.00	Feet Televised
Storm Sewer Televising	31.0	20,748.90	Feet Televised
Catch Basin Cleaning	52.0	132.00	Feet Cleaned
Snow Removal	294.75	305.61	Tons Road Salt
Pre-Treating Streets	108.75	44,330.00	Gal. Salt Brine
		175.00	Gal. Liquid Deicer

MATERIALS	TONS	REVENUE	ATF
Bi. & Scrap Metal	0	$ -	$ -
Comingled- Curbside	146.78	$ -	$ 8,133.08
Food Waste	0.86	0	$ 47.65

Calls for Service
January 2024

Incidents Created From: 01-January-2024 to 31-January-2024

Unit Org	Event	Event Description	Type Count
WLPD	911UNK	911 UNKNOWN	34
WLPD	ABNBIK	ABANDONED BICYCLE	2
WLPD	ABNVEH	ABANDONED VEHICLE	1
WLPD	ALARM	ALARM HOLD UP/BURGLAR/PANIC	47
WLPD	ANIMAL	ANIMAL COMPLAINT	25
WLPD	ARG	ARGUMENT	3
WLPD	ASOTD	ASSIST OTHER DEPARTMENTS	11
WLPD	ASTCPS	ASSIST CPS	1
WLPD	AT RES	ATTEMPTED RESIDENTIAL ENTRY	2
WLPD	AUTOMI	AUTO DAMAGE NOT ACCIDENT	1
WLPD	AUTTFT	AUTO THEFT	1
WLPD	CHLDAB	CHILD ABUSE	1
WLPD	CIVIL	CIVIL MATTER	6
WLPD	CKWB	CHECK WELL BEING	29
WLPD	CRASH H&R	CRASH HIT & RUN	15
WLPD	CRASH PD	CRASH PD	75
WLPD	CRASH PI	CRASH WITH INJURY	16
WLPD	CRMMIS	CRIMINAL MISCHIEF	7
WLPD	DAMAG	DAMAGED PROPERTY	2
WLPD	DEATH	DEATH	3
WLPD	DELMSG	DELIVER MESSAGE	1
WLPD	DISTRB	DISTURBANCE	1
WLPD	DISVEH	DISABLED VEHICLE	35
WLPD	DOMBAT	DOMESTIC W/ BATTERY	6
WLPD	DOMSTC	DOMESTIC	3
WLPD	DOMVER	DOMESTIC VERBAL	3
WLPD	DPINFO	DEPT INFO	13
WLPD	DRNKDR	DRUNK DRIVER	8
WLPD	DRUG	DRUG LAW VIOLATION	4
WLPD	EXPAT	EXPATROL	115
WLPD	FIGHT	FIGHT	4
WLPD	FIRALM	FIRE ALARM	7
WLPD	FIRBLD	FIRE BUILDING/ STRUCTURE	2
WLPD	FIRDRI	FIRE DRILL	2
WLPD	FIRGAS	GAS LEAK	1
WLPD	FIRVEH	VEHICLE FIRE	2
WLPD	FLGDWN	FLAG DOWN	1
WLPD	FLOCK	FLOCK HIT	3
WLPD	FOLLUP	FOLLOW UP	36
WLPD	FOPROP	FOUND PROPERTY	5
WLPD	FPAT	FOOT PATROL	1

WLPD	FRAUD	FRAUD/SCAM/COUNTERFEIT	11
WLPD	GRAFFI	GRAFFITI	2
WLPD	HARASS	HARASSMENT	3
WLPD	HARPHO	HARASSMENT (PHONE/INTERNET)	2
WLPD	HOUSCH	HOUSE CHECK	1
WLPD	INDEXP	INDECENT EXPOSURE	1
WLPD	JUVPRO	JUVENILE PROBLEM	3
WLPD	K9	K9 DETAIL	1
WLPD	LOSTPR	LOST PROPERTY	10
WLPD	MEDPRO	MEDICAL PROBLEM	46
WLPD	MENTAL	MENTAL PROBLEM	3
WLPD	MISC	MISCELLANEOUS	8
WLPD	MISSNG	MISSING PERSON	3
WLPD	NO TOW	NO TOW	2
WLPD	NOISE	NOISE COMPLAINTS	13
WLPD	OPENDR	OPEN DOOR	3
WLPD	ORD	ORDINANCE VIOLATIONS	1
WLPD	OVERDS	OVERDOSE	2
WLPD	PAPER	PAPERWORK DETAILS/COURTWORK	15
WLPD	PARKIN	PARKING PROBLEM	14
WLPD	PARTY	PARTY	1
WLPD	PROTEC	PO/RESTRAINING ORDER VIOLATION	4
WLPD	PUBINT	PUBLIC INTOX	1
WLPD	RAPE	RAPE	1
WLPD	RECDRV	RECKLESS DRIVER/TRAFFIC	31
WLPD	REGCHK	SEX OFFENDER REGISTRY CHECK	7
WLPD	REPO	REPO	4
WLPD	RESIDE	RESIDENTIAL ENTRY	2
WLPD	RUNAWY	RUNAWAY	1
WLPD	SCHGRD	SCHOOL GUARD DUTY	4
WLPD	SEARCH	SEARCH WARRANT	2
WLPD	SHOTS	SHOTS FIRED/ HEARD SOMEWHERE	2
WLPD	SLIDEO	VEHICLE SLIDE OFF	7
WLPD	SOLIC	SOLICITING / PANHANDLING	2
WLPD	SPKSUB	SPEAK TO SUBJECT	39
WLPD	STAND	STAND BY DETAIL	8
WLPD	SUICAT	SUICIDE ATTEMPT	1
WLPD	SUICID	SUICIDE/ SUICIDAL SUBJECT	2
WLPD	SUICTH	SUICIDAL THREATS	7
WLPD	SUSINC	SUSPICIOUS INCIDENT	22
WLPD	SUSPER	SUSPICIOUS PERSON	17
WLPD	SUSVEH	SUSPICIOUS VEHICLE	29
WLPD	TFTBIK	THEFT OF A BIKE	4
WLPD	TFTPRO	THEFT OF PROPERTY	25
WLPD	TFTSHP	THEFT/ BY SHOPLIFTING	18
WLPD	TFTVEH	THEFT FROM VEHICLE	4
WLPD	THREAT	THREATS	7
WLPD	TOWPVT	TOW/PRIVATE PROPERTY	84
WLPD	TRAFCV	TRAFFIC VIOLATION	1
WLPD	TRANSP	TRANSPORT	6
WLPD	TRESPA	TRESPASSING	19
WLPD	TRF24H	TRAFFIC 24 HR TAG	4
WLPD	TRFBLK	BLOCKING DRIVE COMPLAINT	7
WLPD	TRFCON	TRAFFIC CONTROL	3
WLPD	TRFHAZ	TRAFFIC HAZARD OBJECT IN ROAD	16

WLPD	TRFREP	TRAFFIC REPAIR/SIGNALS/LIGHTS	8
WLPD	TRFRPS	TRAFFIC PARKING REQUEST	1
WLPD	TRFWHL	WHEEL LOCK	8
WLPD	TS	TRAFFIC STOP	711
WLPD	TSSRCH	TRAFFIC STOP W/VEH SEARCH	3
WLPD	UNAUTH	UNAUTHORIZED CONTROL	1
WLPD	UNKPRO	UNKNOWN PROBLEM	2
WLPD	UNWANT	UNWANTED GUEST	14
WLPD	VEHAST	VEHICLE/MOTORIST ASSIST	2
WLPD	VEHLOC	VEHICLE LOCK OUT	26
WLPD	VEHREL	VEHICLE RELEASE	9
WLPD	VIN CH	VIN CHECK	11
WLPD	WARSVC	WARRANT SERVICE	8
WLPD	WLORDC	WLORDINANCE CONTAINER	46
WLPD	WLORDD	WLORDINANCE SIGNAGE	6
WLPD	WLORDF	WLORDINANCE FURNITURE	3
WLPD	WLORDP	WLORDINANCE PARKING	1
WLPD	WLORDR	WLORDINANCE RENTAL VIOLATION	1
WLPD	WLORDS	WLORDINANCE SNOW/ICE	3
WLPD	WLORDT	WLORDINANCE TRASH	20
WLPD	WLORDW	WLORDINANCE SCOOTER	1
WLPD	WLSOCIAL	WLPD SOCIAL WORKER CONTACT	10
WLPD	WOW	WOW LOOKING FOR SUBJ.	6
		Type Count Total	1972

Calls for Service - is a request for police response to any given situatiion both criminal and non-criminal, some of which results in police action and requires a case report. Not all Calls for Service result in a need for a case report.

WEST LAFAYETTE
HOME of PURDUE

Neighborhood Resource Team

January 2024

Code Enforcement

CFS – 146

Parking Enforcement

Tickets – 587

Wheel locks – 8

$16,765.00
(Parking revenue)

Animal Control

19 Complaints

2 sheltered

	DATE	NATURE	LOCATION
1	1/2/24	ANIMAL COMPLAINT	1430 N SALISBURY ST, WEST LAFAYETTE
2	1/2/24	WLORDINANCE CONTAINER	101 QUINCY ST, WEST LAFAYETTE
3	1/2/24	WLORDINANCE CONTAINER	414 MAPLE ST, WEST LAFAYETTE
4	1/2/24	WLORDINANCE CONTAINER	403 W STADIUM AVE, WEST LAFAYETTE
5	1/2/24	WLORDINANCE SCOOTER	BROWN ST/TAPAWINGO DR
6	1/2/24	ANIMAL COMPLAINT	123 ANDREW PL,WL
7	1/2/24	PARKING PROBLEM	100 S CHAUNCEY AVE, WEST LAFAYETTE
8	1/2/24	WLORDINANCE SIGNAGE	ISAIAH ST/ N 75 E, WEST LAFAYETTE
9	1/2/24	EXPATROL	2610 WILLOW DR, WEST LAFAYETTE
10	1/2/24	WLORDINANCE SIGNAGE	FOWLER/SALISBURY
11	1/3/24	EXPATROL	320 BROWN ST,WL
12	1/3/24	ANIMAL COMPLAINT	400 BLOCK ROBINSON ST,WL
13	1/3/24	EXPATROL	360 BROWN ST,WL
14	1/3/24	WLORDINANCE CONTAINER	3141 EDGERTON ST, WEST LAFAYETTE
15	1/3/24	WLORDINANCE CONTAINER	980 MARWYCK
16	1/3/24	WLORDINANCE CONTAINER	1048 MARWYCK ST, WEST LAFAYETTE
17	1/4/24	WLORDINANCE CONTAINER	2606 HENDERSON
18	1/4/24	WLORDINANCE CONTAINER	2713 COVINGTON ST, WEST LAFAYETTE
19	1/4/24	WLORDINANCE CONTAINER	509 LAGRANGE ST, WEST LAFAYETTE
20	1/4/24	WLORDINANCE CONTAINER	816 LAGRANGE ST, WEST LAFAYETTE
21	1/4/24	WLORDINANCE CONTAINER	108 N SALISBURY ST,WL
22	1/4/24	WLORDINANCE CONTAINER	916 N SALISBURY ST,WL
23	1/4/24	ANIMAL COMPLAINT	700 BLOCK MCCORMICK RD,WL
24	1/4/24	WLORDINANCE SIGNAGE	KALBERER/N SALISBURY
25	1/4/24	ANIMAL COMPLAINT	1600 N SALISBURY ST, WEST LAFAYETTE
26	1/5/24	ANIMAL COMPLAINT	240 HAPPY HOLLOW
27	1/5/24	FOLLOW UP	4700 JEREMIAH ST, WEST LAFAYETTE
28	1/5/24	ANIMAL COMPLAINT	1600 CHERRY LN, WEST LAFAYETTE
29	1/5/24	WLORDINANCE FURNITURE	422 N SALISBURY ST,WL
30	1/5/24	WLORDINANCE FURNITURE	423 N SALISBURY ST, WEST LAFAYETTE
31	1/5/24	WLORDINANCE TRASH	300 BLOCK S CHAUNCEY AVE,WL
32	1/8/24	WLORDINANCE PARKING	1000 NORTHWESTERN AVE, WEST LAFAYETTE
33	1/8/24	WHEEL LOCK	122 PIERCE ST, WEST LAFAYETTE
34	1/8/24	WHEEL LOCK	100 FOUNDRY DR, WEST LAFAYETTE
35	1/8/24	ANIMAL COMPLAINT	2606 MIDLEX CT,LAF
36	1/8/24	WLORDINANCE FURNITURE	207 W STADIUM AVE, WEST LAFAYETTE
37	1/8/24	WLORDINANCE CONTAINER	906 ROSE ST, WEST LAFAYETTE
38	1/8/24	WLORDINANCE CONTAINER	1004 RIVERTON DR, WEST LAFAYETTE
39	1/8/24	WLORDINANCE CONTAINER	1100 RIVERTON DR, WEST LAFAYETTE
40	1/8/24	WLORDINANCE TRASH	1110 LINDBERG RD, WEST LAFAYETTE
41	1/8/24	EXPATROL	3014 YEAGER RD,WL
42	1/8/24	ANIMAL COMPLAINT	1400 NORTHWESTERN AVE, WEST LAFAYETTE
43	1/9/24	PARKING PROBLEM	N GRANT ST/ W STADIUM AVE, WEST LAFAYETTE
44	1/9/24	WHEEL LOCK	100 ANDREW PL, WEST LAFAYETTE

45	1/9/24	TRAFFIC PARKING REQUEST	352 E STATE ST, WEST LAFAYETTE
46	1/9/24	ABANDONED BICYCLE	W COLUMBIA ST/ N CHAUNCEY AVE, WEST LAFAYETTE
47	1/9/24	FOLLOW UP	222 N CHAUNCEY AVE, WEST LAFAYETTE
48	1/9/24	WLORDINANCE TRASH	172 LITTLETON
49	1/9/24	WLORDINANCE SIGNAGE	NIGHTHAWK/NAVAJO
50	1/10/24	TRAFFIC 24 HR TAG	1000 5TH ST, WEST LAFAYETTE
51	1/10/24	TRAFFIC 24 HR TAG	600 N RUSSELL ST, WEST LAFAYETTE
52	1/10/24	WLORDINANCE CONTAINER	3576 WAKEFIELD,WL
53	1/10/24	WLORDINANCE CONTAINER	3576 WAKEFIELD DR,WL
54	1/10/24	WLORDINANCE CONTAINER	3620 WAKEFIELD DR,WL
55	1/10/24	WLORDINANCE CONTAINER	3706 WAKEFIELD DR,WL
56	1/10/24	WLORDINANCE CONTAINER	3444 BURNLEY DR,WL
57	1/10/24	BLOCKING DRIVE COMPLAINT	600 N RUSSELL ST, WEST LAFAYETTE
58	1/10/24	WLORDINANCE CONTAINER	4634 MATTHEW
59	1/10/24	FOLLOW UP	4700 JEREMIAH ST, WEST LAFAYETTE
60	1/10/24	WLORDINANCE CONTAINER	910 VINE
61	1/10/24	WLORDINANCE TRASH	2600 BLOCK SYCAMORE LN,WL
62	1/10/24	DISTURBANCE	100 S CHAUNCEY AVE, WEST LAFAYETTE
63	1/10/24	ANIMAL COMPLAINT	N GRANT ST/ EVERGREEN ST, WEST LAFAYETTE
64	1/11/24	PARKING PROBLEM	ELMWOOD DR, WEST LAFAYETTE
65	1/11/24	WLORDINANCE CONTAINER	707 KENT AVE,WL
66	1/11/24	WLORDINANCE CONTAINER	2707 HENDERSON AVE,WL
67	1/11/24	WLORDINANCE CONTAINER	2706 HENDERSON AVE,WL
68	1/11/24	WLORDINANCE CONTAINER	2612 CLAYTON ST,WL
69	1/11/24	WLORDINANCE CONTAINER	2630 CLAYTON ST,WL
70	1/11/24	WLORDINANCE CONTAINER	816 ASHLAND ST,WL
71	1/11/24	BLOCKING DRIVE COMPLAINT	112 PIERCE ST, WEST LAFAYETTE
72	1/11/24	FOLLOW UP	N CHAUNCEY/COLUMBIA
73	1/12/24	ABANDONED BICYCLE	N CHAUNCEY/COLUMBIA
74	1/12/24	ORDINANCE VIOLATIONS	208 SOUTH ST, LAFAYETTE
75	1/12/24	WLORDINANCE CONTAINER	444 LITTLETON ST, WEST LAFAYETTE
76	1/12/24	WHEEL LOCK	200 S MACARTHUR DR,WEST LAFAYETTE
77	1/12/24	FOLLOW UP	310 SYLVIA ST,WL
78	1/12/24	WLORDINANCE CONTAINER	2312 SYCAMORE LN,WL
79	1/16/24	WLORDINANCE TRASH	100 FOUNDRY DRIVE
80	1/16/24	WLORDINANCE SNOW/ICE	405 N RIVER RD
81	1/16/24	WLORDINANCE SNOW/ICE	325 DEHART
82	1/17/24	DEPT INFO	1032 SAGAMORE PKWY W, WEST LAFAYETTE, IN
83	1/17/24	WLORDINANCE CONTAINER	700 LAGRANGE
84	1/17/24	WLORDINANCE CONTAINER	600 LAGRANGE
85	1/17/24	WLORDINANCE TRASH	1110 LINDBERG RD, WEST LAFAYETTE
86	1/17/24	WLORDINANCE CONTAINER	312 HAMILTON ST, WEST LAFAYETTE
87	1/17/24	WLORDINANCE CONTAINER	3051 HAMILTON
88	1/17/24	FOLLOW UP	222 N CHAUNCEY
89	1/17/24	WLORDINANCE TRASH	225 W LUTZ AVE, WEST LAFAYETTE
90	1/17/24	WLORDINANCE TRASH	217 SYLVIA ST, WEST LAFAYETTE
91	1/17/24	WLORDINANCE TRASH	427 N CHAUNCEY AVE, WEST LAFAYETTE
92	1/18/24	PARKING PROBLEM	2636 US 52 W

93	1/18/24	PAPERWORK DETAILS/COURTWORK	711 W NAVAJO ST, WEST LAFAYETTE
94	1/19/24	BLOCKING DRIVE COMPLAINT	146 E STADIUM AVE, WEST LAFAYETTE
95	1/19/24	WLORDINANCE TRASH	172 LITTLETON
96	1/22/24	WHEEL LOCK	100 ANDREW PL, WEST LAFAYETTE
97	1/22/24	WLORDINANCE TRASH	201 NORTHWESTERN AVE, WEST LAFAYETTE
98	1/22/24	WLORDINANCE RENTAL VIOLATION	243 CONNOLLY ST, WEST LAFAYETTE
99	1/22/24	ANIMAL COMPLAINT	320 FERNLEAF DR, WEST LAFAYETTE
100	1/22/24	FOLLOW UP	172 LITTLETON ST, WEST LAFAYETTE
101	1/23/24	WLORDINANCE SNOW/ICE	427 N CHAUNCEY AVE, WEST LAFAYETTE
102	1/23/24	BLOCKING DRIVE COMPLAINT	330 W FOWLER AVE, WEST LAFAYETTE
103	1/23/24	WLORDINANCE SIGNAGE	BOONE ST/ LAGRANGE ST, WEST LAFAYETTE
104	1/23/24	WLORDINANCE TRASH	3306 CRAWFORD ST, WEST LAFAYETTE
105	1/24/24	WHEEL LOCK	100 SOUTH ST, WEST LAFAYETTE
106	1/24/24	ANIMAL COMPLAINT	3744 BROADVIEW RD,WL
107	1/24/24	EXPATROL	3014 YEAGER RD, WEST LAFAYETTE
108	1/24/24	WLORDINANCE TRASH	1000 BLOCK CHERRY LN,WL
109	1/25/24	WLORDINANCE CONTAINER	426 LAGRANGE,WL
110	1/25/24	WLORDINANCE CONTAINER	2713 HENDERSON ST,WL
111	1/25/24	WLORDINANCE CONTAINER	2837 HENDERSON ST,WL
112	1/25/24	WLORDINANCE CONTAINER	2880 LINDA LANE W,WL
113	1/26/24	TRAFFIC 24 HR TAG	100 LITTLETON ST, WEST LAFAYETTE
114	1/26/24	WLORDINANCE CONTAINER	2204 MIAMI TRAIL,WL
115	1/26/24	WLORDINANCE CONTAINER	2252 INDIAN TRAIL,WL
116	1/26/24	WLORDINANCE CONTAINER	136 SENECA LN, WEST LAFAYETTE
117	1/26/24	WLORDINANCE CONTAINER	140 SENECA LN,WL
118	1/26/24	WLORDINANCE SIGNAGE	2410 N SALISBURY ST, WEST LAFAYETTE
119	1/26/24	WLORDINANCE TRASH	101 QUINCY ST, WEST LAFAYETTE
120	1/29/24	ANIMAL COMPLAINT	601 MATTHEW ST, WEST LAFAYETTE
121	1/29/24	ANIMAL COMPLAINT	2332 YEAGER RD, WEST LAFAYETTE
122	1/29/24	ANIMAL COMPLAINT	1200 BLOCK N SALISBURY ST,WL
123	1/30/24	ANIMAL COMPLAINT	360 BROWN ST, WEST LAFAYETTE
124	1/30/24	ANIMAL COMPLAINT	2332 YEAGER RD,WL
125	1/30/24	WHEEL LOCK	1300 DISTRICT BLVD, WEST LAFAYETTE
126	1/30/24	WLORDINANCE TRASH	128 NORTHWESTERN AVE, WEST LAFAYETTE
127	1/30/24	EXPATROL	1415 WOODLAND AVE, WEST LAFAYETTE
128	1/30/24	GRAFFITI	115 N CHAUNCEY
129	1/30/24	WLORDINANCE TRASH	1314 N SALISBURY
130	1/31/24	PARKING PROBLEM	2 N SALISBURY ST, WEST LAFAYETTE
131	1/31/24	WLORDINANCE TRASH	306 W STATE
132	1/31/24	FOLLOW UP	1311 N SALISBURY ST, WEST LAFAYETTE
133	1/31/24	WLORDINANCE TRASH	2367 YEAGER RD, WEST LAFAYETTE
134	1/31/24	ANIMAL COMPLAINT	100 BLOCK TAPAWINGO DR,WL
135	1/31/24	TRAFFIC 24 HR TAG	1000 5TH ST, WEST LAFAYETTE
136	1/31/24	ANIMAL COMPLAINT	2332 YEAGER RD, WEST LAFAYETTE
137	1/31/24	WLORDINANCE CONTAINER	3415 BOONE ST, WEST LAFAYETTE
138	1/31/24	WLORDINANCE CONTAINER	3492 BURNLEY DR,WL
139	1/31/24	WLORDINANCE CONTAINER	3483 BURNLEY DR,WL
140	1/31/24	WLORDINANCE CONTAINER	3453 BURNLEY DR,WL

141	1/31/24	FOLLOW UP	601 MATTHEW ST, WEST LAFAYETTE
142	1/31/24	PARKING PROBLEM	305 N SALISBURY ST, WEST LAFAYETTE
143	1/31/24	WHEEL LOCK	325 BROWN ST, WEST LAFAYETTE
144	1/31/24	FOLLOW UP	100 NORTHWESTERN AVE, WEST LAFAYETTE
145	1/31/24	WLORDINANCE TRASH	300 E STATE ST, WEST LAFAYETTE
146	1/31/24	WLORDINANCE TRASH	720 W NAVAJO

City of West Lafayette
Report of Permits Issued
1/1/2024 through 1/31/2024

Permit Type	Appl.	Issued	Owner	Contractor	Location	Description	Project	Est. Cost
Commercial - Build Out	26512	01/30/2024	3464 Bethel LLC	RWE Design Build	3464 Bethel Dr Ste B Parcel # 79-06-02-329-003.000-029	Build out - Heartland Veterinary		$750,000.00
	Total							**$750,000.00**
Commercial - Improvement	26526	01/10/2024	OB Irish LLC	The Smart Pergola	119 N Howard Ave Parcel # 79-07-20-305-002.000-026	Replace damaged pergola - O'Bryan's Nine Irish Brothers		$210,000.00
	26520	01/04/2024	Town Centre 1 LLC Etal.	J&J Residential Remodeling Inc.	208 South St Ste C Parcel # 79-07-19-278-003.000-026	Move walls to expand store	AM/PM General Store	$70,000.00
	26614	01/31/2024	RSS MSBAM2016-C29 - IN WL LLC	The Agave Field LLC	306 E State St Parcel # 79-07-20-330-001.000-026	Converting Karaoke space to dining- Agave Field	The Agave Field LLC	$18,000.00
	Total							**$298,000.00**
Commercial Change Of Use	26525	01/10/2024	Wabash Five LLC.	Berninger, Brian	500 Sagamore Pkwy W Ste 6W Parcel # 79-07-07-252-011.000-026	Change of use - Coding Mind	Adding walls and cosmetic upgrades	$10,000.00
	Total							**$10,000.00**
Electrical	26604	01/18/2024	Morris Rentals LLC	Morris Rentals LLC	125 Wiggins St Unit C Parcel # 79-07-19-277-008.000-026	Pull main to replace breaker		$0.00
	26578	01/02/2024	Awarmtchuk-Klim, Iya & Rausch, Beatrix e	Brand Home Service LLC	135 Pathway Ln Parcel # 79-07-08-352-004.000-026	Service upgrade: 150 amp to 200 amp		$5,500.00

	26594	01/18/2024	Marwood Cooperative	Artisan Electric	136 Littleton St Parcel # 79-07-20-304-004.000-026	Service upgrade: 200 amp to 400 amp		$19,800.00
	26588	01/09/2024	Montgomery, Scott A.	Montgomery, Scott A.	310 Sylvia St Parcel # 79-07-19-228-010.000-026	Replace damaged meter		$0.00
	26612	01/30/2024	Hoffman, Bradley C. & Linda S.	Jefferson Electric LLC	325 Jefferson Dr Parcel # 79-07-18-431-003.000-026	Service upgrade: 100 amp to 200 amp		$6,880.00
	26616	01/30/2024	Barton, Rev. James	Flora Electrical Services	755 Cumberland Ave Parcel # 79-07-07-204-013.000-026	Panel upgrade - 100 amp to 200 amp		$2,000.00
	26602	01/19/2024	Purdue Research Foundation	Marous Brothers Construction, Inc.	1400 Mitch Daniels Blvd Ste U Parcel # 79-06-24-200-009.000-029	Temporary electric for job trailer	ACC Purdue Graduate Student Hsg	$0.00
	Total							**$34,180.00**
Nonprofit - Improvement	26592	01/23/2024	City of West Lafayette	FBi Buildings, Inc.	705 S River Rd Parcel # 79-07-30-200-002.000-029	Enclose & add on to former recycling barns	Street & Sanitation Dept.	$73,832.00
	Total							**$73,832.00**
Pool - Residential	26589	01/18/2024	Brookhaven Homes LLC	Custom Cuts Lawn Care, Inc.	158 Millingden Trl Parcel # 79-03-32-351-022.000-039	Pool		$150,000.00
	Total							**$150,000.00**
Residential - Improvement	26575	01/04/2024	Lancaster, Kristin N. & Matthew C.	Knecht with Nature	202 Pathway Ln Parcel # 79-07-08-378-007.000-026	Add screen porch, expand existing deck		$30,000.00
	26607	01/24/2024	Liddell, James C. & Heather P.	Peterman Heating Cooling & Plumbing	610 Avondale St Parcel # 79-07-06-477-003.000-026	Replace breakers, install GFCI's & surge protector		$12,931.00

	26599	01/18/2024	Scott, Timothy & Ana Ligia	Artisan Electric	746 Northridge Dr Parcel # 79-07-18-401-001.000-026	Service upgrade, add 3 circuits, whole house surge protect		$11,075.00
	26568	01/08/2024	Chen, Yong & Jianyun	Riverside Construction	3408 Hamilton St Parcel # 79-07-06-426-005.000-035	Kitchen remodel		$77,715.00
	26582	01/31/2024	Lorenz, Mark & Brenda	Rasmussen, Lance	3412 Boone St Parcel # 79-07-06-427-010.000-035	Finish basement		$70,000.00
	Total							**$201,721.00**
Residential - New Build	26561	01/09/2024	Jacquier, Sarah & Matthew	Kennedy Homes, LLC	809 Kent Ave Parcel # 79-07-07-252-007.000-026	New single family residence		$450,000.00
	Total							**$450,000.00**
Sign - Permanent	26605	01/25/2024	Pepe's Land Holdings LLC	Hyderabad House Indian Cuisine	117 Northwestern Ave Ste 2 Parcel # 79-07-19-286-009.000-026	Sign - Lucky Store and Hyderabad House Indiana Cuisine		$1,000.00
	26579	01/02/2024	Purdue Research Foundation	Creative, Inc	516 Northwestern Ave Ste 1700 Parcel # 79-07-19-203-013.000-026	Permanent sign - Baked By Brittany		$2,537.00
	26609	01/30/2024	Riverside Covenant Church	Riverside Covenant Church	1850 Woodland Ave Parcel # 79-07-18-204-012.000-026	Permanent sign - Riverside Covenant Church		$168.00
	26601	01/19/2024	Immanuel Reformed Presbyterian Church	Owens, Rudy	2212 Yeager Rd Parcel # 79-07-07-302-009.000-026	Permanent sign - Cross - Redeeming Grace Church		$500.00
	26577	01/04/2024	Menard Inc.	A Sign by Design	2926 US Hwy 52 W Parcel # 79-06-02-151-004.000-029	Permanent sign package: 7 Brew		$25,000.00

	Total							**$29,205.00**
Sign - Temporary	26600	01/24/2024	West Lafayette Redevelopment Commission	West Lafayette Public Library	1496 N Salisbury St Parcel # 79-07-18-277-017.000-026	Temporary banner - Grand View Cottage	West Lafayette Public Library	$0.00
	Total							**$0.00**
Grand Total								**$1,996,938.00**

Permit Type	# Permits	Total Estimated Cost
Commercial - Build Out	1	$750,000.00
Commercial - Improvement	3	$298,000.00
Commercial Change Of Use	1	$10,000.00
Electrical	7	$34,180.00
Nonprofit - Improvement	1	$73,832.00
Pool - Residential	1	$150,000.00
Residential - Improvement	5	$201,721.00
Residential - New Build	1	$450,000.00
Sign - Permanent	5	$29,205.00
Sign - Temporary	1	$0.00
Grand Total	**26**	**$1,996,938.00**

WEST LAFAYETTE BUILDING DEPARTMENT

RENTAL INSPECTION

MONTHLY REPORT

January 2024

Monthly Report for January 2024

RENTAL HOUSING INSPECTION

INITIAL INSPECTIONS		Monthly	Cumulative Total
Number of Properties by Category			
Category 1	Single Family	31	31
Category 3	Multifamily	20	20
Category 4	Converted	7	7
Category 5	Condos	2	2
	Total Number of Properties:	**60**	**60**
Total Number of Units		306	306
Total Number of Violations		113	113
RE-INSPECTIONS		25	25
3rd PARTY INSPECTIONS			
Category 3	Multifamily	0	0
Number of Units		0	0
APPEALS			
Number of Appeals Requested		0	0
CERTIFICATIONS			
Number of Properties by Category			
Category 1	Single Family	38	38
Category 3	Multifamily	13	13
Category 4	Converted	5	5
Category 5	Condos	2	2
	Total Number of Properties:	**58**	**58**
FEES COLLECTED		$30,448	$30,448
LEGAL ACTION			
Number Referred		0	0
Number Resolved		0	0
Liens Filed		0	0
Liens Released		0	0
New Single Family Rentals		4	4
COMPLAINTS			
Tenant		0	0
Other		0	0

Violations by Type		
January 2024		
Number of Units Inspected:	0	
Interior Violations		**Cumulative Totals since 1/1/24**
Electrical	25	25
Plumbing	9	9
HVAC	14	14
Fire Protection Systems	43	43
Egress	0	0
Fire Stop Penetrations	0	0
Improper Use of Space	0	0
Interior Handrails	0	0
Stairs (Interior)	1	1
Windows & Doors	4	4
Interior Paint	0	0
Unsanitary Conditions	0	0
Other (Interior)	15	15
Subtotal Interior Violations:	111	111
Exterior Violations		
Masonry	0	0
Roof	0	0
Gutters & Downspouts	0	0
Siding & Trim	1	1
Stairs (Exterior)	0	0
Balconies	0	0
Ext. Handrails & Guardrails	0	0
Exterior Concrete	0	0
Exterior Paint	0	0
Structural	1	1
Other (Exterior)	0	0
Subtotal Exterior Violations:	2	2
Total Number of Violations:	**113**	**113**

WEST LAFAYETTE
ENGINEERING

Engineering Department
Monthly Report
January – 2024

DEPARTMENT STATISTICS

Permits and Inspections

	Permits Issued	Inspections
Right of Way/Excavation	7	6
Storm Water	0	92

Sewer Taps

	Permits Issued
Regional Sewer Tap – 3 Meadows	1
Regional Sewer Tap – Auburn Meadows	1
Sewer Tap	1

CONSTRUCTION PHASE PROJECTS

- **Sagamore Parkway Trail (INDOT Project)**
  - **Location:** The Sagamore Parkway Trail project is a new, 10-foot asphalt trail construction from Happy Hollow Road to the Wabash River Bridge.
  - **Scope:** The Sagamore Parkway Trail provides a connection from the Nighthawk Trail to the Wabash Heritage Trail, as well as connecting to an existing path across the Wabash River Bridge to the City of Lafayette. The path to the bridge includes a meandering, scenic ride through woods to your destination. The project was awarded to HIS Constructors, Inc., for the amount of $4,978,000.00. This included the installation of the trail, as well as needed stormwater infrastructure including a 96" concrete pipe underneath the trail.
  - **Projected Completion:** The trail will be opened in the spring of 2024.
  - **Update:** The trail construction is completed; erosion control and landscaping are ongoing. Landscaping will be completed in spring 2024.

- **Salisbury Street/Grant Street Corridor Improvements**
  - **Location:** Salisbury Street between Cumberland Avenue and Grant Street, and Grant Street between Salisbury Street and Northwestern Avenue.
  - **Scope:** The Salisbury Street/Grant Street Redevelopment Project aimed to connect our trail systems from north to south, improving access and safety for multimodal travelers. A build-operate-transfer (BOT) with White Construction and GM Development team was agreed to at a guaranteed maximum price of $7,012,499.57. This project includes pavement overlay between Grant Street and Cumberland Avenue, pavement preservation,

curb reconstruction, trail construction, pedestrian safety improvements, and traffic signal upgrades.
- **Projected Completion:** Construction was completed in fall 2023, while punch list and final surface for Grant Street will take place in spring 2024.
- **Update:** The project's second phase, which includes Grant Street reconstruction, began in March 2023. Work was focused south of Leslie Avenue in early summer to reduce the impact to the West Lafayette Junior/Senior High School. Over the construction season, crews removed and replaced curb and gutter, installed new storm sewer lines, constructed a 10-foot non-motorized trail, and installed six retaining walls along Grant Street. After construction, a slurry seal surface treatment was put in place south of Leslie Avenue. The contractor who performed the slurry seal stated that temperatures were too cold the day of the treatment and they will need to return in the spring for an additional coat. At that time they will also seal Grant Street north of Leslie Avenue. Crews will be working in spring 2024 on punch list items and landscaping holdovers. Additionally, one section of sidewalk on Salisbury Street north of Navajo has yet to be constructed.

DESIGN PHASE PROJECTS

- **Cherry Lane Trail**
  - **Location:** Cherry Lane between Northwestern Avenue and US-231.
  - **Scope:** To include a paved non-motorized trail connecting US-231 to Northwestern Avenue. The current design places the trail on the south side of the road.
  - **Update:** The Design Phase has been completed, and a construction start date has not been scheduled. Bids for the Cherry Lane Trail project were opened in May 2023; however, due to unexpected project cost, the project went out for re-bid in December 2023. It is currently in the bid stages. Bids were opened in January 2024 with an expected construction start date of May 2024.

- **Soldiers Home Road (INDOT Project)**
  - **Location:** Rural to urban cross-section conversion from Old US 52 to Kalberer Road.
  - **Scope:** To include pavement reconstruction, new sidewalk & trail construction, and stormwater drainage improvements. Soldiers Home Road is a minor arterial in need of reconstruction to accommodate increased traffic and pedestrian demands, as well as to correct structural pavement issues.
  - **Update:** The project is currently in the Design Phase and construction will not begin until 2028. A second public meeting took place on January 18, 2024.

Visit WLmoves or the Engineering Department page for information about projects including Soldiers Home Road and Cherry Lane Trail.

APPLICATION FORM
CITY OF WEST LAFAYETTE BOARDS AND COMMISSIONS

Please use this form to express your interest in serving on a particular board or commission. You may attach additional material if you wish. Please note that applications are kept on file for eighteen months. The City of West Lafayette makes appointments to City Boards and Commissions at their regular meetings as vacancies occur. Completed applications are public documents and are subject to public records request. Please only provide information you are comfortable sharing. If you prefer not to provide all contact information publicly, please supply it separately for internal use. Some boards/commissions have additional requirements. The City will follow up if necessary. To learn more and to find a complete list of boards/commissions visit: westlafayette.in.gov/boards/

General Questions:

Have you been a City resident for at least 12 months? ☑ Yes ☐ No
Are you currently in default to the City of West Lafayette? ☐ Yes ☑ No
Are you related to any City of West Lafayette public official (including by marriage)? ☐ Yes ☑ No
Do you have any pending litigation against the City? ☐ Yes ☑ No
Are you a convicted felon of a violent crime? ☐ Yes ☑ No

Name of City Board or Commission: If applying for more than one board/commission, please list order of preference:

1.) Redevelopment Commission

2.)

3.)

Applicant Name: Arnold Chen
Home Address: 818 Sparta Street
Occupation: Professor
Business Address:
Email Address: arnold_chen@hotmail.com

Phone: 510-390-1042
Business: Purdue University
Phone: 765-494-9404

Are you currently serving or have you served on any municipal/local government board or commissions? If so, please list the location and provide approximate dates:

none

Please answer each question in as much detail as possible

Education/Credentials:

Graduate of West Lafayette High School!
Bachelors of Science - Purdue University - Electrical Engineering
Masters of Science - University of Illinois - Electrical and Computer

Professional activities that relate to this board(s)/commission(s):

Managing Director of the Burton D. Morgan Center for Entrepreneurship at Purdue University 2017-2024
Various leadership positions at several Silicon Valley startups (1998-2015)

Community activities that relate to this board(s)/commission(s):

None

Why are you interested in serving on this board(s)/commission(s)?

Like many in the community, I grew up in West Lafayette in 70's and 80's. I ended up in California for my first job and spent almost 20 years out west. In 2015 my wife and two kids decided to relocate back to West Lafayette to

What talents or experience would you bring to the board(s)/commission(s)?

In my role as the managing director of Purdue's Center for Entrepreneurship, I utilized various skills, including building relationships, coaching early-stage startup companies, and analyzing business models. My startup experience in

Any other comments or information you wish to provide to the mayor and the City Commissioners?

Are you involved in any personal, professional or business pursuit that would affect your ability to make fair and impartial recommendations as a member of a City advisory board or commission? ☐ Yes ☑ No

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Appointed members are expected to attend all meetings. A member who misses more than three (3) consecutive unexcused meetings or 1/3 of all meetings will resign to the board/commission chair. Are you aware of the meeting schedule and are you available to attend regularly scheduled meetings? ☑ Yes ☐ No

Signature Arnold Digitally signed by Arnold Date: 2024.01.24 14:21:11 -05'00' Date 1/24/2024

I certify that there are no misrepresentations, omissions or falsification on this application and by signing this application I give consent to the City to conduct a background check to verify the information I have provided.

Please return this form with any attachments to: clerk@westlafayette.in.gov; or mail to: City Clerk City of West Lafayette, 222 N. Chauncey Avenue, West Lafayette, IN 47906.

Thank you for your interest in serving as a volunteer board or commission member. Your willingness to serve is greatly appreciated.

APPLICATION FORM
CITY OF WEST LAFAYETTE BOARDS AND COMMISSIONS

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General Questions:

Have you been a City resident for at least 12 months? ☑ Yes ☐ No
Are you currently in default to the City of West Lafayette? ☐ Yes ☑ No
Are you related to any City of West Lafayette public official (including by marriage)? ☐ Yes ☑ No
Do you have any pending litigation against the City? ☐ Yes ☑ No
Are you a convicted felon of a violent crime? ☐ Yes ☑ No

Name of City Board or Commission: If applying for more than one board/commission, please list order of preference:

1.) Traffic Commission

2.)

3.)

Applicant Name: Elizabeth Strickland
Home Address: 703 Sugar Hill Dr
Occupation: Professor
Business Address: 715 Clinic Dr
Email Address: estrick@purdue.edu

Phone: (765)427-1073
Business: Purdue University
Phone: (765)427-1073

Are you currently serving or have you served on any municipal/local government board or commissions? If so, please list the location and provide approximate dates:

No

Please answer each question in as much detail as possible

Education/Credentials:

BA, MS, PhD

Professional activities that relate to this board(s)/commission(s):

Community activities that relate to this board(s)/commission(s):

I walk, drive and bike regularly in the community.

Why are you interested in serving on this board(s)/commission(s)?

I want to serve the community, and have participated in efforts to improve traffic issues in my neighborhood

What talents or experience would you bring to the board(s)/commission(s)?

I have a lot of experience working with other people, I am a good communicator and writer

Any other comments or information you wish to provide to the mayor and the City Commissioners?

A current member of the Traffic Commission, Stacey Burr, encouraged me to apply.

Are you involved in any personal, professional or business pursuit that would affect your ability to make fair and impartial recommendations as a member of a City advisory board or commission? ☐ Yes ☑ No

---

Appointed members are expected to attend all meetings. A member who misses more than three (3) consecutive unexcused meetings or 1/3 of all meetings will resign to the board/commission chair. Are you aware of the meeting schedule and are you available to attend regularly scheduled meetings? ☑ Yes ☐ No

Signature Elizabeth Strickland Digitally signed by Elizabeth Strickland Date: 2024.01.10 16:22:09 -05'00' Date

I certify that there are no misrepresentations, omissions or falsification on this application and by signing this application I give consent to the City to conduct a background check to verify the information I have provided.

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Thank you for your interest in serving as a volunteer board or commission member. Your willingness to serve is greatly appreciated.

City of West Lafayette, Indiana
Budget Report - YTD
January, 2024

Row Labels	Original Appropriation	Transfers/ Adjustments	Revised Budget	YTD Expensed	Encumbrances	Available Budget	% Used
1010 General Fund	19,165,462	393,267	19,558,729	1,510,781	507,857	17,540,090	10%
2010 Motor Vehicle Highway (MVH)	2,349,042	456,720	2,805,762	93,028	59,962	2,652,772	5%
2015 MVH-Restricted	555,000	590,247	1,145,247	129,363	462,524	553,360	52%
2020 Local Road & Street	408,600	172,690	581,290	44,164	163,615	373,511	36%
2040 Parks and Recreation	1,795,946	50,502	1,846,448	144,928	44,007	1,657,513	10%
2090 Economic Development IT	3,123,794	783,081	3,906,875	182,423	683,754	3,040,699	22%
2330 Law Enforce Continuing Ed	18,500	-	18,500	6,051	-	12,449	33%
2490 Public Safety LIT	980,531	98,378	1,078,909	49,364	78,523	951,022	12%
2540 Rental Housing Inspection	312,496	248	312,744	27,101	-	285,643	9%
2780 Fire Fighting	8,000	418	8,418	-	-	8,418	0%
4020 Cumulative Capital Dev	935,700	287,007	1,222,707	129,077	6,224	1,087,406	11%
4180 Coronavirus ARPA Fund	-	1,996,639	1,996,639	714,300	1,282,339	-	100%
8010 Fire Pension-1937	745,342	-	745,342	55,627	-	689,715	7%
8020 Police Pension-1925	818,211	-	818,211	60,965	-	757,246	7%
Grand Total	**31,216,624**	**4,829,196**	**36,045,820**	**3,147,172**	**3,288,804**	**29,609,844**	**18%**

Submitted by the Historic Preservation Commission
and the Department of Development

ORDINANCE NO. 01-2024

HISTORIC PRESERVATION COMMISSION:
ADDITIONAL HISTORIC DISTRICT

WHEREAS, the Common Council of the City of West Lafayette passed Ordinance 09-11 (Third Amended) which established an Historic Preservation Commission which had an initial purpose to solicit public input and formulate a draft of an Historic Preservation Ordinance for recommendation and submission to the Council; and

WHEREAS, the initial purpose of the Historic Preservation Commission has been fulfilled and the following is recommended by the Commission to the Council for its consideration and action.

WHEREAS, the boundaries, powers, duties guidelines and procedures of the Historic Preservation Commission were granted by Ordinance No. 19-13.

WHEREAS, the Historic Preservation Commission holds certain powers to designate additional Historic Districts.

WHEREAS, two additional properties have voluntarily requested special protection under the Historic Preservation Ordinance.

And, WHEREAS, the property fulfills the requirement of being historic by existing for at least 50 years and has architectural or historic significance, as recognized by the Historic Preservation Commission.

NOW THEREFORE, BE IT ORDAINED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE THAT:

First, there is added to the West Lafayette City Code Chapter 18, Article II two additional properties as referenced in the attached Exhibit: 2024 Historic District Map.

Second, per Chapter 18, Section 18-2 (d) of the City Code, this map will be recorded with the Tippecanoe County Recorder.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____, AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____, 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

	AYE	NAY	ABSENT	ABSTAIN
Bellisario				
Blanco				
Burr				
Dennis				
Lee				
Leverenz				
Parker				
Sanders				
Veidemanis				

_____
(Council President), Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____, 2024.

_____
Sana G. Booker, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____, 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

2024 Historic District Map (Ordinance No. 01 -2024)

Parcel ID	79-06-24-200-001.000-029	**Alternate ID**	134-07400-0038	**Owner Address**	MCCORMICK CEMETERY CO
Sec/Twp/Rng	24-23-5	**Class**	690 - Exempt Cemetery		2899 KLONOI KE RO
Property Address	MCCORMICK RD LAFAYETTE, IN 47906	**Acreage**	1.5		WEST LAFAYETTE

District	WEST LAFAYETTE -WABASH -TSC 8
Brief Tax Description	PT E NW SEC 24 TWP 23 R51.50A (Note: Not to be used on legal documents)

2024 Historic District Map (Ordinance No. 01-2024)

Parcel ID	79-06-02-100-005.000-029	**Alternate ID**	134-06500-0113	**Owner Address**	MARTIN SAMUEL HEIRS
Sec/Twp/Rng	2-23-5	**Class**	690 - Exempt Cemetery		2899 KLONDIKE RD
Property Address	US 52 W LAFAYETTE, IN 47906	**Acreage**	1.86		WEST LAFAYETTE

District	WEST LAFAYETTE -WABASH -TSC B
Brief Tax Description	PT S NW SEC 2TWP 23 R51.86A BURTON CEMETERY (Note: Not to be used on legal documents)

Sponsored by: Mayor John R. Dennis

ORDINANCE NO. 02-2024 (Amended)

AN ORDINANCE AMENDING THE WEST LAFAYETTE TRAFFIC COMMISSION (SEC. 38-98) TO MODIFY THE MEMBERSHIP QUALIFICATIONS FOR CITIZEN REPRESENTATIVES

WHEREAS, the Traffic Commission established by West Lafayette Code Sec. 38-98(2)a provides that the Common Council will appoint "One representative from each of the six council districts of the City"; and

WHEREAS, it has been difficult to always find a citizen representative from each of the six Council districts of the City, which has caused some seats to be unfilled for significant periods of time, and which interferes with the effective operation of the Traffic Commission; and

WHEREAS, each of the six Council districts should have a citizen representative whenever reasonably possible.

NOW THEREFORE be it Ordained that West Lafayette City Code Sec. 38-98(2)a is hereby deleted, and the following bold language is inserted in complete substitution therefor:

Each representative shall be a citizen of the City with preference being given to appointments which result in a citizen representative residing in each of the six city council districts.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____ AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____ 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

	AYE	NAY	ABSENT	ABSTAIN
Bellisario				
Blanco				
Burr				
Dennis				
Lee				
Leverenz				
Parker				
Sanders				
Veidemanis				

_____
Kathy Parker, Presiding Officer

Attest:

_____
Nichole A. Foster, First Deputy Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____ 2024.

_____
Nichole A. Foster, First Deputy Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____ 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Nichole A. Foster, First Deputy Clerk

Sponsored by: Mayor John R. Dennis

ORDINANCE NO. 02-2024

AN ORDINANCE AMENDING THE WEST LAFAYETTE TRAFFIC COMMISSION (SEC. 38-98) TO MODIFY THE MEMBERSHIP QUALIFICATIONS FOR CITIZEN REPRESENTATIVES

WHEREAS, the Traffic Commission established by West Lafayette Code Sec. 38-98(2)a provides that the Common Council will appoint "One representative from each of the six council districts of the City"; and

WHEREAS, it has been difficult to find a citizen representative from council district 1 which has caused the appointment for council district 1 to be unfilled for significant time periods which interferes with the effective operation of the Traffic Commission; and

WHEREAS, each of the six Council districts should have a citizen representative whenever reasonably possible.

NOW THEREFORE be it Ordained that West Lafayette City Code Sec. 38-98(2)a is hereby deleted, and the following bold language is inserted in complete substitution therefor:

Each representative shall be a citizen of the City with preference being given to appointments which result in a citizen representative residing in each of the six city council districts.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____ AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____ 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

	AYE	NAY	ABSENT	ABSTAIN
Bellisario				
Blanco				
Burr				
Dennis				
Lee				
Leverenz				
Parker				
Sanders				
Veidemanis				

_____
(Council President), Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____ 2024.

_____
Sana G. Booker, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____ 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

Sponsored by Erin R. Easter, Mayor

ORDINANCE NO. _____

AN ORDINANCE

TRANSFERRING CERTAIN LAND AND ACCEPTING CERTAIN LAND IN THE CITY OF WEST LAFAYETTE, INDIANA

AND

VACATING PORTIONS OF HOWARD AVENUE AND BROWN STREET

WHEREAS, after due Notice and Public Hearing, the Common Council of the City of West Lafayette did consider on the _____ day of _____, 2024, the following questions set forth in the Petition for Transfer of Real Estate; Petition to Vacate Right-of-Way filed by Landmark Properties, Inc., an Indiana corporation ("Landmark") as the designated and duly authorized representative for the following entities and/or persons: 300 Brown, LLC, an Indiana limited liability company ("300 Brown"); B.T.O., LLC, an Indiana limited liability company ("BTO"); Bruno's Swiss Inn, Inc., an Indiana corporation ("Swiss Inn"); Howard Avenue Partners LLC, an Indiana limited liability company ("HAP"); Naresh M. Vashi ("Vashi"); and OB Irish LLC, an Indiana limited liability company ("Nine Irish"):

1. transferring certain real estate located in West Lafayette, Indiana consisting of approximately **0.045 acres** and having **State Identification No. 79-07-20-300-005.000-026** ("Transfer Real Estate 1"), which said Transfer Real Estate 1 is labeled 15 on the Transfer and Vacation Exhibit (defined below) and is more particularly described in the deed attached hereto and made a part hereof as **EXHIBIT 1**, to Landmark State Street Surplus, LLC, an Indiana limited liability company, an affiliate of Landmark ("LSSS");

2. transferring certain real estate located in West Lafayette, Indiana consisting of approximately **0.0367 acres** and having **State Identification No. 79-07-20-306-009.000-026** ("Transfer Real Estate 2"), which said Transfer Real Estate 2 is labeled 2 on the Transfer and Vacation Exhibit and is more particularly described in the deed attached hereto and made a part hereof as **EXHIBIT 2**, to LSSS;

3. transferring certain real estate located in West Lafayette, Indiana located near the intersection of N River Road and State Street ("Transfer Real Estate 3"), which said real estate is

described and depicted in **EXHIBIT 6** attached hereto and made a part hereof. The Transfer Real Estate 3 is also labeled 11 on the Transfer and Vacation Exhibit.

4. vacating a portion of Howard Avenue ("Vacated Howard Avenue") more particularly described in **EXHIBIT 3** attached hereto and made a part hereof and depicted in **EXHIBIT 4** attached hereto and made a part hereof ("Transfer and Vacation Exhibit");
5. vacating a portion of Brown Street ("Vacated Brown Street") depicted on the Transfer and Vacation Exhibit;
6. vacating a portion of the public alley ("Alley") owned by the City described in **EXHIBIT 5** attached hereto and made a part hereof and depicted on the Transfer and Vacation Exhibit; and
7. accepting for public use the Relocated Right-of-Way (defined below) depicted in the Transfer and Vacation Exhibit.

NOW, THEREFORE, BE IT ORDAINED by the Common Council of the City of West Lafayette, Indiana, that:

Section 1. The City is the owner of certain real estate located in West Lafayette, Indiana having State Identification No. 79-07-20-300-005.000-026 and identified above as the Transfer Real Estate 1. For several reasons, the City no longer wishes to own the Transfer Real Estate 1. As a result of numerous factors, the City believes that the Transfer Real Estate 1 has a value of less than $25,000.00. The City hereby agrees to transfer, set over, and convey the Transfer Real Estate 1 to Landmark State Street Surplus, LLC, an Indiana limited liability company, via a quit claim deed for no monetary consideration. The Transfer Real Estate 1 shall become a part of the Landmark on the Levee Planned Development ("Planned Development").

Section 2. The City is the owner of certain real estate located in West Lafayette, Indiana having State Identification No. 79-07-20-306-009.000-026 and identified above as the Transfer Real Estate 2. For several reasons, the City no longer wishes to own the Transfer Real Estate 2. As a result of numerous factors, the City believes that the Transfer Real Estate 2 has a value of less than $25,000.00. The City hereby agrees to transfer, set over, and convey the Transfer Real Estate 2 to Landmark State Street Surplus, LLC, an Indiana limited liability company, via a quit claim deed for no monetary consideration. The Transfer Real Estate 2 shall become a part of the Planned Development.

Section 3. The City is the owner of certain real estate located in West Lafayette, Indiana and identified above as the Transfer Real Estate 3. For several reasons, the City no longer wishes to own the Transfer Real Estate 3. As a result of numerous factors, the City believes that the Transfer Real Estate 3 has a value of less than $25,000.00. The City hereby agrees to transfer, set over, and convey the Transfer Real Estate 3 to Landmark State Street Surplus, LLC, an Indiana limited liability company, via a quit

claim deed for no monetary consideration. The Transfer Real Estate 3 shall become a part of the Planned Development.

Section 4. 300 Brown is the owner of the property commonly known as 300 Brown Street, having State Identification No. 79-07-20-300-002.000-026 ("300 Brown Real Estate"). The 300 Brown Real Estate is labeled 14 on the Transfer and Vacation Exhibit.

Section 5. BTO is the owner of the property commonly known as 212 Brown Street, having State Identification No. 79-07-20-305-005.000-026 ("BTO Real Estate"). The BTO Real Estate is labeled 12 on the Transfer and Vacation Exhibit.

Section 6. Swiss Inn is the owner of the property commonly known as 224 E State Street, having State Identification No. 79-07-20-306-004.000-026 ("Swiss Inn Real Estate"). The Swiss Inn Real Estate is labeled 1 on the Transfer and Vacation Exhibit.

Section 7. HAP is the owner of the property commonly known as 140 Howard Avenue, having State Identification No. 79-07-20-301-002.000-026 ("HAP Real Estate"). The HAP Real Estate is labeled 13 on the Transfer and Vacation Exhibit.

Section 8. Vashi is the owner of the property commonly known as 200 Brown Street, having State Identification No. 79-07-20-305-001.000-026 ("Vashi Real Estate"). The Vashi Real Estate is labeled 6 on the Transfer and Vacation Exhibit.

Section 9. Nine Irish is the owner of the property commonly known as 119 Howard Avenue, having State Identification No. 79-07-20-305-002.000-026 ("Nine Irish Real Estate").

Section 10. The 300 Brown Real Estate, BTO Real Estate, Swiss Inn Real Estate, HAP Real Estate, and Vashi Real Estate are intended to be a part of the Planned Development. For the avoidance of doubt, it is understood that the Nine Irish Real Estate will not be a part of the Planned Development.

Section 11. The portion of Howard Avenue lying between the Nine Irish Real Estate and the HAP Real Estate and shown on the Transfer and Vacation Exhibit is hereby vacated. The area labeled A on the Transfer and Vacation Exhibit shall be transferred and attach to the Nine Irish Real Estate. The area labeled B on the Transfer and Vacation Exhibit shall be transferred and attach to the HAP Real Estate (part of this area to be transferred to the HAP Real Estate also lies to the east of the BTO Real Estate).

Section 12. The portion of Howard Avenue lying between the BTO Real Estate and the HAP Real Estate and the 300 Brown Real Estate and shown on the Transfer and Vacation Exhibit is hereby vacated. The area labeled C on the Transfer and Vacation Exhibit shall be transferred and attach to the

BTO Real Estate. The area labeled D on the Transfer and Vacation Exhibit shall be transferred and attach to the 300 Brown Real Estate.

Section 13. The portion of Brown Street lying between the BTO Real Estate and the Swiss Inn Real Estate and shown on the Transfer and Vacation Exhibit is hereby vacated. The area labeled E on the Transfer and Vacation Exhibit shall be transferred and attach to the BTO Real Estate. The area labeled F on the Transfer and Vacation Exhibit shall be transferred and attach to the Swiss Inn Real Estate.

Section 14. The portion of the Alley lying adjacent to the eastern boundary of the Vashi Real Estate and shown on the Transfer and Vacation Exhibit is hereby vacated. The area labeled G on the Transfer and Vacation Exhibit shall be transferred and attach to the Vashi Real Estate.

Section 15. The portion of Brown Street located adjacent to the southern boundary of the Vashi Real Estate and shown on the Transfer and Vacation Exhibit is hereby vacated. The area labeled H on the Transfer and Vacation Exhibit shall be transferred and attach to the Vashi Real Estate.

Section 16. As part of the Planned Development, Howard Avenue shall be relocated (and potentially renamed) ("Relocated Right-of-Way"). The Relocated Right-of-Way shall be dedicated to the public upon the recording of the final plat for the Planned Development.

Section 17. The purpose of the vacations, transfer and dedication is to facilitate the construction of the Planned Development. In connection with the Planned Development the developer of the Planned Development shall be responsible for constructing the Relocated Right-of-Way. The Relocated Right-of-Way shall be dedicated to the public and shall connect Brown Street and a new east-west right-of-way connecting to North River Road. The Relocated Right-of-Way shall be constructed in compliance with all City specifications and regulations and all applicable State and Federal laws, rules and regulations.

Section 18. The vacated rights-of-way and alley shall each be closed as a public way upon vacation pursuant to this Ordinance. Upon completion, the Relocated Right-of-Way shall be opened and ready as a public way.

Section 19. None of the above transferees or their respective assigns or successors shall be required to compensate the City further for the fair market value of the rights-of-way being vacated other than transferring to the City the land to be a part of the Relocated Right-of-Way since the value received is deemed to be equal to or greater than the value given.

Section 20. The Clerk of the City Council is directed to furnish a copy of this Ordinance, duly executed, to the Recorder of Tippecanoe County for recording, and to the Auditor of Tippecanoe County.

Section 21. Attached hereto and made a part hereof as **EXHIBIT 7** are legal descriptions for and depictions of the portions of Howard Avenue that will be vacated and transferred to the adjacent property owner.

[The remainder of this page intentionally left blank]

INTRODUCED ON FIRST READING ON THE ____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____ AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____, 2024, HAVING BEEN PASSED BY A VOTE OF _____ IN FAVOR AND _____ OPPOSED, THE ROLL CALL VOTE BEING:

	AYE	NAY	ABSENT	ABSTAIN
Bellisario				
Blanco				
Burr				
Dennis				
Lee				
Leverenz				
Parker				
Sanders				
Veidemanis				

_____
(Council President), Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____, 2024.

_____
Sana G. Booker, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____, 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

EXHIBIT 1

DULY ENTERED FOR TAXATION
SUBJECT TO FINAL ACCEPTANCE
FOR TRANSFER

DEC 08 1999

AUDITOR OF TIPP. CO. TK

9932723 12/08/1999 09:51A 1 of 1
Pamela K. Berglund, Tippecanoe County Recorder

Tax Duplicate Nos. 164-02500-0480
164-02500-0491

CORPORATE WARRANTY DEED

THIS INDENTURE WITNESSETH, That Wabash Landing, L.L.C. ("Grantor"), a limited liability corporation organized and existing under the laws of the State of Indiana CONVEYS AND WARRANTS to City of West Lafayette, Tippecanoe County, Indiana ("Grantee"), for the sum of ten and no/100 dollars ($10.00) and other valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the following described real estate in Tippecanoe County, State of Indiana:

> A strip of land fourteen (14) feet in even width off of the entire southern end of the Robert W. Bibler Trust real estate described in Document Number 9708504 in the Office of the Recorder of Tippecanoe County, Indiana, said strip of land being located on a part of Lot 1 in David M. Vaughan's First Addition to the City of West Lafayette, and a part of Lot 12 in Chauncey's Plat of Bottom Lands in the City of West Lafayette, Wabash Township, Tippecanoe County, Indiana, containing 1960 square feet from tax key number 164-02500-0480, containing 155 square feet from tax key number 164-02500-0491 and containing a total of 2115 square feet, more or less.

The above described strip of land is intended to be adjacent to

and contiguous with the northern right-of-way line of Brown Street as per a plat of survey by Ticen Surveying recorded as Document Number 99-19612 in the aforesaid Office of the Recorder.

Subject to all easements, rights-of-way and restrictions of record.

This conveyance is an exempt transaction pursuant to exemption D of the Unified Subdivision Ordinance of Tippecanoe County.

The Grantor hereby certifies that there is no Indiana gross income tax due with respect to this transfer.

The undersigned person executing this deed on behalf of Grantor represent and certify that they are duly elected officers of Grantor and have been fully empowered, by proper resolution of the Board of Directors of Grantor, to execute and deliver this deed; that Grantor has full corporate capacity to convey the real estate described herein; and that all necessary corporate action for the making of such conveyance has been taken and done.

IN WITNESS WHEREOF, Grantor has executed this deed this 28 day of November, 1999.

Wabash Landing, L.L.C.

By: _____
Herman F. Renfro, Partner

STATE OF INDIANA)
) SS:
COUNTY OF Tippecanoe)

Before me, a Notary Public in and for said County and State, personally

appeared Wabash Landing, L.L.C., by Herman F. Renfro, partner,an Indiana Limited Liability corporation, who acknowledged the execution of the foregoing Corporate Warranty Deed for and on behalf of said Grantor, and who, having been duly sworn, stated that any representations therein contained are true.

Witness my hand and Notarial Seal this 8 MCKP ~~X~~TH day of December, 1999.

My Commission Expires:

Oct. 11, 2007

Signature: Sharon K. Baer

Printed: Sharon K. Baer

Notary Public residing in Tippecanoe County, IN.

SEND TAXES TO:

This instrument prepared by:
Joseph T. Bumbleburg, of the firm of
BALL, EGGLESTON, BUMBLEBURG, McBRIDE
WALKEY & STAPLETON, PC
810 Bank One Building P.O. Box 1535
Lafayette, Indiana 47902
Telephone: (765) 742-9046
Attorney # 2987-79

EXHIBIT 2

[redacted]

201616007469 9
201616007469
FILED FOR RECORD IN
TIPPECANOE COUNTY, IN
SHANNON WITHERS, RECORDER
05/09/2016 04:10:09PM
DEED 33.00

Tax ID Nos. 79-07-20-306-001.000-026
79-07-20-308-013.000-026
79-07-20-377-005.000-026

QUITCLAIM DEED

THIS INDENTURE WITNESSETH, That the WEST LAFAYETTE REDEVELOPMENT COMMISSION, governing body of the City of West Lafayette Department of Redevelopment ("Grantor") QUITCLAIMS to INTERLOCAL COOPERATION BOARD OF THE CITY OF WEST LAFAYETTE, INDIANA AND THE TRUSTEES OF PURDUE UNIVERSITY ("Grantee"), established under the Interlocal Cooperation Agreement, dated as of May 19, 2015, by and between the City of West Lafayette, Indiana and The Trustees of Purdue University, for NO consideration, the receipt and sufficiency of which are hereby acknowledged, the real estate in Tippecanoe County, in the State of Indiana more particularly described on Exhibit A attached hereto and incorporated herein by this reference.

The undersigned persons executing this Quitclaim Deed on behalf of Grantor represent and certify that such persons are duly authorized to execute and deliver this Quitclaim Deed pursuant to Resolution RC 2016-5 approved on February 17, 2016 and Resolution RC 2016-6 approved on March 10, 2016; that Grantor has full organizational capacity to convey the real estate described herein; and that all necessary action for the making of such conveyance has been taken and done.

IN WITNESS WHEREOF, Grantor has executed this deed this 10th day of March, 2016.

WEST LAFAYETTE REDEVELOPMENT COMMISSION

By: _____
Lawrence T. Oates

ATTEST:

_____
Stephen B. Curtis

DULY ENTERED FOR TAXATION SUBJECT TO FINAL ACCEPTANCE FOR TRANSFER

MAY 09 2016

AUDITOR OF TIPPECANOE CO.

STATE OF INDIANA)
) SS:
TIPPECANOE COUNTY)

Before me, a Notary Public in and for said County and State, this 10th day of March, 2016, personally appeared the within named LAWRENCE T. OATES and STEPHEN B. CURTIS, who acknowledged the execution of the foregoing Quitclaim Deed as their free act and deed, for the intents and purposes therein contained and swore to the truth of the matters contained therein.

WITNESS my hand and Notarial Seal. I am a resident of Tippecanoe County, State of Indiana.

My Commission Expires:

NOV 30 2023

Thomas L. Brooks Jr
NOTARY PUBLIC

This transfer is for no consideration and a disclosure form is not necessary.

I affirm, under the penalties for perjury, that I have taken reasonable care to redact each Social Security number in this document unless required by law. Thomas L. Brooks, Jr.

This instrument prepared by: Thomas L. Brooks, Jr., of the firm MAYFIELD AND BROOKS, 8 North Third St., Suite 405, P.O. Box 650, Lafayette, IN 47902; Telephone: (765) 423-5454; Fax: (765) 420-8114

EXHIBIT "A"

Project: Re-State
Parcel: 125 Fee Simple
Tax ID: 79-07-20-306-001.000-026

One Hundred thirteen (113) feet off the west end of Lot 13 of the Chauncey Plat of Bottom Lands to the now City of West Lafayette, Tippecanoe County, Indiana.

EXCEPT: A part of Lot 13 in Chauncey's Plat of Bottom Lands to the Town of Chauncey, now West Lafayette, Indiana, the plat of which subdivision is recorded in Deed Record 48, page 278, in the Office of the Recorder of Tippecanoe County, Indiana, described as follows: Beginning at the west corner of said lot; thence North 88 degrees 41 minutes 52 seconds East 40.99 feet along the north line of said lot; thence South 56 degrees 34 minutes 12 seconds East 65.95 feet to the east line of the owner's land; thence South 17 degrees 41 minutes 01 second West 7.66 feet along said east line to the southwestern line of said lot; thence North 65 degrees 29 minutes 53 seconds West 102.96 feet along said southwestern line to the point of beginning and containing 0.027 acres, more or less.

This description was prepared for the City of West Lafayette, Indiana by Jessica L. Stapleton, Indiana Professional Surveyor, License Number LS20600032, on the 11th day of February, 2016.

Jessica L. Stapleton

JESSICA L. STAPLETON
REGISTERED
No.
LS20600032
STATE OF
INDIANA
LAND SURVEYOR

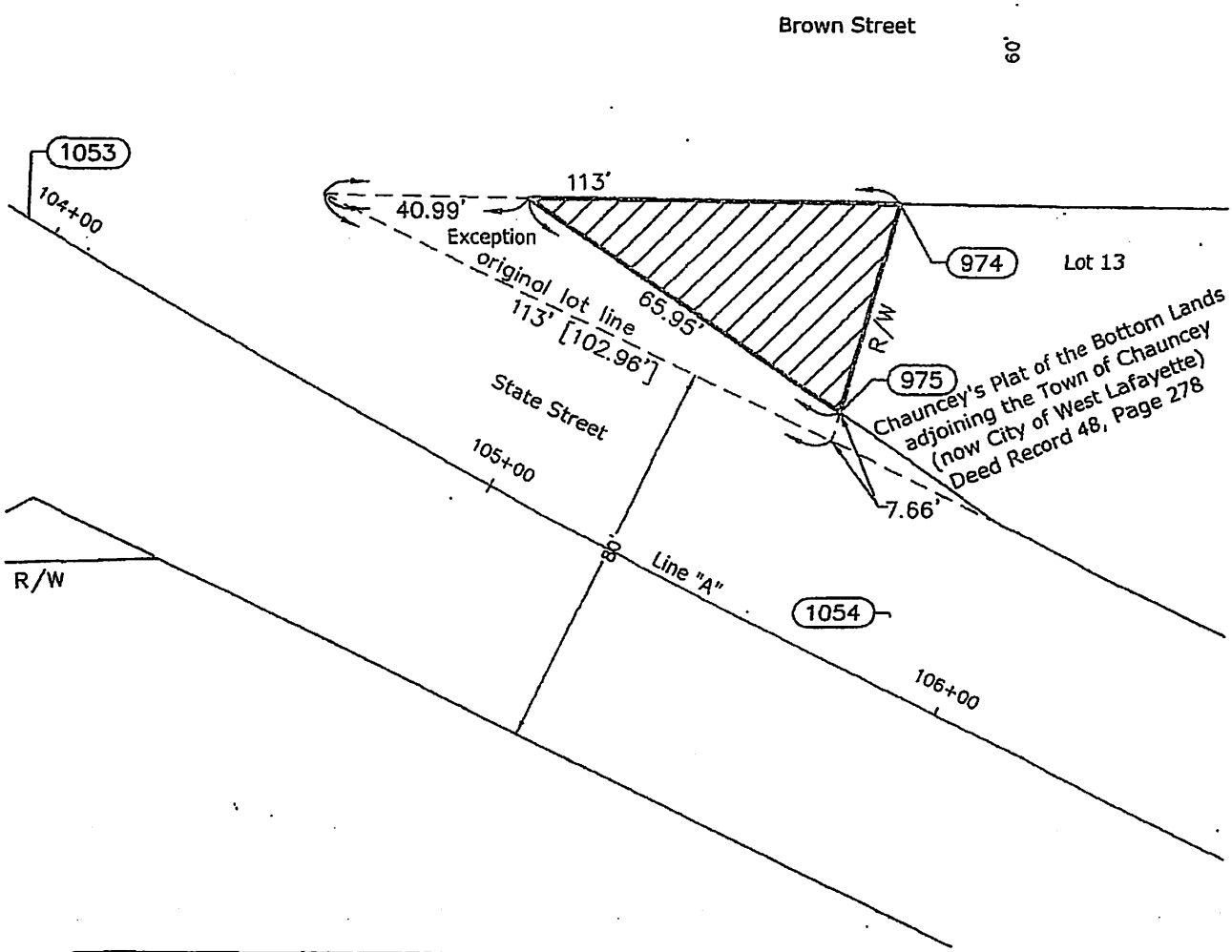
EXHIBIT "B"

RIGHT-OF-WAY PARCEL PLAT

Prepared for the City of West Lafayette, Indiana
by: AMERICAN STRUCTUREPOINT INC.

SHEET 1 OF 3

0 15' 30'
SCALE: 1"=30'



HATCHED AREA IS THE APPROXIMATE TAKING

OWNER:	WEST LAFAYETTE REDEVELOPMENT COMMISSION	DRAWN BY:	CMM
PARCEL:	125	CHECKED BY:	JLS
CODE:	N/A	DES. NO.:	N/A
PROJECT:	RE-STATE		
ROAD:	STATE STREET		
COUNTY:	TIPPECANOE		
SECTION:	20		
TOWNSHIP:	23 NORTH		
RANGE:	4 WEST		

INSTRUMENT NUMBER 9621057, DATED SEPTEMBER 25, 1996
INSTRUMENT NUMBER 9621058, DATED SEPTEMBER 25, 1996
INSTRUMENT NUMBER 9824841, DATED SEPTEMBER 15, 1998

THIS PLAT WAS PREPARED FROM PUBLIC DOCUMENTS AND NOT CHECKED BY A FIELD SURVEY.

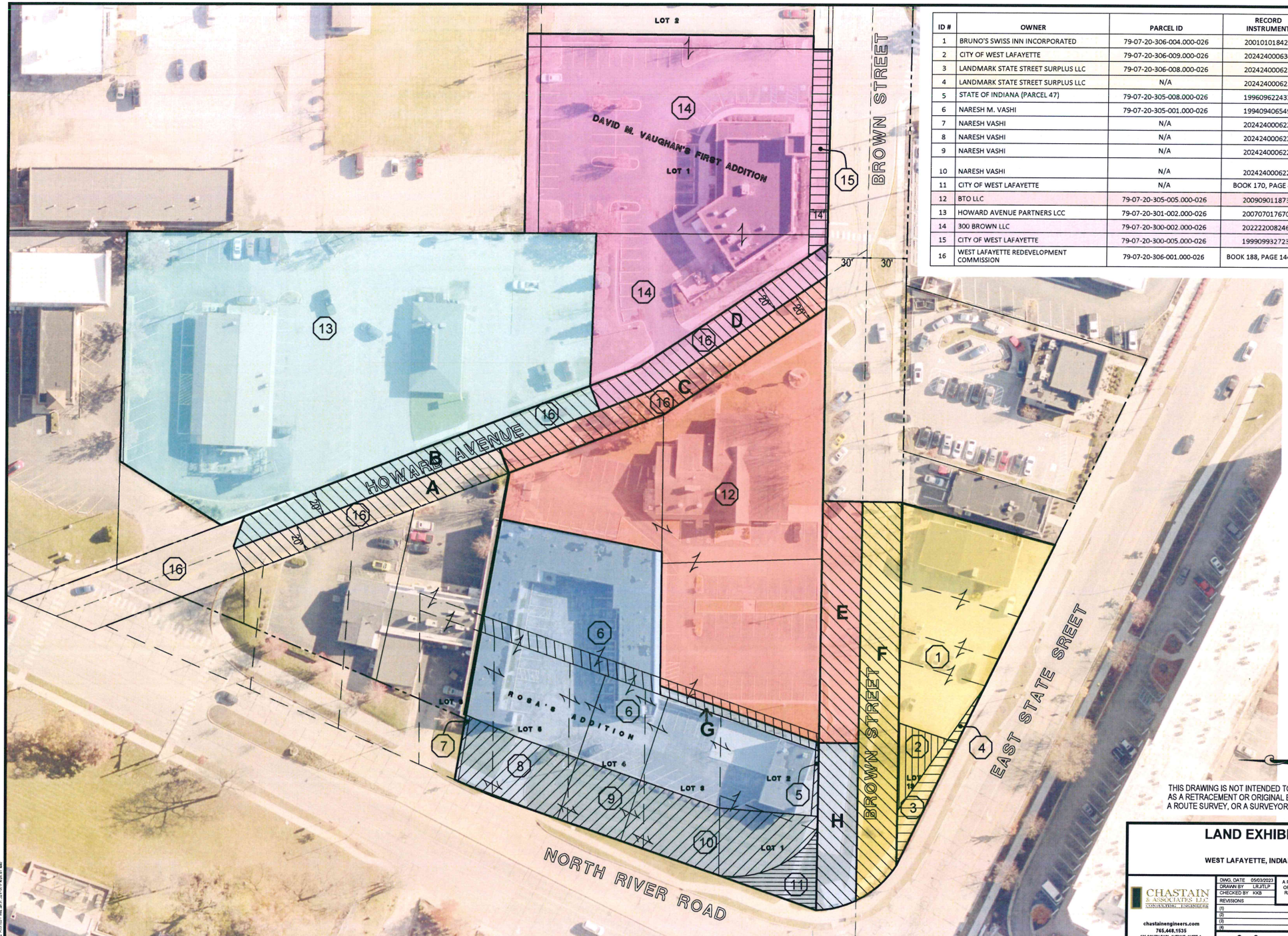
EXHIBIT 3

VACATION OF HOWARD AVENUE-LEGAL DESCRIPTION-[redacted]

A part of Lot Numbered 12 (twelve) in Chauncey's Plat of Bottom Lands, as per the plat thereof, Plat Book 48, Page 277 - 279, recorded January 15th/, 1866, in the Office of the Tippecanoe County Recorder, being platted on a part of the Southwest Quarter of Section Twenty (20), Township Twenty-three (23) North, Range Four (4) West, Wabash Township, Tippecanoe County, Indiana, more particularly described as follows:

Commencing at a point on the south line of a tract of land described in a Corporate Deed to Weida Levee LLC, Document Number 200000005293, recorded March 16, 2000, in the Office of the Tippecanoe County Recorder; said point being North 00°29'59 East, 10.00 feet and South 89°44'13" East, 9.89 feet from the Northeast corner of Lot Numbered 1 in David M. Vaughan's First Addition to the City of West Lafayette, as per the plat thereof, Plat Book 8, Page 25, recorded January 9, 1962, in said Recorder's Office and marked by 5/8" rebar with a plastic cap stamped "Ticen"; thence parallel with the east line of said Lot 1 (being the basis of bearings of the herein described tract) , South 00°16'22" West, 213.95 feet to the North right-of-way of Brown Street, per the Final Plat of Wabash Landing, Phase 1, Part 2, as per the plat thereof, Plat Cabinet AA, Page 170, recorded March 3, 2000 in said Recorders Office; thence along said north right-of-way line North 89°16'56" West, 9.89 feet; thence South 00°15'47" West, 14.00 feet to the North right-of-way line of Brown Street per said Chauncey's Plat of Bottom Lands; thence along said north right-of-way line North 89°17'17" West, 139.93 feet to the Point of Beginning; thence North 89°17'17" West, along said north right -of-way line, 55.41 feet to the western right-of-way line of Howard Avenue; thence along said western right-of-way line for the following two (2) courses; 1) North 33°40'05" West, 145.76 feet; 2) thence North 21°05'35" West, 335.31 feet; thence North 68°54'20" East, 21.85 feet; thence South 70°56'57" East to the eastern right-of-way line of said Howard Avenue, 23.74 feet; thence along said eastern right-of-way line for the following two (2) courses; 1) South 21°05'35" East, 315.60 feet; 2) thence South 33°40'05" East, 151.83 feet; thence South 89°16'56" East, parallel with northerly of and 14.00 feet distant from said northern right-of-way line of Brown Street, 16.33 feet; thence South 00°06'45" West, along the western line said Lot Numbered 1, 13.94 feet to the Point of Beginning, containing 0.45 acres, more or less.

EXHIBIT 4



ID #	OWNER	PARCEL ID	RECORD INSTRUMENT	RECORD DATE
1	BRUNO'S SWISS INN INCORPORATED	79-07-20-306-004.000-026	200101018427	7/18/2001
2	CITY OF WEST LAFAYETTE	79-07-20-306-009.000-026	202424000634	1/17/2024
3	LANDMARK STATE STREET SURPLUS LLC	79-07-20-306-008.000-026	202424000623	1/16/2024
4	LANDMARK STATE STREET SURPLUS LLC	N/A	202424000623	1/16/2024
5	STATE OF INDIANA (PARCEL 47)	79-07-20-305-008.000-026	199609622432	10/25/1996
6	NARESH M. VASHI	79-07-20-305-001.000-026	199409406549	3/31/1994
7	NARESH VASHI	N/A	202424000622	1/16/2024
8	NARESH VASHI	N/A	202424000622	1/16/2024
9	NARESH VASHI	N/A	202424000622	1/16/2024
10	NARESH VASHI	N/A	202424000622	1/16/2024
11	CITY OF WEST LAFAYETTE	N/A	BOOK 170, PAGE 433	4/2/1928
12	BTO LLC	79-07-20-305-005.000-026	200909011873	6/3/2009
13	HOWARD AVENUE PARTNERS LCC	79-07-20-301-002.000-026	200707017670	8/22/2007
14	300 BROWN LLC	79-07-20-300-002.000-026	202222008246	05/092022
15	CITY OF WEST LAFAYETTE	79-07-20-300-005.000-026	199909932723	12/8/1999
16	WEST LAFAYETTE REDEVELOPMENT COMMISSION	79-07-20-306-001.000-026	BOOK 188, PAGE 144-145	11/28/1938

N.T.S.

THIS DRAWING IS NOT INTENDED TO BE REPRESENTED AS A RETRACEMENT OR ORIGINAL BOUNDARY SURVEY, A ROUTE SURVEY, OR A SURVEYOR LOCATION REPORT.

LAND EXHIBIT

WEST LAFAYETTE, INDIANA

CHASTAIN & ASSOCIATES LLC
CONSULTING ENGINEERS
chastainengineers.com
765.448.1535
615 SOUTH EARL AVENUE, SUITE A
LAFAYETTE, INDIANA 47904-2852

DWG. DATE 05/03/2023
DRAWN BY LR/JTLP
CHECKED BY KKB
REVISIONS
(1)
(2)
(3)
(4)

A PART OF THE SOUTHWEST QUARTER OF SECTION 20, TOWNSHIP 23 NORTH, RANGE 4 WEST, WABASH TOWNSHIP, TIPPECANOE COUNTY, INDIANA.

SHEET 2 OF 3 COMMISSION NO. 7820.00

EXHIBIT 5

ALLEY VACATION DESCRIPTION – ROSA'S ADDITION TO WEST LAFAYETTE

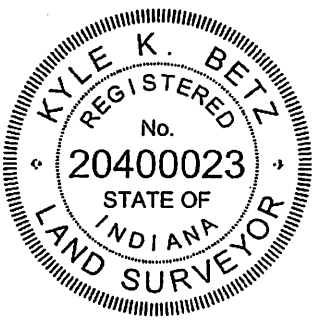
An Alley Twelve (12) feet in even width located along the entire east side of Rosa's Addition to West Lafayette, as per the plat thereof, Plat Book 1, Page 2, and described in Deed Record 93, Page 253, recorded October 27, 1890, in the Office of the Tippecanoe County Recorder, being platted on a part of the Southwest Quarter of Section Twenty (20), Township Twenty-three (23) North, Range Four (4) West, Wabash Township, Tippecanoe County, Indiana, more particularly described as follows:

Beginning at the Southeast corner of Lot 2 (two) in said in said Rosa's Addition, thence along the East line common to Lots Two (2) though Six (6) North 19°21'55" East 317.99 feet to the Northeast corner thereof; thence along the North line of said Rosa's Addition South 89°58'32" East 12.72 feet to the East line thereof; thence along the East line of said Rosa's Addition South 19°21'55" West 318.10 feet to the North line of Brown Street; thence along said North line North 89°29'39" West 12.68 feet to the Point of Beginning, containing 0.088 acres, more or less.

SUBJECT TO ALL EASEMENTS, RESTRICTIONS, AND RIGHTS-OF-WAY OF RECORD

SURVEYOR'S CERTIFICATION:

I, Kyle K. Betz, a Registered Professional Land Surveyor in the State of Indiana, do hereby certify that the above description was prepared under my supervision.



08/25/2023

KYLE K. BETZ (LS20400023) DATE

EXHIBIT 6

A part of Lot numbered One (1) in Rosa's Addition to the City of West Lafayette, Indiana, described as follows:

Commencing at the Northwest corner of said lot, and running thence southward along the east line of Ellsworth Street, and the west line of said lot, seventy eight and fifty hundredths (78.50) feet to the southwest corner thereof; thence east along the line of Brown Street Levee and and along the south line of said lot sixty (60) feet, to the southeast corner thereof, thence in a northwesterly direction; following the line of a curve to the right, as described by a seventy five (75) foot radius, about eighty nine (89) feet to the place of beginning.

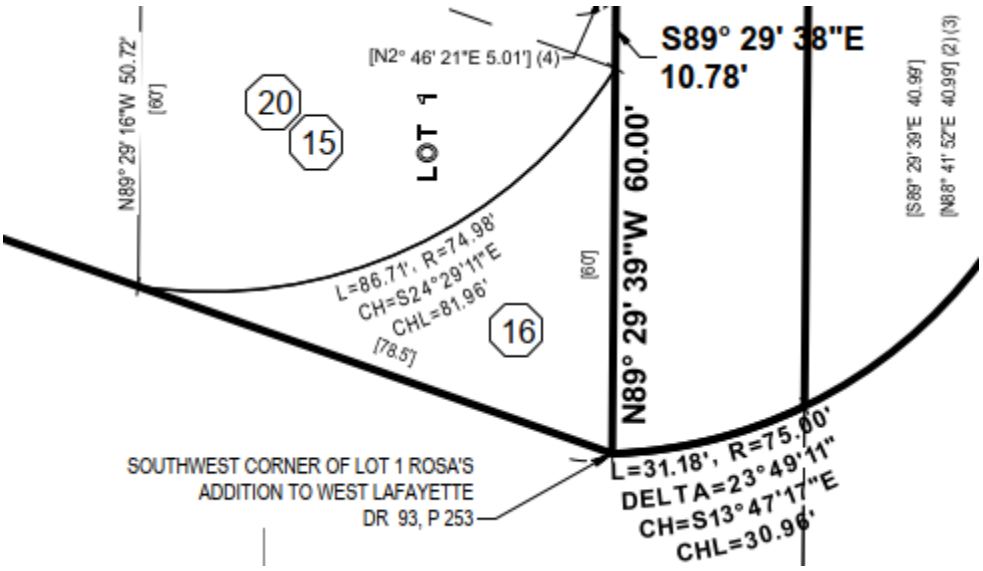
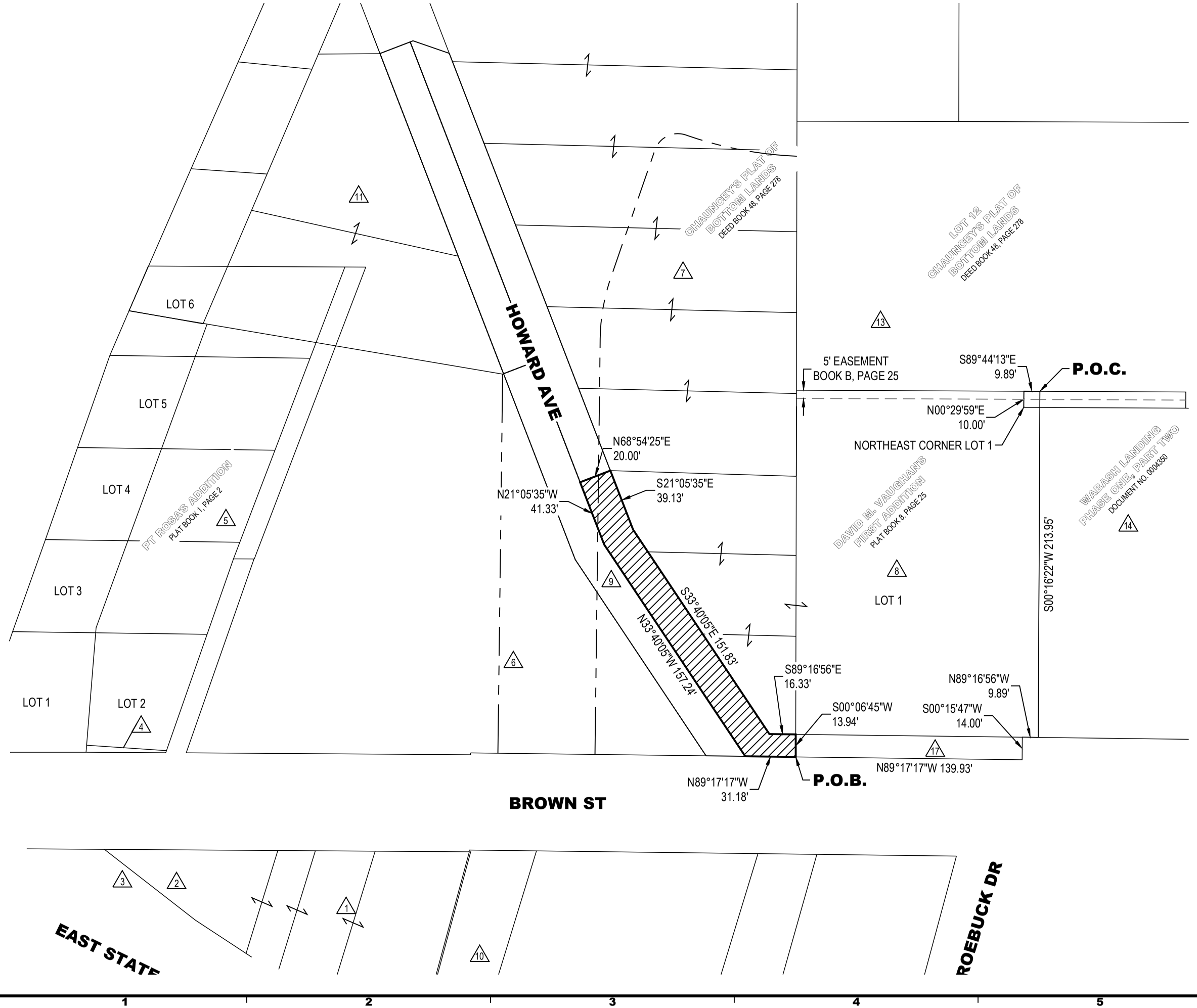


EXHIBIT 7



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4	STATE OF INDIANA	79-07-20-305-008.000-026	199609622432
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10	SPARKLETONE INC	79-07-20-306-005.000-026	BOOK 074-PAGE 1913
11	OB IRISH LLC	79-07-20-305-002.000-026	201414006012
12	DANIEL ST JOHN	79-07-20-301-003.000-026	200404009295
13	WEIDA LEVEE LLC	79-07-20-300-001.000-026	200000005293
14	WABASH LANDING LLC	79-07-20-300-006.000-026	200000004350
15	M GOLDEN H LLC	79-07-20-306-007.000-026	202121023547
16	WEST LAFAYETTE RETAIL LLC	79-07-20-306-006.000-026	201616014558
17	CITY OF WEST LAFAYETTE	79-07-20-300-005.000-026	199909932723

105 North 10th Street
Lafayette, Indiana
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TBIRD
Design Services Corporation
Engineering • Surveying
Environmental • Construction Management

LEVEE REDEVELOPMENT

LANDMARK PROPERTIES, INC
9333 N. MERIDIAN ST., SUITE 350
INDIANAPOLIS, IN 46260

PROJECT: 21099
DATE: 8/2/2023
DRAWING FILE: 21099-HOWARD AVE VACATION TRACT 1.DWG
DRAWN BY: DLP
CHECKED BY: JCN
TITLE: EXHIBIT

FILE: P:\2021\21099 Landmark Properties Levee\DRAWINGS\LAYOUTS & EXHIBITS\21099-HOWARD AVE VACATION TRACT 1.dwg - USER: NICK DIGIACOMO - DATE: Friday, February 2, 2024 9:53:16 AM

VACATION OF HOWARD AVENUE-LEGAL DESCRIPTION-TRACT 1

A part of Lot Numbered 12 (twelve) in Chauncey's Plat of Bottom Lands, as per the plat thereof, Plat Book 48, Page 277 - 279, recorded January 15th/, 1866, in the Office of the Tippecanoe County Recorder, being platted on a part of the Southwest Quarter of Section Twenty (20), Township Twenty-three (23) North, Range Four (4) West, Wabash Township, Tippecanoe County, Indiana, more particularly described as follows:

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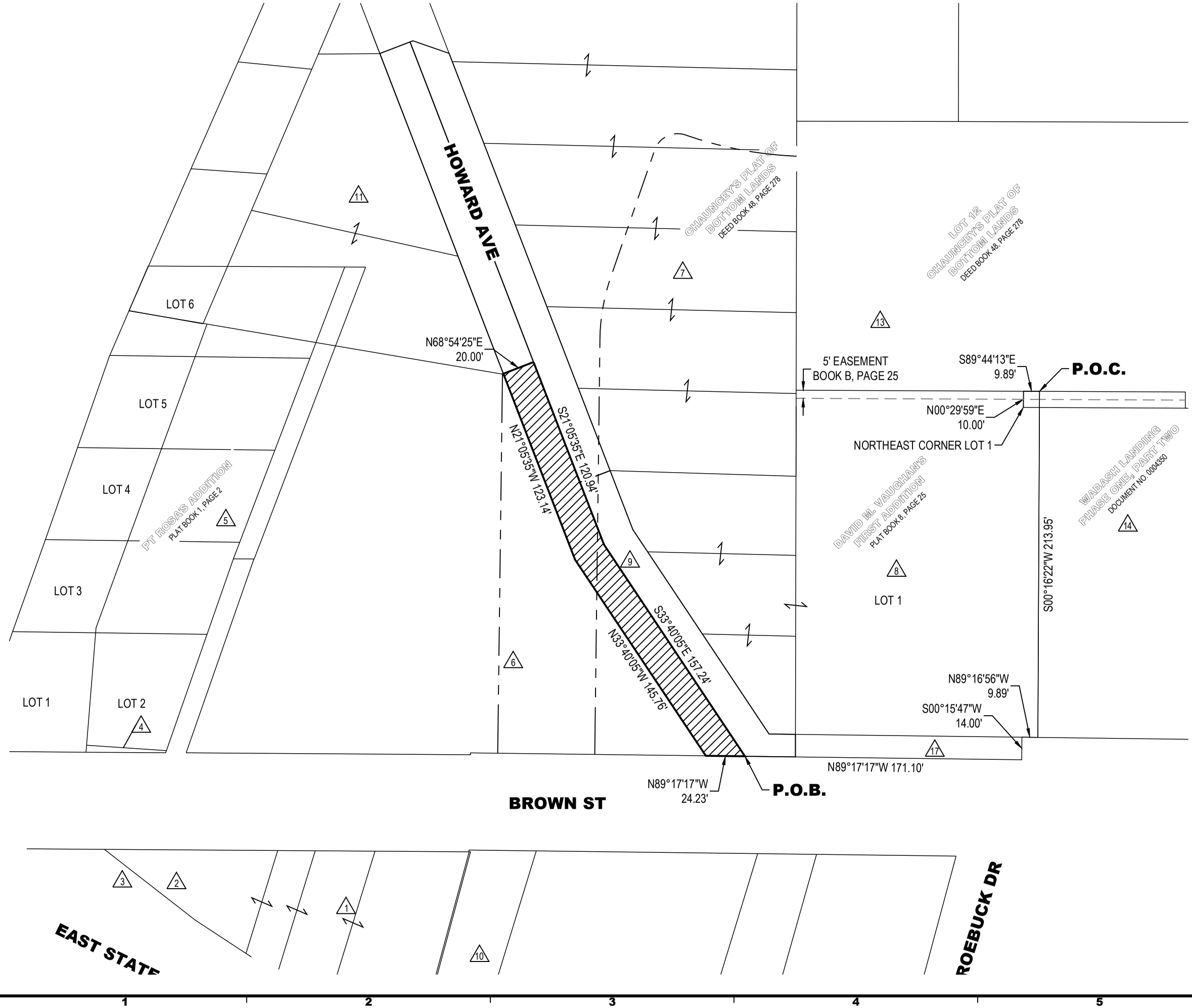

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LEVEE REDEVELOPMENT

LANDMARK PROPERTIES, INC
9333 N. MERIDIAN ST., SUITE 350
INDIANAPOLIS, IN 46260

PROJECT: 21099
DATE: 8/2/2023
DRAWING FILE: 21099-HOWARD AVE VACATION TRACT 2.DWG
DRAWN BY: DLP
CHECKED BY: JCN
TITLE: EXHIBIT

2

87

FILE: P:\2021\21099 Landmark Properties Levee\DRAWINGS\LAYOUTS & EXHIBITS\21099-HOWARD AVE VACATION TRACT 2.dwg - USER: NICK DIGIACOMO - DATE: Friday, February 2, 2024 10:16:05 AM

VACATION OF HOWARD AVENUE-LEGAL DESCRIPTION-TRACT 2

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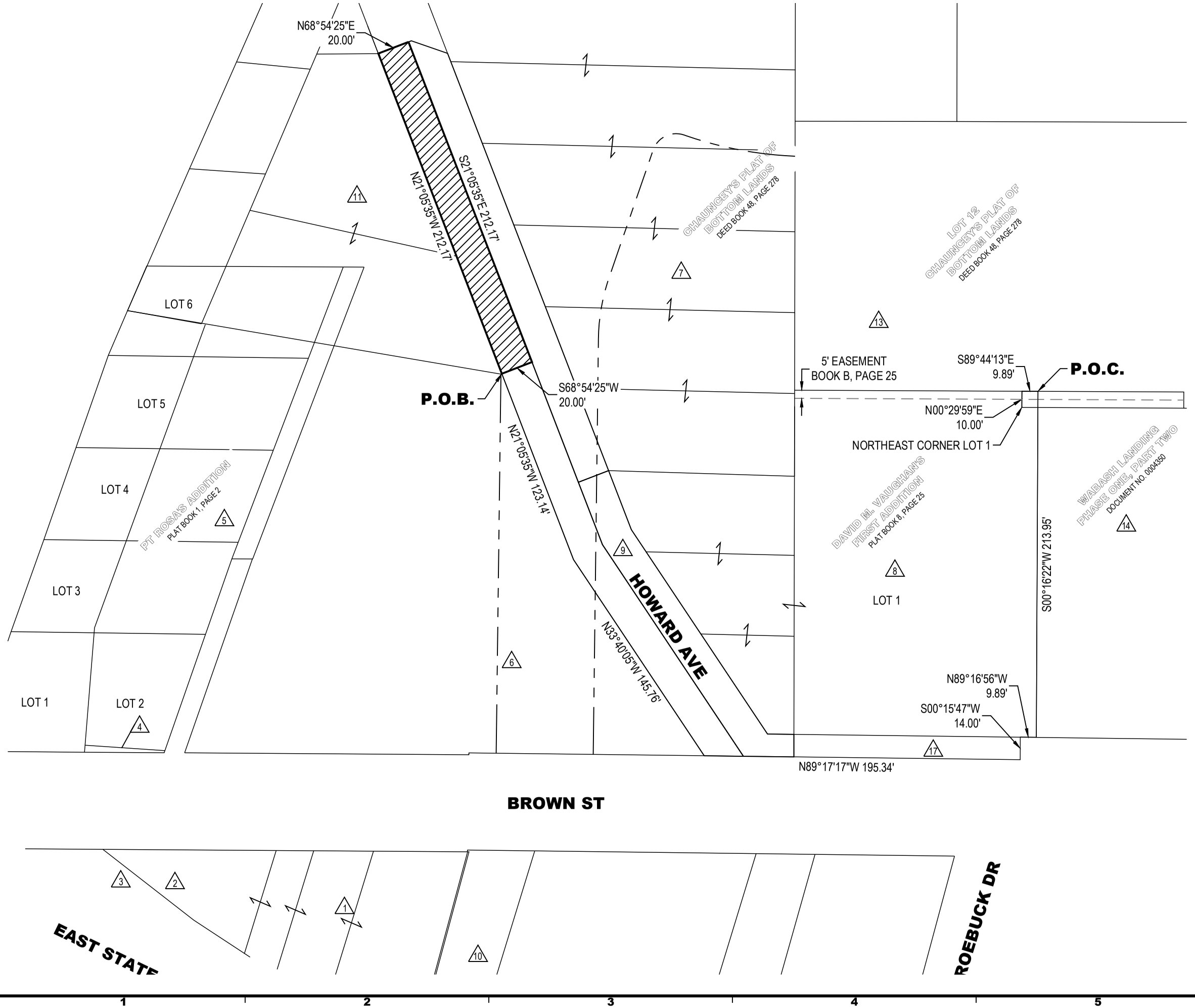

N

0' 30' 60'

SCALE: 1" = 60'

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FILE: P:\2021\21099 Landmark Properties Levee\DRAWINGS\LAYOUTS & EXHIBITS\21099-HOWARD AVE VACATION TRACT 3.dwg - USER: NICK DIGIACOMO - DATE: Friday, February 2, 2024 10:14:48 AM

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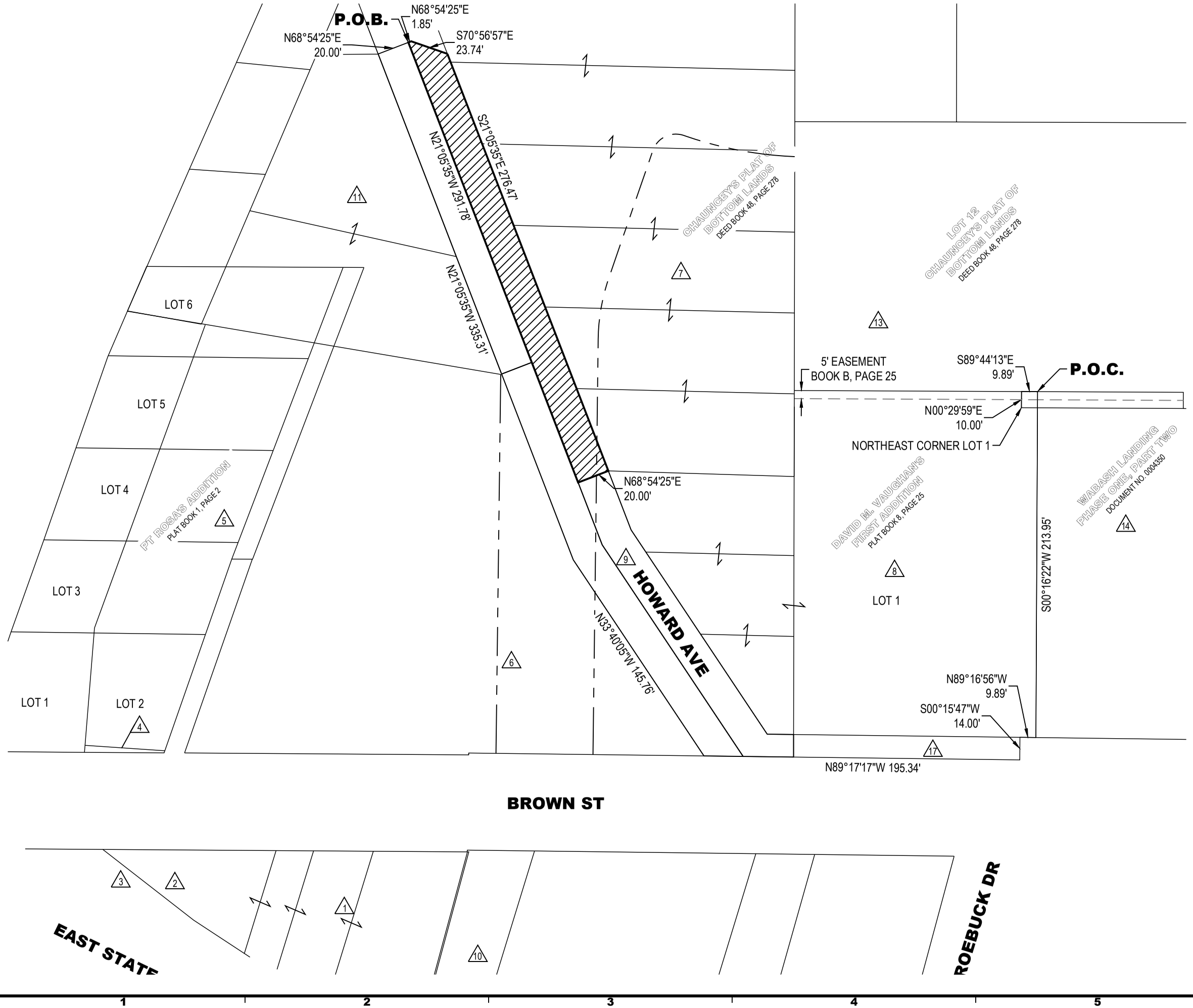
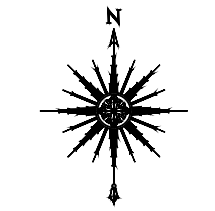
FILE: P:\2021\21099 Landmark Properties Levee\DRAWINGS\LAYOUTS & EXHIBITS\21099-HOWARD AVE VACATION TRACT 4.dwg - USER: NICK DIGIACOMO - DATE: Friday, February 2, 2024 10:13:01 AM





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9	WEST LAFAYETTE REDEVELOPMENT COMMISSION	79-07-20-306-001.000-026	199809824841
10	SPARKLETONE INC	79-07-20-306-005.000-026	BOOK 074-PAGE 1913
11	OB IRISH LLC	79-07-20-305-002.000-026	201414006012
12	DANIEL ST JOHN	79-07-20-301-003.000-026	200404009295
13	WEIDA LEVEE LLC	79-07-20-300-001.000-026	200000005293
14	WABASH LANDING LLC	79-07-20-300-006.000-026	200000004350
15	M GOLDEN H LLC	79-07-20-306-007.000-026	202121023547
16	WEST LAFAYETTE RETAIL LLC	79-07-20-306-006.000-026	201616014558
17	CITY OF WEST LAFAYETTE	79-07-20-300-005.000-026	199909932723

105 North 10th Street
Lafayette, Indiana
(765) 742-1900
info@tbirddesign.com
www.tbirddesign.com

TBIRD
Design Services Corporation
Engineering • Surveying
Environmental • Construction Management

LEVEE REDEVELOPMENT

LANDMARK PROPERTIES, INC
9333 N. MERIDIAN ST., SUITE 350
INDIANAPOLIS, IN 46260

PROJECT: 21099
DATE: 8/2/2023
DRAWING FILE: 21099-HOWARD AVE VACATION TRACT 4.DWG
DRAWN BY: DLP
CHECKED BY: JCN
TITLE: EXHIBIT

VACATION OF HOWARD AVENUE-LEGAL DESCRIPTION-TRACT 4

A part of Lot Numbered 12 (twelve) in Chauncey's Plat of Bottom Lands, as per the plat thereof, Plat Book 48, Page 277 - 279, recorded January 15th/, 1866, in the Office of the Tippecanoe County Recorder, being platted on a part of the Southwest Quarter of Section Twenty (20), Township Twenty-three (23) North, Range Four (4) West, Wabash Township, Tippecanoe County, Indiana, more particularly described as follows:

Commencing at a point on the south line of a tract of land described in a Corporate Deed to Weida Levee LLC, Document Number 200000005293, recorded March 16, 2000, in the Office of the Tippecanoe County Recorder; said point being North 00°29'59 East, 10.00 feet and South 89°44'13" East, 9.89 feet from the Northeast corner of Lot Numbered 1 in David M. Vaughan's First Addition to the City of West Lafayette, as per the plat thereof, Plat Book 8, Page 25, recorded January 9, 1962, in said Recorder's Office and marked by 5/8" rebar with a plastic cap stamped "Ticen"; thence parallel with the east line of said Lot 1 (being the basis of bearings of the herein described tract) , South 00°16'22" West, 213.95 feet to the North right-of-way of Brown Street, per the Final Plat of Wabash Landing, Phase 1, Part 2, as per the plat thereof, Plat Cabinet AA, Page 170, recorded March 3, 2000 in said Recorders Office; thence along said north right-of-way line North 89°16'56" West, 9.89 feet; thence South 00°15'47" West, 14.00 feet to the North right-of-way line of Brown Street per said Chauncey's Plat of Bottom Lands; thence along said north right-of-way line North 89°17'17" West, 195.34 feet to the western right-of-way line of Howard Ave; thence along said right-of-way line for the following two (2) courses; 1) North 33º40'05" West, 145.76 feet; 2) thence North 21º05'35" West, 335.31 feet; thence North 68º54'25" East. 20.00 feet to the centerline of Howard Avenue and the Point of Beginning; thence North 68º54'25" East, 1.85 feet; thence South 70º56'57" East, 23.74 feet to the eastern right-of-way line of Howard Avenue; thence along said right-of-way line South 21º05'35" East, 276.47 feet; thence South 68º54'25" West, 20.00 feet to the center line of Howard Avenue; thence along said centerline North 21º05'35 West, 291.78 feet to the Point of Beginning, containing 0.13 acres, more or less.

STATE OF INDIANA) BEFORE THE COMMON COUNCIL OF THE
TIPPECANOE COUNTY, INDIANA) CITY OF WEST LAFAYETTE, INDIANA

PETITION FOR TRANSFER OF REAL ESTATE; PETITION TO VACATE RIGHT-OF-WAY

COME NOW the following entities by their designated representative, Landmark Properties, Inc., an Indiana corporation ("Landmark"): 300 Brown, LLC, an Indiana limited liability company ("300 Brown"); B.T.O., LLC, an Indiana limited liability company ("BTO"); Bruno's Swiss Inn, Inc., an Indiana corporation ("Swiss Inn"); Howard Avenue Partners LLC, an Indiana limited liability company ("HAP"); Naresh M. Vashi ("Vashi"); and OB Irish LLC, an Indiana limited liability company ("Nine Irish").

Landmark hereby respectfully petitions the Common Council of the City of West Lafayette, Indiana ("Council") for (1) the transfer of certain real estate owned by the City, and (2) the vacation of certain right-of-way located within the City of West Lafayette, Indiana ("City") and more particularly described and depicted herein. In support, Landmark states as follows:

TRANSFER OF REAL ESTATE

1. The City is the owner of certain real estate located in West Lafayette, Indiana consisting of approximately **0.045 acres** and having **State Identification No. 79-07-20-300-005.000-026** ("Transfer Real Estate 1"). Transfer Real Estate 1 is **labeled 15** on the Transfer and Vacation Exhibit (defined below) and is more particularly described in the deed attached hereto and made a part hereof as **EXHIBIT 1**.

2. The City is the owner of certain real estate located in West Lafayette, Indiana consisting of approximately **0.0367 acres** and having **State Identification No. 79-07-20-306-009.000-026** ("Transfer Real Estate 2"). Transfer Real Estate 2 is **labeled 2** on the Transfer and Vacation Exhibit and is more particularly described in the deed attached hereto and made a part hereof as **EXHIBIT 2**.

3. The City is the owner of certain real estate located in West Lafayette, Indiana located near the intersection of N River Road and State Street ("Transfer Real Estate 3"). No State Identification Number has been assigned to Transfer Real Estate 3. Transfer Real Estate 3 is described and depicted in **EXHIBIT 7** attached hereto and made a part hereof. The Transfer Real Estate 3 is also **labeled 11** on the Transfer and Vacation Exhibit.

4. Landmark hereby requests that the City transfer and convey Transfer Real Estate 1 to Landmark State Street Surplus, LLC, an Indiana limited liability company, an affiliate of Landmark ("LSSS Owner"). Transfer Real Estate 1 will become a part of the Landmark on the Levee Planned

Development ("Planned Development"). Upon Landmark's information and belief, the City does not wish to own Transfer Real Estate 1 because, on its own, it is undevelopable ground that serves no specific purpose. Upon Landmark's information and belief, Transfer Real Estate 1 has a value of less than $25,000.00.

5. Landmark hereby requests that the City transfer and convey Transfer Real Estate 2 to LSSS Owner. Transfer Real Estate 2 will become a part of the Planned Development. Upon Landmark's information and belief, the City does not wish to own Transfer Real Estate 2 because, on its own, it is undevelopable ground that serves no specific purpose. Additionally, upon Landmark's information and belief, the City does not wish to own the Transfer Real Estate 2 because it is located next to real estate that may require environmental cleanup. Upon Landmark's information and belief, Transfer Real Estate 2 has a value of less than $25,000.00.

6. Landmark hereby requests that the City transfer and convey Transfer Real Estate 3 to LSSS Owner. Transfer Real Estate 3 will become a part of the Planned Development. Upon Landmark's information and belief, the City does not wish to own Transfer Real Estate 3 because, on its own, it is undevelopable ground that serves no specific purpose. Upon Landmark's information and belief, Transfer Real Estate 3 has a value of less than $25,000.00.

VACATION OF RIGHT-OF-WAY

7. 300 Brown is the owner of the property commonly known as 300 Brown Street, having State Identification No. 79-07-20-300-002.000-026 ("300 Brown Real Estate"). The 300 Brown Real Estate is **labeled 14** on the **EXHIBIT 3** attached hereto and made a part hereof ("Transfer and Vacation Exhibit"). 300 Brown intends to sell the 300 Brown Real Estate to Landmark or its assigns.

8. BTO is the owner of the property commonly known as 212 Brown Street, having State Identification No. 79-07-20-305-005.000-026 ("BTO Real Estate"). The BTO Real Estate is **labeled 12** on the Transfer and Vacation Exhibit. BTO is under contract to sell the BTO Real Estate to Landmark or its assigns.

9. Swiss Inn is the owner of the property commonly known as 224 E State Street, having State Identification No. 79-07-20-306-004.000-026 ("Swiss Inn Real Estate"). The Swiss Inn Real Estate is **labeled 1** on the Transfer and Vacation Exhibit. Swiss Inn is under contract to sell the Swiss Inn Real Estate to Landmark.

10. HAP is the owner of the property commonly known as 140 Howard Avenue, having State Identification No. 79-07-20-301-002.000-026 ("HAP Real Estate"). The HAP Real Estate is **labeled 13** on the Transfer and Vacation Exhibit. HAP is under contract to sell the HAP Real Estate to Landmark.

11. Vashi is the owner of the property commonly known as 200 Brown Street, having State Identification No. 79-07-20-305-001.000-026 ("Vashi Real Estate"). The Vashi Real Estate is **labeled 6** on the Transfer and Vacation Exhibit. Vashi is under contract to sell the Vashi Real Estate to Landmark.

12. Nine Irish is the owner of the property commonly known as 119 Howard Avenue, having State Identification No. 79-07-20-305-002.000-026 ("Nine Irish Real Estate").

13. The 300 Brown Real Estate, BTO Real Estate, Swiss Inn Real Estate, HAP Real Estate, and Vashi Real Estate are intended to be a part of the Planned Development. For the avoidance of doubt, it is understood that the Nine Irish Real Estate will not be a part of the Planned Development.

14. Howard Avenue is a public right-of-way ("Howard Avenue") located in West Lafayette, Indiana.

15. Brown Street is a public right-of-way ("Brown Street") located in West Lafayette, Indiana.

16. A public alley is located adjacent to the eastern boundary line of the Vashi Real Estate ("Alley"). Upon Landmark's information and belief, the east one-half of the Alley was previously vacated and transferred to the owner(s) of the BTO Real Estate.

17. As part of the Planned Development, Howard Avenue shall be relocated (and potentially renamed) ("Relocated Right-of-Way"). The Relocated Right-of-Way shall be dedicated to the public upon the recording of the final plat for the Planned Development. The West Lafayette Board of Public Works and Safety ("Board") is the governmental body and/or entity with authority to dedicate the Relocated Right-of-Way for public use. A separate petition for decision will be filed with the Board.

18. Landmark hereby requests that the portion of Howard Avenue lying between the Nine Irish Real Estate and the HAP Real Estate and shown on the Transfer and Vacation Exhibit be vacated. The area **labeled A** on the Transfer and Vacation Exhibit shall be transferred and attach to the Nine Irish Real Estate. The area **labeled B** on the Transfer and Vacation Exhibit shall be transferred and attach to the HAP Real Estate (part of this area to be transferred to the HAP Real Estate also lies to the east of the BTO Real Estate).

19. Landmark further requests that the portion of Howard Avenue lying between the BTO Real Estate and the HAP Real Estate and 300 Brown Real Estate be vacated. The area **labeled C** on the Transfer and Vacation Exhibit shall be transferred and attach to the BTO Real Estate. The area **labeled D** on the Transfer and Vacation Exhibit shall be transferred and attach to the 300 Brown Real Estate.

20. Landmark further requests that the portion of Brown Street lying between the BTO Real Estate and the Swiss Inn Real Estate and shown on the Transfer and Vacation Exhibit be vacated. The area **labeled E** on the Transfer and Vacation Exhibit shall be transferred and attach to the BTO Real

Estate. The area **labeled F** on the Transfer and Vacation Exhibit shall be transferred and attach to the Swiss Inn Real Estate.

21. Intentionally deleted

22. Landmark further requests that the portion of the public alley lying adjacent to the eastern boundary of the Vashi Real Estate and shown on the Transfer and Vacation Exhibit be vacated. The area **labeled G** on the Transfer and Vacation Exhibit shall be transferred and attach to the Vashi Real Estate. The legal description for the public alley being vacated is attached hereto and made a part hereof as **EXHIBIT 4**.

23. Landmark further requests that the portion of Brown Street located adjacent to the southern boundary of the Vashi Real Estate and shown on the Transfer and Vacation Exhibit be vacated. The area **labeled H** on the Transfer and Vacation Exhibit shall be transferred and attach to the Vashi Real Estate.

24. The entire area of the existing Howard Avenue being vacated is more particularly described in **EXHIBIT 5** attached hereto and made a part hereof.

25. All of the right-of-way being vacated is public right-of-way.

26. The proposed vacations will not hinder the growth or orderly development of the neighborhood in which the vacated areas are located or any property to which such areas are contiguous.

27. The proposed vacations will not make access to any lands by means of public way difficult or inconvenient.

28. The proposed vacations will not hinder the public's access to any church, school, or other public building or place.

29. The proposed vacations will not hinder the use of a public way by the neighborhood in which it is located or to which it is contiguous.

30. The Relocated Right-of-Way shall serve as a safer and more direct public right-of-way that will connect Brown Street with a new east-west right-of-way connecting to North River Road.

31. Appropriate public utility easements will be included on the final plat of the Planned Development.

32. As necessary, the City shall grant easements over public right-of-way to Landmark and/or its assigns for the erection, placement, and construction of the Relocated Right-of-Way, and for all other purposes for which a public road and right-of-way is commonly used including installing, altering, replacing, relocating, and operating utilities in, into, upon, over, across, and under said right-of-way, and including, but not limited to, all such uses permitted by the laws of the State of Indiana and ordinances of the County and the City. Such easements shall be for a term that commences upon the acceptance of the dedication until the acceptance of the completed Relocated Right-of-Way by the Board.

33. Landmark or its assigns, as part of the Planned Development, shall erect, place, or construct, or cause to be erected, placed, or constructed in, into, upon, over, across, or under the Relocated Right-of-Way any temporary or permanent structures for said public road. The Relocated Right-of-Way and all related improvements shall be constructed in reasonable compliance with City standards and specifications for public roads. Landmark or its assigns shall have the right to remove, excavate, or fill upon the Relocated Right-of-Way any fences, buildings, or other obstructions as may now be located within the area where the Relocated Right-of-Way will be constructed.

34. Upon Landmark's information and belief, the vacations and transfers referenced in this Petition are in the best interest of the City.

35. Upon Landmark's information and belief, the City is receiving equivalent value for each of the proposed vacations and transfers referenced in this Petition.

36. The approximate location of the Relocated Right-of-Way is depicted on the Transfer and Vacation Exhibit.

37. A list of the names and addresses of (a) all owners of land abutting and/or across the street from the areas to be vacated pursuant to this Petition, and (b) the utility companies serving West Lafayette, Indiana, and who may have an interest in this Petition, is attached hereto and made a part hereof as **EXHIBIT 6**.

38. If needed or necessary, attached hereto and made a part hereof as **EXHIBIT 8** are legal descriptions for and depictions of the portions of Howard Avenue that will be vacated and transferred to the adjacent property owner.

[The remainder of this page intentionally left blank]

DocuSign Envelope ID: BED38D82-5161-4850-8909-D272C87FA630

WHEREFORE, Landmark, on behalf of the above-named owners, requests that the Council enter an order of vacation, dedication, and transfer in accordance with this Petition.

300 Brown, LLC,
an Indiana limited liability company

By: Landmark Properties, Inc., its duly authorized representative

By: DocuSigned by: 05B15947E87A42A...
Beau Pahud
Its: Vice President

B.T.O., LLC,
an Indiana limited liability company

By: Landmark Properties, Inc., its duly authorized representative

By: DocuSigned by: 05B15947E87A42A...
Beau Pahud
Its: Vice President

Bruno's Swiss Inn, Inc.,
an Indiana corporation

By: Landmark Properties, Inc., its duly authorized representative

By: DocuSigned by: 05B15947E87A42A...
Beau Pahud
Its: Vice President

Naresh M. Vashi

By: Landmark Properties, Inc., his duly authorized representative

By: DocuSigned by: 05B15947E87A42A...
Beau Pahud
Its: Vice President

DocuSign Envelope ID: BED38D82-5161-4850-8909-D272C87FA630

Howard Avenue Partners LLC,
an Indiana limited liability company

By: Landmark Properties, Inc., its duly authorized representative

By: DocuSigned by: 05B15947E87A42A...
Beau Pahud
Its: Vice President

OB Irish LLC,
an Indiana limited liability company

By: Landmark Properties, Inc., its duly authorized representative

By: DocuSigned by: 05B15947E87A42A...
Beau Pahud
Its: Vice President

This instrument prepared by:
Kevin J. Riley
Reiling Teder & Schrier, LLC
250 Main Street, Suite 601
P.O. Box 280
Lafayette, IN 47902-0280
Telephone: (765) 423-5333
Facsimile: (765) 423-4564
E-mail: kjr@rtslawfirm.com

EXHIBIT 1

DULY ENTERED FOR TAXATION
SUBJECT TO FINAL ACCEPTANCE
FOR TRANSFER

DEC 08 1999

AUDITOR OF TIPP. TK

9932723 12/08/1999 09:51A 1 of 1
Pamela K. Berglund, Tippecanoe County Recorder

Tax Duplicate Nos. 164-02500-0480
164-02500-0491

CORPORATE WARRANTY DEED

THIS INDENTURE WITNESSETH, That Wabash Landing, L.L.C. ("Grantor"), a limited liability corporation organized and existing under the laws of the State of Indiana CONVEYS AND WARRANTS to City of West Lafayette, Tippecanoe County, Indiana ("Grantee"), for the sum of ten and no/100 dollars ($10.00) and other valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the following described real estate in Tippecanoe County, State of Indiana:

A strip of land fourteen (14) feet in even width off of the entire southern end of the Robert W. Bibler Trust real estate described in Document Number 9708504 in the Office of the Recorder of Tippecanoe County, Indiana, said strip of land being located on a part of Lot 1 in David M. Vaughan's First Addition to the City of West Lafayette, and a part of Lot 12 in Chauncey's Plat of Bottom Lands in the City of West Lafayette, Wabash Township, Tippecanoe County, Indiana, containing 1960 square feet from tax key number 164-02500-0480, containing 155 square feet from tax key number 164-02500-0491 and containing a total of 2115 square feet, more or less.

The above described strip of land is intended to be adjacent to

and contiguous with the northern right-of-way line of Brown Street as per a plat of survey by Ticen Surveying recorded as Document Number 99-19612 in the aforesaid Office of the Recorder.

Subject to all easements, rights-of-way and restrictions of record.

This conveyance is an exempt transaction pursuant to exemption D of the Unified Subdivision Ordinance of Tippecanoe County.

The Grantor hereby certifies that there is no Indiana gross income tax due with respect to this transfer.

The undersigned person executing this deed on behalf of Grantor represent and certify that they are duly elected officers of Grantor and have been fully empowered, by proper resolution of the Board of Directors of Grantor, to execute and deliver this deed; that Grantor has full corporate capacity to convey the real estate described herein; and that all necessary corporate action for the making of such conveyance has been taken and done.

IN WITNESS WHEREOF, Grantor has executed this deed this 28 day of December, 1999.

Wabash Landing, L.L.C.

By: _____
Herman F. Renfro, Partner

STATE OF INDIANA)
) SS:
COUNTY OF Tippecanoe)

Before me, a Notary Public in and for said County and State, personally

appeared Wabash Landing, L.L.C., by Herman F. Renfro, partner,an Indiana Limited Liability corporation, who acknowledged the execution of the foregoing Corporate Warranty Deed for and on behalf of said Grantor, and who, having been duly sworn, stated that any representations therein contained are true.

Witness my hand and Notarial Seal this 8 MCKP ~~8~~ TH day of December, 1999.

My Commission Expires:

Oct. 11, 2007

Signature: Sharon K. Baer

Printed: Sharon K. Baer

Notary Public residing in Tippecanoe County, IN.

SEND TAXES TO:

_____

_____

_____

This instrument prepared by:
Joseph T. Bumbleburg, of the firm of
BALL, EGGLESTON, BUMBLEBURG, McBRIDE
WALKEY & STAPLETON, PC
810 Bank One Building P.O. Box 1535
Lafayette, Indiana 47902
Telephone: (765) 742-9046
Attorney # 2987-79

EXHIBIT 2

[redacted]

201616007469 9
201616007469
FILED FOR RECORD IN
TIPPECANOE COUNTY, IN
SHANNON WITHERS, RECORDER
05/09/2016 04:10:09PM
DEED 33.00

Tax ID Nos. 79-07-20-306-001.000-026
79-07-20-308-013.000-026
79-07-20-377-005.000-026

QUITCLAIM DEED

THIS INDENTURE WITNESSETH, That the WEST LAFAYETTE REDEVELOPMENT COMMISSION, governing body of the City of West Lafayette Department of Redevelopment ("Grantor") QUITCLAIMS to INTERLOCAL COOPERATION BOARD OF THE CITY OF WEST LAFAYETTE, INDIANA AND THE TRUSTEES OF PURDUE UNIVERSITY ("Grantee"), established under the Interlocal Cooperation Agreement, dated as of May 19, 2015, by and between the City of West Lafayette, Indiana and The Trustees of Purdue University, for NO consideration, the receipt and sufficiency of which are hereby acknowledged, the real estate in Tippecanoe County, in the State of Indiana more particularly described on Exhibit A attached hereto and incorporated herein by this reference.

The undersigned persons executing this Quitclaim Deed on behalf of Grantor represent and certify that such persons are duly authorized to execute and deliver this Quitclaim Deed pursuant to Resolution RC 2016-5 approved on February 17, 2016 and Resolution RC 2016-6 approved on March 10, 2016; that Grantor has full organizational capacity to convey the real estate described herein; and that all necessary action for the making of such conveyance has been taken and done.

IN WITNESS WHEREOF, Grantor has executed this deed this 10th day of March, 2016.

WEST LAFAYETTE REDEVELOPMENT COMMISSION

By: _____
Lawrence T. Oates

ATTEST:

_____
Stephen B. Curtis

DULY ENTERED FOR TAXATION SUBJECT TO FINAL ACCEPTANCE FOR TRANSFER

MAY 09 2016

AUDITOR OF TIPPECANOE CO.

STATE OF INDIANA)
) SS:
TIPPECANOE COUNTY)

Before me, a Notary Public in and for said County and State, this 10th day of March, 2016, personally appeared the within named LAWRENCE T. OATES and STEPHEN B. CURTIS, who acknowledged the execution of the foregoing Quitclaim Deed as their free act and deed, for the intents and purposes therein contained and swore to the truth of the matters contained therein.

WITNESS my hand and Notarial Seal. I am a resident of Tippecanoe County, State of Indiana.

My Commission Expires:

NOV 30 2023

Thomas L. Brooks Jr.
NOTARY PUBLIC

This transfer is for no consideration and a disclosure form is not necessary.

I affirm, under the penalties for perjury, that I have taken reasonable care to redact each Social Security number in this document unless required by law. Thomas L. Brooks, Jr.

This instrument prepared by: Thomas L. Brooks, Jr., of the firm MAYFIELD AND BROOKS, 8 North Third St., Suite 405, P.O. Box 650, Lafayette, IN 47902; Telephone: (765) 423-5454; Fax: (765) 420-8114

EXHIBIT "A"

Project: Re-State
Parcel: 125 Fee Simple
Tax ID: 79-07-20-306-001.000-026

One Hundred thirteen (113) feet off the west end of Lot 13 of the Chauncey Plat of Bottom Lands to the now City of West Lafayette, Tippecanoe County, Indiana.

EXCEPT: A part of Lot 13 in Chauncey's Plat of Bottom Lands to the Town of Chauncey, now West Lafayette, Indiana, the plat of which subdivision is recorded in Deed Record 48, page 278, in the Office of the Recorder of Tippecanoe County, Indiana, described as follows: Beginning at the west corner of said lot; thence North 88 degrees 41 minutes 52 seconds East 40.99 feet along the north line of said lot; thence South 56 degrees 34 minutes 12 seconds East 65.95 feet to the east line of the owner's land; thence South 17 degrees 41 minutes 01 second West 7.66 feet along said east line to the southwestern line of said lot; thence North 65 degrees 29 minutes 53 seconds West 102.96 feet along said southwestern line to the point of beginning and containing 0.027 acres, more or less.

This description was prepared for the City of West Lafayette, Indiana by Jessica L. Stapleton, Indiana Professional Surveyor, License Number LS20600032, on the 11th day of February, 2016.

Jessica L Stapleton

JESSICA L. STAPLETON
REGISTERED
No. LS20600032
STATE OF INDIANA
LAND SURVEYOR

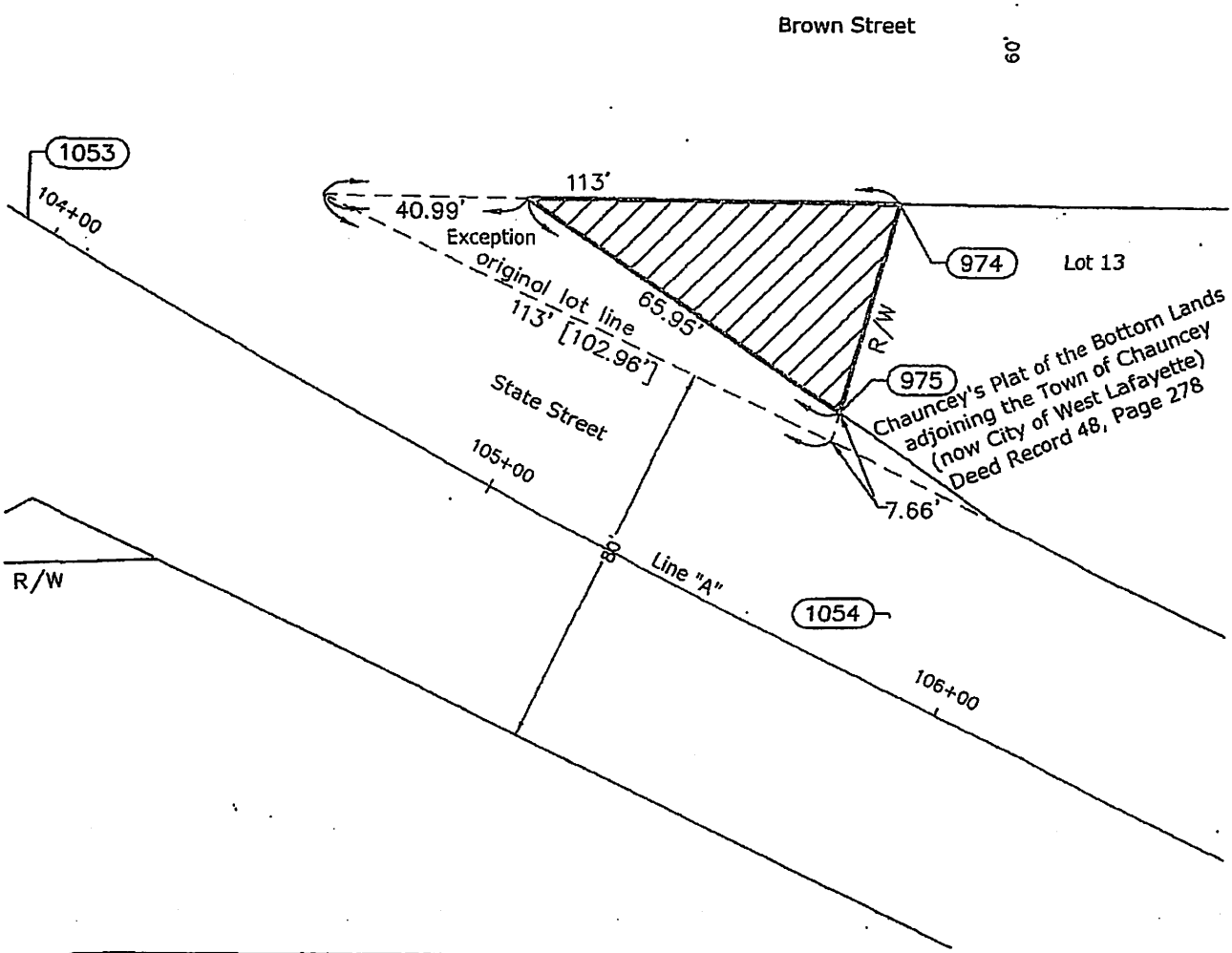
EXHIBIT "B"

RIGHT-OF-WAY PARCEL PLAT

Prepared for the City of West Lafayette, Indiana
by: AMERICAN STRUCTUREPOINT INC.

SHEET 1 OF 3

0 15' 30'
SCALE: 1"=30'



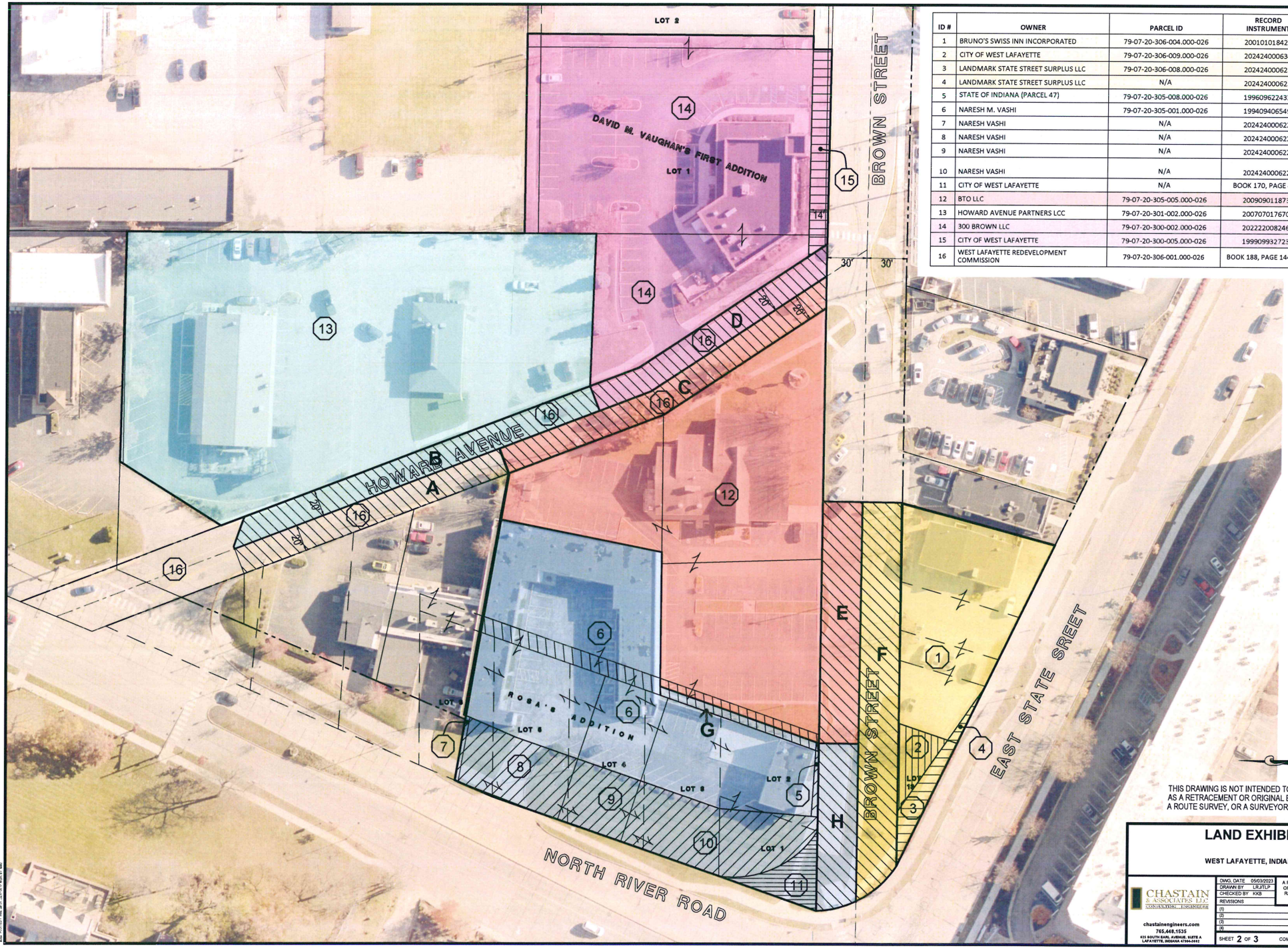
HATCHED AREA IS THE APPROXIMATE TAKING

OWNER:	WEST LAFAYETTE REDEVELOPMENT COMMISSION	DRAWN BY:	CMM
PARCEL:	125	CHECKED BY:	JLS
CODE:	N/A	DES. NO.:	N/A
PROJECT:	RE-STATE		
ROAD:	STATE STREET		
COUNTY:	TIPPECANOE		
SECTION:	20		
TOWNSHIP:	23 NORTH		
RANGE:	4 WEST		

INSTRUMENT NUMBER 9621057, DATED SEPTEMBER 25, 1996
INSTRUMENT NUMBER 9621058, DATED SEPTEMBER 25, 1996
INSTRUMENT NUMBER 9824841, DATED SEPTEMBER 15, 1998

THIS PLAT WAS PREPARED FROM PUBLIC DOCUMENTS AND NOT CHECKED BY A FIELD SURVEY.

EXHIBIT 3



ID #	OWNER	PARCEL ID	RECORD INSTRUMENT	RECORD DATE
1	BRUNO'S SWISS INN INCORPORATED	79-07-20-306-004.000-026	200101018427	7/18/2001
2	CITY OF WEST LAFAYETTE	79-07-20-306-009.000-026	202424000634	1/17/2024
3	LANDMARK STATE STREET SURPLUS LLC	79-07-20-306-008.000-026	202424000623	1/16/2024
4	LANDMARK STATE STREET SURPLUS LLC	N/A	202424000623	1/16/2024
5	STATE OF INDIANA (PARCEL 47)	79-07-20-305-008.000-026	199609622432	10/25/1996
6	NARESH M. VASHI	79-07-20-305-001.000-026	199409406549	3/31/1994
7	NARESH VASHI	N/A	202424000622	1/16/2024
8	NARESH VASHI	N/A	202424000622	1/16/2024
9	NARESH VASHI	N/A	202424000622	1/16/2024
10	NARESH VASHI	N/A	202424000622	1/16/2024
11	CITY OF WEST LAFAYETTE	N/A	BOOK 170, PAGE 433	4/2/1928
12	BTO LLC	79-07-20-305-005.000-026	200909011873	6/3/2009
13	HOWARD AVENUE PARTNERS LCC	79-07-20-301-002.000-026	200707017670	8/22/2007
14	300 BROWN LLC	79-07-20-300-002.000-026	202222008246	05/092022
15	CITY OF WEST LAFAYETTE	79-07-20-300-005.000-026	199909932723	12/8/1999
16	WEST LAFAYETTE REDEVELOPMENT COMMISSION	79-07-20-306-001.000-026	BOOK 188, PAGE 144-145	11/28/1938

N.T.S.

THIS DRAWING IS NOT INTENDED TO BE REPRESENTED AS A RETRACEMENT OR ORIGINAL BOUNDARY SURVEY, A ROUTE SURVEY, OR A SURVEYOR LOCATION REPORT.

LAND EXHIBIT

WEST LAFAYETTE, INDIANA

CHASTAIN & ASSOCIATES LLC
CONSULTING ENGINEERS
chastainengineers.com
765.448.1535
415 SOUTH EARL AVENUE, SUITE A
LAFAYETTE, INDIANA 47904-2982

DWG. DATE 05/03/2023
DRAWN BY LR/JTLP
CHECKED BY KKB
REVISIONS
(1)
(2)
(3)
(4)

A PART OF THE SOUTHWEST QUARTER OF SECTION 20, TOWNSHIP 23 NORTH, RANGE 4 WEST, WABASH TOWNSHIP, TIPPECANOE COUNTY, INDIANA.

SHEET 2 OF 3 COMMISSION NO. 7820.00

EXHIBIT 4

ALLEY VACATION DESCRIPTION – ROSA'S ADDITION TO WEST LAFAYETTE

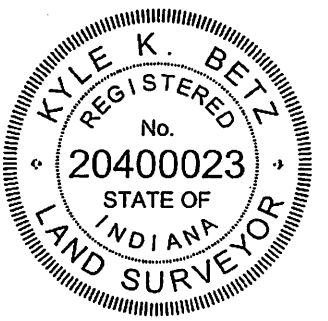
An Alley Twelve (12) feet in even width located along the entire east side of Rosa's Addition to West Lafayette, as per the plat thereof, Plat Book 1, Page 2, and described in Deed Record 93, Page 253, recorded October 27, 1890, in the Office of the Tippecanoe County Recorder, being platted on a part of the Southwest Quarter of Section Twenty (20), Township Twenty-three (23) North, Range Four (4) West, Wabash Township, Tippecanoe County, Indiana, more particularly described as follows:

Beginning at the Southeast corner of Lot 2 (two) in said in said Rosa's Addition, thence along the East line common to Lots Two (2) though Six (6) North 19°21'55" East 317.99 feet to the Northeast corner thereof; thence along the North line of said Rosa's Addition South 89°58'32" East 12.72 feet to the East line thereof; thence along the East line of said Rosa's Addition South 19°21'55" West 318.10 feet to the North line of Brown Street; thence along said North line North 89°29'39" West 12.68 feet to the Point of Beginning, containing 0.088 acres, more or less.

SUBJECT TO ALL EASEMENTS, RESTRICTIONS, AND RIGHTS-OF-WAY OF RECORD

SURVEYOR'S CERTIFICATION:

I, Kyle K. Betz, a Registered Professional Land Surveyor in the State of Indiana, do hereby certify that the above description was prepared under my supervision.



08/25/2023

KYLE K. BETZ (LS20400023) DATE

EXHIBIT 5

VACATION OF HOWARD AVENUE-LEGAL DESCRIPTION-[redacted]

A part of Lot Numbered 12 (twelve) in Chauncey's Plat of Bottom Lands, as per the plat thereof, Plat Book 48, Page 277 - 279, recorded January 15th/, 1866, in the Office of the Tippecanoe County Recorder, being platted on a part of the Southwest Quarter of Section Twenty (20), Township Twenty-three (23) North, Range Four (4) West, Wabash Township, Tippecanoe County, Indiana, more particularly described as follows:

Commencing at a point on the south line of a tract of land described in a Corporate Deed to Weida Levee LLC, Document Number 200000005293, recorded March 16, 2000, in the Office of the Tippecanoe County Recorder; said point being North 00°29'59 East, 10.00 feet and South 89°44'13" East, 9.89 feet from the Northeast corner of Lot Numbered 1 in David M. Vaughan's First Addition to the City of West Lafayette, as per the plat thereof, Plat Book 8, Page 25, recorded January 9, 1962, in said Recorder's Office and marked by 5/8" rebar with a plastic cap stamped "Ticen"; thence parallel with the east line of said Lot 1 (being the basis of bearings of the herein described tract) , South 00°16'22" West, 213.95 feet to the North right-of-way of Brown Street, per the Final Plat of Wabash Landing, Phase 1, Part 2, as per the plat thereof, Plat Cabinet AA, Page 170, recorded March 3, 2000 in said Recorders Office; thence along said north right-of-way line North 89°16'56" West, 9.89 feet; thence South 00°15'47" West, 14.00 feet to the North right-of-way line of Brown Street per said Chauncey's Plat of Bottom Lands; thence along said north right-of-way line North 89°17'17" West, 139.93 feet to the Point of Beginning; thence North 89°17'17" West, along said north right -of-way line, 55.41 feet to the western right-of-way line of Howard Avenue; thence along said western right-of-way line for the following two (2) courses; 1) North 33°40'05" West, 145.76 feet; 2) thence North 21°05'35" West, 335.31 feet; thence North 68°54'20" East, 21.85 feet; thence South 70°56'57" East to the eastern right-of-way line of said Howard Avenue, 23.74 feet; thence along said eastern right-of-way line for the following two (2) courses; 1) South 21°05'35" East, 315.60 feet; 2) thence South 33°40'05" East, 151.83 feet; thence South 89°16'56" East, parallel with northerly of and 14.00 feet distant from said northern right-of-way line of Brown Street, 16.33 feet; thence South 00°06'45" West, along the western line said Lot Numbered 1, 13.94 feet to the Point of Beginning, containing 0.45 acres, more or less.

EXHIBIT 6

INTERESTED PROPERTY OWNERS

STATE OF INDIANA
41 W 300 N
CRAWFORDSVILLE, IN 47933

SPARKLETONE INC
238 E STATE ST
WEST LAFAYETTE, IN 47906

WEST LAFAYETTE RETAIL LLC
6440 WESTFIELD BLVD
INDIANAPOLIS, IN 46220

M GOLDEN H LLC
717 NAVCO DR
LAFAYETTE, IN 47905

CITY OF WEST LAFAYETTE
222 N CHAUNCEY AVE
WEST LAFAYETTE, IN 47906

WABASH LANDING LLC
6930 ATRIUM BOARDWALK S
INDIANAPOLIS, IN 46250

CITY OF WEST LAFAYETTE CITY AND WEST LAFAYETTE REDEVELOPMENT COMMISSION
222 N CHAUNCEY AVE
WEST LAFAYETTE, IN 47906

DANIEL ST. JOHN
148 HOWARD AVE
WEST LAFAYETTE, IN 47906

WEIDA LEVEE LLC
302 VINE ST #3
WEST LAFAYETTE, IN 47906

UTILITY COMPANIES

CenterPoint Energy
Attn: Emily Henderson
2345 E Main Street
Danville, IN 46122

Comcast
Attn: Doug Fishburn
3465 South Street
Lafayette, IN 47905

Duke Energy
Attn: Brian Funk
1000 E Main Street
Plainfield, IN 46168

Indiana American Water Company Inc.
Attn: Bryan Forkner
153 N. Emerson Avenue
Greenwood, IN 46143

Indiana American Water Company Inc.
Attn: Bryan Forkner
1007 Happy Hollow Drive
West Lafayette, IN 47906

Frontier Communications
Attn: Chuck McKean
401 Merritt 7
Norwalk, CT 06851

Metronet
Attn: Lori Kemper
3701 Communications Way
Evansville, IN 47715

West Lafayette Wastewater Treatment
Attn: David Henderson
500 S. River Road
West Lafayette, IN 47906

Tipmont Remc / Wintek
Attn: Matt Knoth and/or Joe Kline
427 N 6th Street
Lafayette, IN 47901

Wintek Corporation
Attn: Tipmont Holdings, Inc.
403 S. Main St.
Linden, IN 47955

West Lafayette Fire Department
Attn: Tony Schutter
300 North St.
West Lafayette, IN 47906

EXHIBIT 7

A part of Lot numbered One (1) in Rosa's Addition to the City of West Lafayette, Indiana, described as follows:

Commencing at the Northwest corner of said lot, and running thence southward along the east line of Ellsworth Street, and the west line of said lot, seventy eight and fifty hundredths (78.50) feet to the southwest corner thereof; thence east along the line of Brown Street Levee and and along the south line of said lot sixty (60) feet, to the southeast corner thereof, thence in a northwesterly direction; following the line of a curve to the right, as described by a seventy five (75) foot radius, about eighty nine (89) feet to the place of beginning.

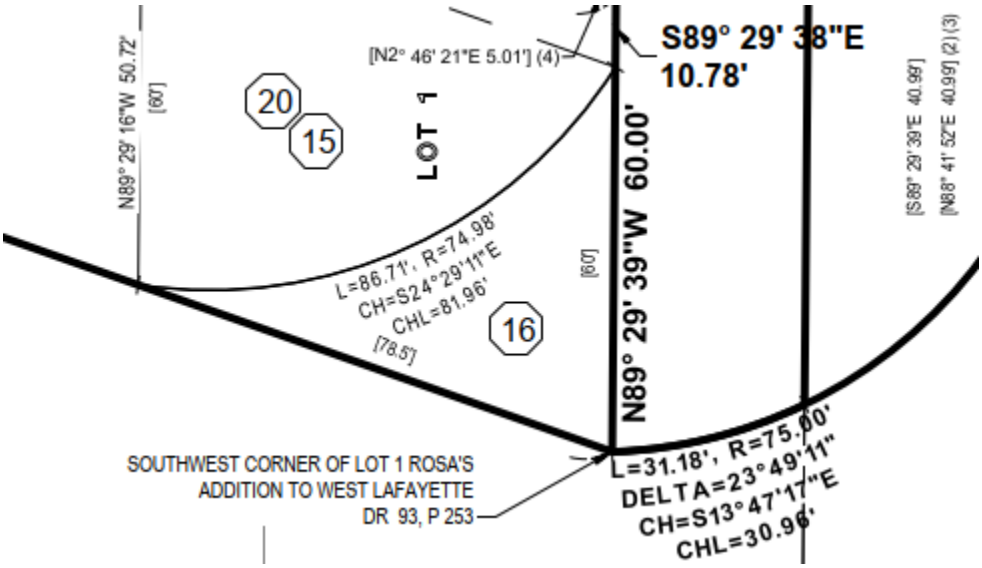
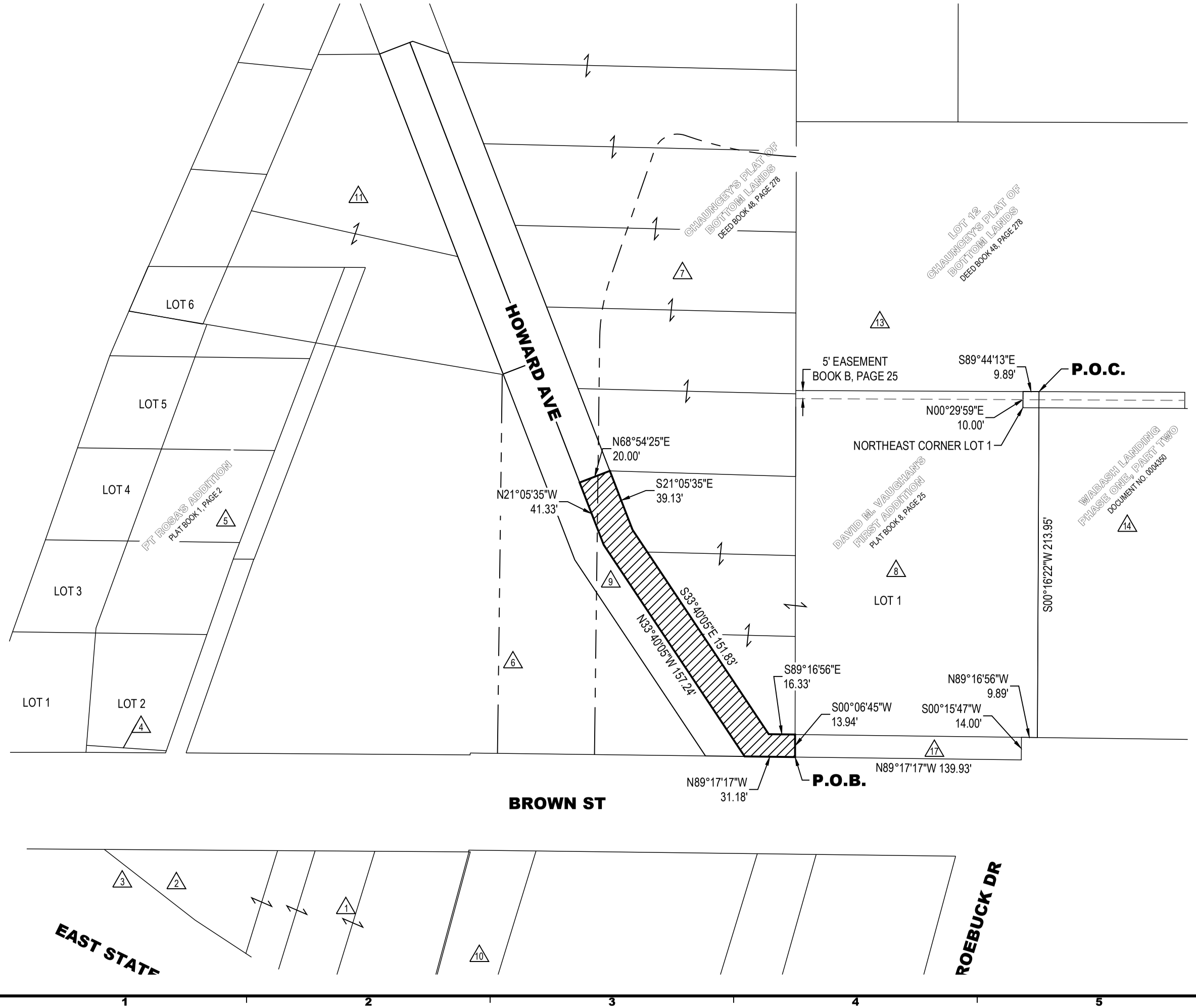


EXHIBIT 8



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7	HOWARD AVENUE PARTNERS LLC	79-07-20-301-002.000-026	200707017670
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11	OB IRISH LLC	79-07-20-305-002.000-026	201414006012
12	DANIEL ST JOHN	79-07-20-301-003.000-026	200404009295
13	WEIDA LEVEE LLC	79-07-20-300-001.000-026	200000005293
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17	CITY OF WEST LAFAYETTE	79-07-20-300-005.000-026	199909932723

105 North 10th Street
Lafayette, Indiana
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info@tbirddesign.com
www.tbirddesign.com

TBIRD
Design Services Corporation
Engineering • Surveying
Environmental • Construction Management

LEVEE REDEVELOPMENT

LANDMARK PROPERTIES, INC
9333 N. MERIDIAN ST., SUITE 350
INDIANAPOLIS, IN 46260

PROJECT: 21099
DATE: 8/2/2023
DRAWING FILE: 21099-HOWARD AVE VACATION TRACT 1.DWG
DRAWN BY: DLP
CHECKED BY: JCN
TITLE: EXHIBIT

1

119

FILE: P:\2021\21099 Landmark Properties Levee\DRAWINGS\LAYOUTS & EXHIBITS\21099-HOWARD AVE VACATION TRACT 1.dwg - USER: NICK DIGIACOMO - DATE: Friday, February 2, 2024 9:53:16 AM

VACATION OF HOWARD AVENUE-LEGAL DESCRIPTION-TRACT 1

A part of Lot Numbered 12 (twelve) in Chauncey's Plat of Bottom Lands, as per the plat thereof, Plat Book 48, Page 277 - 279, recorded January 15th/, 1866, in the Office of the Tippecanoe County Recorder, being platted on a part of the Southwest Quarter of Section Twenty (20), Township Twenty-three (23) North, Range Four (4) West, Wabash Township, Tippecanoe County, Indiana, more particularly described as follows:

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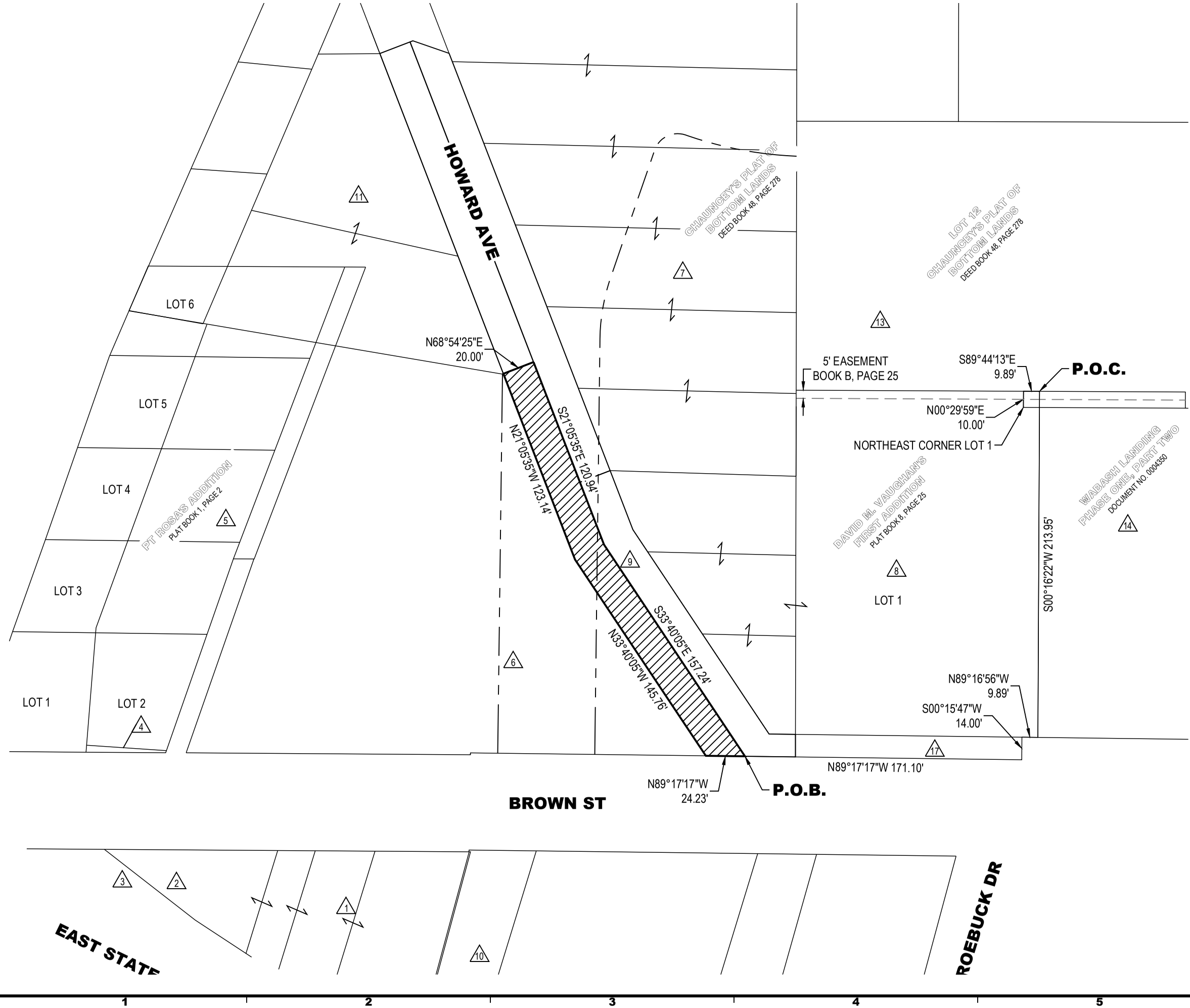

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FILE: P:\2021\21099 Landmark Properties Levee\DRAWINGS\LAYOUTS & EXHIBITS\21099-HOWARD AVE VACATION TRACT 2.dwg - USER: NICK DIGIACOMO - DATE: Friday, February 2, 2024 10:16:05 AM

VACATION OF HOWARD AVENUE-LEGAL DESCRIPTION-TRACT 2

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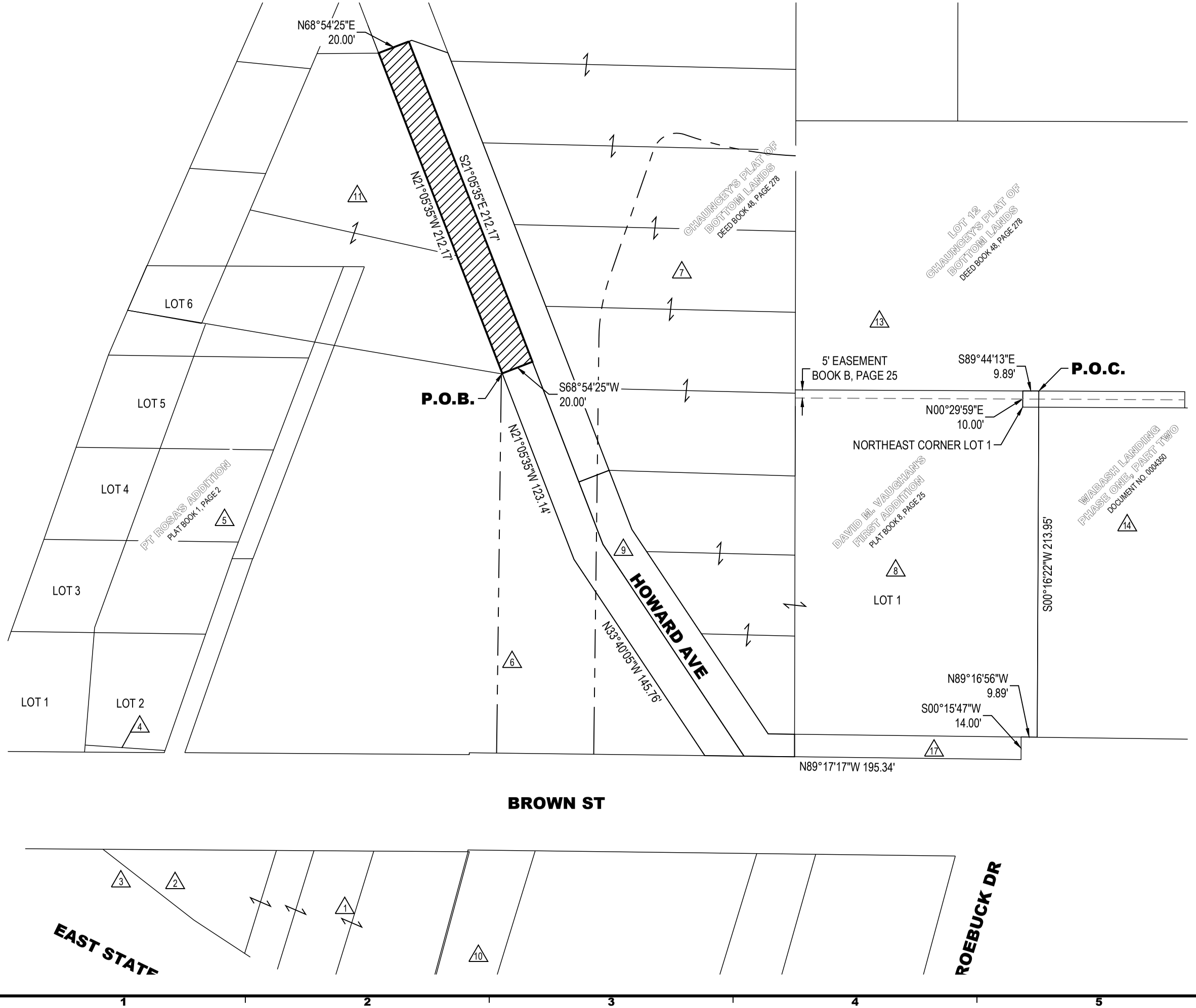

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DRAWN BY: DLP
CHECKED BY: JCN

TITLE: EXHIBIT

3

123

FILE: P:\2021\21099 Landmark Properties Levee\DRAWINGS\LAYOUTS & EXHIBITS\21099-HOWARD AVE VACATION TRACT 3.dwg - USER: NICK DIGIACOMO - DATE: Friday, February 2, 2024 10:14:48 AM

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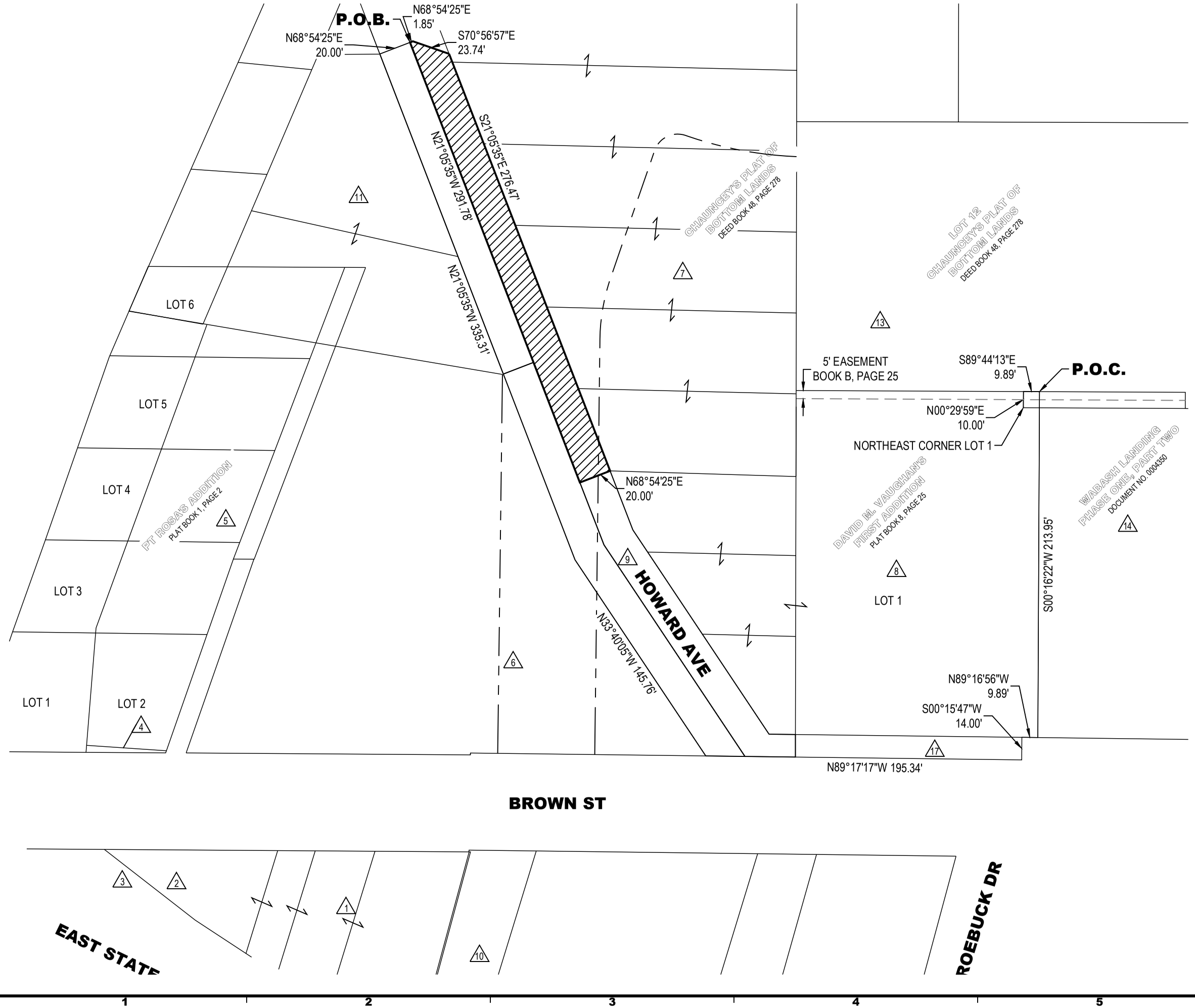

N

0' 30' 60'

SCALE: 1" = 60'

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125

FILE: P:\2021\21099 Landmark Properties Levee\DRAWINGS\LAYOUTS & EXHIBITS\21099-HOWARD AVE VACATION TRACT 4.dwg - USER: NICK DIGIACOMO - DATE: Friday, February 2, 2024 10:13:01 AM

VACATION OF HOWARD AVENUE-LEGAL DESCRIPTION-TRACT 4

A part of Lot Numbered 12 (twelve) in Chauncey's Plat of Bottom Lands, as per the plat thereof, Plat Book 48, Page 277 - 279, recorded January 15th/, 1866, in the Office of the Tippecanoe County Recorder, being platted on a part of the Southwest Quarter of Section Twenty (20), Township Twenty-three (23) North, Range Four (4) West, Wabash Township, Tippecanoe County, Indiana, more particularly described as follows:

Commencing at a point on the south line of a tract of land described in a Corporate Deed to Weida Levee LLC, Document Number 200000005293, recorded March 16, 2000, in the Office of the Tippecanoe County Recorder; said point being North 00°29'59 East, 10.00 feet and South 89°44'13" East, 9.89 feet from the Northeast corner of Lot Numbered 1 in David M. Vaughan's First Addition to the City of West Lafayette, as per the plat thereof, Plat Book 8, Page 25, recorded January 9, 1962, in said Recorder's Office and marked by 5/8" rebar with a plastic cap stamped "Ticen"; thence parallel with the east line of said Lot 1 (being the basis of bearings of the herein described tract) , South 00°16'22" West, 213.95 feet to the North right-of-way of Brown Street, per the Final Plat of Wabash Landing, Phase 1, Part 2, as per the plat thereof, Plat Cabinet AA, Page 170, recorded March 3, 2000 in said Recorders Office; thence along said north right-of-way line North 89°16'56" West, 9.89 feet; thence South 00°15'47" West, 14.00 feet to the North right-of-way line of Brown Street per said Chauncey's Plat of Bottom Lands; thence along said north right-of-way line North 89°17'17" West, 195.34 feet to the western right-of-way line of Howard Ave; thence along said right-of-way line for the following two (2) courses; 1) North 33º40'05" West, 145.76 feet; 2) thence North 21º05'35" West, 335.31 feet; thence North 68º54'25" East. 20.00 feet to the centerline of Howard Avenue and the Point of Beginning; thence North 68º54'25" East, 1.85 feet; thence South 70º56'57" East, 23.74 feet to the eastern right-of-way line of Howard Avenue; thence along said right-of-way line South 21º05'35" East, 276.47 feet; thence South 68º54'25" West, 20.00 feet to the center line of Howard Avenue; thence along said centerline North 21º05'35 West, 291.78 feet to the Point of Beginning, containing 0.13 acres, more or less.

Sponsored by Mayor Erin R. Easter

ORDINANCE NO. 03-2024

AN ORDINANCE

TRANSFERRING CERTAIN LAND AND ACCEPTING CERTAIN LAND IN THE CITY OF WEST LAFAYETTE, INDIANA

AND

VACATING PORTIONS OF HOWARD AVENUE AND BROWN STREET

WHEREAS, after due Notice and Public Hearing, the Common Council of the City of West Lafayette did consider on the 4th day of March 2024, the following questions set forth in the Petition for Transfer of Real Estate; Petition to Vacate Right-of-Way filed by Landmark Properties, Inc., an Indiana corporation ("Landmark") as the designated and duly authorized representative for the following entities and/or persons: 300 Brown, LLC, an Indiana limited liability company ("300 Brown"); B.T.O., LLC, an Indiana limited liability company ("BTO"); Bruno's Swiss Inn, Inc., an Indiana corporation ("Swiss Inn"); Howard Avenue Partners LLC, an Indiana limited liability company ("HAP"); Naresh M. Vashi ("Vashi"); and OB Irish LLC, an Indiana limited liability company ("Nine Irish"):

1. transferring certain real estate located in West Lafayette, Indiana consisting of approximately **0.045 acres** and having **State Identification No. 79-07-20-300-005.000-026** ("Transfer Real Estate 1"), which said Transfer Real Estate 1 is labeled as 3-A on the Transfer and Vacation Exhibit (defined below) and is more particularly described in the deed attached hereto and made a part hereof as **EXHIBIT 1**, to Landmark State Street Surplus, LLC, an Indiana limited liability company, an affiliate of Landmark ("LSSS");
2. transferring certain real estate located in West Lafayette, Indiana consisting of approximately **0.0367 acres** and having **State Identification No. 79-07-20-306-009.000-026** ("Transfer Real Estate 2"), which said Transfer Real Estate 2 is labeled 5-A on the Transfer and Vacation Exhibit and is more particularly described in the deed attached hereto and made a part hereof as **EXHIBIT 2**, to LSSS;
3. transferring certain real estate located in West Lafayette, Indiana located near the intersection of N River Road and State Street ("Transfer Real Estate 3"), which said real estate is described and depicted in **EXHIBIT 6** attached hereto and made a part hereof.

4. vacating a portion of Howard Avenue ("Vacated Howard Avenue") more particularly described in **EXHIBIT 3** attached hereto and made a part hereof and depicted in **EXHIBIT 4** attached hereto and made a part hereof ("Transfer and Vacation Exhibit");
5. vacating a portion of Brown Street ("Vacated Brown Street") depicted on the Transfer and Vacation Exhibit;
6. vacating a portion of the public alley ("Alley") owned by the City described in **EXHIBIT 5** attached hereto and made a part hereof and depicted on the Transfer and Vacation Exhibit; and
7. accepting for public use the Relocated Right-of-Way (defined below) depicted in the Transfer and Vacation Exhibit.

NOW, THEREFORE, BE IT ORDAINED by the Common Council of the City of West Lafayette, Indiana, that:

Section 1. The City is the owner of certain real estate located in West Lafayette, Indiana having State Identification No. 79-07-20-300-005.000-026 and identified above as the Transfer Real Estate 1. For several reasons, the City no longer wishes to own the Transfer Real Estate 1. As a result of numerous factors, the City believes that the Transfer Real Estate 1 has a value of less than $25,000.00. The City hereby agrees to transfer, set over, and convey the Transfer Real Estate 1 to Landmark State Street Surplus, LLC, an Indiana limited liability company, via a quit claim deed for no monetary consideration. The Transfer Real Estate 1 shall become a part of the Landmark on the Levee Planned Development ("Planned Development").

Section 2. The City is the owner of certain real estate located in West Lafayette, Indiana having State Identification No. 79-07-20-306-009.000-026 and identified above as the Transfer Real Estate 2. For several reasons, the City no longer wishes to own the Transfer Real Estate 2. As a result of numerous factors, the City believes that the Transfer Real Estate 2 has a value of less than $25,000.00. The City hereby agrees to transfer, set over, and convey the Transfer Real Estate 2 to Landmark State Street Surplus, LLC, an Indiana limited liability company, via a quit claim deed for no monetary consideration. The Transfer Real Estate 2 shall become a part of the Planned Development.

Section 3. The City is the owner of certain real estate located in West Lafayette, Indiana and identified above as the Transfer Real Estate 3. For several reasons, the City no longer wishes to own the Transfer Real Estate 3. As a result of numerous factors, the City believes that

the Transfer Real Estate 3 has a value of less than $25,000.00. The City hereby agrees to transfer, set over, and convey the Transfer Real Estate 3 to Landmark State Street Surplus, LLC, an Indiana limited liability company, via a quit claim deed for no monetary consideration. The Transfer Real Estate 3 shall become a part of the Planned Development.

Section 4. 300 Brown is the owner of the property commonly known as 300 Brown Street, having State Identification No. 79-07-20-300-002.000-026 ("300 Brown Real Estate"). The 300 Brown Real Estate is labeled 3 on the Transfer and Vacation Exhibit.

Section 5. BTO is the owner of the property commonly known as 212 Brown Street, having State Identification No. 79-07-20-305-005.000-026 ("BTO Real Estate"). The BTO Real Estate is labeled 1 on the Transfer and Vacation Exhibit.

Section 6. Swiss Inn is the owner of the property commonly known as 224 E State Street, having State Identification No. 79-07-20-306-004.000-026 ("Swiss Inn Real Estate"). The Swiss Inn Real Estate is labeled 5 on the Transfer and Vacation Exhibit.

Section 7. HAP is the owner of the property commonly known as 140 Howard Avenue, having State Identification No. 79-07-20-301-002.000-026 ("HAP Real Estate"). The HAP Real Estate is labeled 4 on the Transfer and Vacation Exhibit.

Section 8. Vashi is the owner of the property commonly known as 200 Brown Street, having State Identification No. 79-07-20-305-001.000-026 ("Vashi Real Estate"). The Vashi Real Estate is labeled 2 on the Transfer and Vacation Exhibit.

Section 9. Nine Irish is the owner of the property commonly known as 119 Howard Avenue, having State Identification No. 79-07-20-305-002.000-026 ("Nine Irish Real Estate").

Section 10. The 300 Brown Real Estate, BTO Real Estate, Swiss Inn Real Estate, HAP Real Estate, and Vashi Real Estate are intended to be a part of the Planned Development. For the avoidance of doubt, it is understood that the Nine Irish Real Estate will not be a part of the Planned Development.

Section 11. The portion of Howard Avenue lying between the Nine Irish Real Estate and the HAP Real Estate and shown on the Transfer and Vacation Exhibit is hereby vacated. The area depicted in gray with hashmarks and labeled A on the Transfer and Vacation Exhibit shall be transferred and attach to the Nine Irish Real Estate. The area depicted in teal blue with hashmarks

and labeled B on the Transfer and Vacation Exhibit shall be transferred and attach to the HAP Real Estate (part of this area to be transferred to the HAP Real Estate also lies to the east of the BTO Real Estate).

Section 12. The portion of Howard Avenue lying between the BTO Real Estate and the HAP Real Estate and shown on the Transfer and Vacation Exhibit is hereby vacated. The area depicted in orange with hashmarks and labeled C on the Transfer and Vacation Exhibit shall be transferred and attach to the BTO Real Estate. The area depicted in purple with hashmarks and labeled D on the Transfer and Vacation Exhibit shall be transferred and attach to the 300 Brown Real Estate.

Section 13. The portion of Brown Street lying between the BTO Real Estate and the Swiss Inn Real Estate and shown on the Transfer and Vacation Exhibit is hereby vacated. The area depicted in orange with hashmarks and labeled E on the Transfer and Vacation Exhibit shall be transferred and attach to the BTO Real Estate. The area depicted in yellow with hashmarks and labeled F on the Transfer and Vacation Exhibit shall be transferred and attach to the Swiss Inn Real Estate.

Section 14. The portion of Brown Street lying between the BTO Real Estate and the Swiss Inn Real Estate and shown on the Transfer and Vacation Exhibit is hereby vacated. The area depicted in orange with hashmarks and labeled E on the Transfer and Vacation Exhibit shall be transferred and attach to the BTO Real Estate. The area depicted in yellow with hashmarks and labeled F on the Transfer and Vacation Exhibit shall be transferred and attach to the Swiss Inn Real Estate.

Section 15. The portion of the Alley lying adjacent to the eastern boundary of the Vashi Real Estate and shown on the Transfer and Vacation Exhibit is hereby vacated. The area depicted in blue with hashmarks and labeled G on the Transfer and Vacation Exhibit shall be transferred and attach to the Vashi Real Estate.

Section 16. The portion of Brown Street located adjacent to the southern boundary of the Vashi Real Estate and shown on the Transfer and Vacation Exhibit is hereby vacated. The area depicted in blue with hashmarks and labeled H on the Transfer and Vacation Exhibit shall be transferred and attach to the Vashi Real Estate.

Section 17. As part of the Planned Development, Howard Avenue shall be relocated (and potentially renamed) ("Relocated Right-of-Way"). The Relocated Right-of-Way shall be dedicated to the public upon the recording of the final plat for the Planned Development.

Section 18. The purpose of the vacations, transfer and dedication is to facilitate the construction of the Planned Development. In connection with the Planned Development the developer of the Planned Development shall be responsible for constructing the Relocated Right-of-Way. The Relocated Right-of-Way shall be dedicated to the public and shall connect Brown Street and a new east-west right-of-way connecting to North River Road. The Relocated Right-of-Way shall be constructed in compliance with all City specifications and regulations and all applicable State and Federal laws, rules and regulations.

Section 19. The vacated rights-of-way and alley shall each be closed as a public way upon vacation pursuant to this Ordinance. Upon completion, the Relocated Right-of-Way shall be opened and ready as a public way.

Section 20. None of the above transferees or their respective assigns or successors shall be required to compensate the City further for the fair market value of the rights-of-way being vacated other than transferring to the City the land to be a part of the Relocated Right-of-Way since the value received is deemed to be equal to or greater than the value given.

Section 21. The Clerk of the City Council is directed to furnish a copy of this Ordinance, duly executed, to the Recorder of Tippecanoe County for recording, and to the Auditor of Tippecanoe County.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____ AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____ 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

	AYE	NAY	ABSENT	ABSTAIN
Bellisario				
Blanco				
Burr				
Dennis				
Lee				
Leverenz				
Parker				
Sanders				
Veidemanis				

_____
Kathy Parker, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____ 2024.

_____
Sana G. Booker, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____ 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

EXHIBIT 1

DULY ENTERED FOR TAXATION
SUBJECT TO FINAL ACCEPTANCE
FOR TRANSFER

DEC 08 1999

AUDITOR OF TIPP. CO. TK

9932723 12/08/1999 09:51A 1 of 1
Pamela K. Berglund, Tippecanoe County Recorder

Tax Duplicate Nos. 164-02500-0480
164-02500-0491

CORPORATE WARRANTY DEED

THIS INDENTURE WITNESSETH, That Wabash Landing, L.L.C. ("Grantor"), a limited liability corporation organized and existing under the laws of the State of Indiana CONVEYS AND WARRANTS to City of West Lafayette, Tippecanoe County, Indiana ("Grantee"), for the sum of ten and no/100 dollars ($10.00) and other valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the following described real estate in Tippecanoe County, State of Indiana:

> A strip of land fourteen (14) feet in even width off of the entire southern end of the Robert W. Bibler Trust real estate described in Document Number 9708504 in the Office of the Recorder of Tippecanoe County, Indiana, said strip of land being located on a part of Lot 1 in David M. Vaughan's First Addition to the City of West Lafayette, and a part of Lot 12 in Chauncey's Plat of Bottom Lands in the City of West Lafayette, Wabash Township, Tippecanoe County, Indiana, containing 1960 square feet from tax key number 164-02500-0480, containing 155 square feet from tax key number 164-02500-0491 and containing a total of 2115 square feet, more or less.

The above described strip of land is intended to be adjacent to

and contiguous with the northern right-of-way line of Brown Street as per a plat of survey by Ticen Surveying recorded as Document Number 99-19612 in the aforesaid Office of the Recorder.

Subject to all easements, rights-of-way and restrictions of record.

This conveyance is an exempt transaction pursuant to exemption D of the Unified Subdivision Ordinance of Tippecanoe County.

The Grantor hereby certifies that there is no Indiana gross income tax due with respect to this transfer.

The undersigned person executing this deed on behalf of Grantor represent and certify that they are duly elected officers of Grantor and have been fully empowered, by proper resolution of the Board of Directors of Grantor, to execute and deliver this deed; that Grantor has full corporate capacity to convey the real estate described herein; and that all necessary corporate action for the making of such conveyance has been taken and done.

IN WITNESS WHEREOF, Grantor has executed this deed this 8 day of December, 1999.

Wabash Landing, L.L.C.

By: _____
Herman F. Renfro, Partner

STATE OF INDIANA)
) SS:
COUNTY OF Tippecanoe)

Before me, a Notary Public in and for said County and State, personally

appeared Wabash Landing, L.L.C., by Herman F. Renfro, partner,an Indiana Limited Liability corporation, who acknowledged the execution of the foregoing Corporate Warranty Deed for and on behalf of said Grantor, and who, having been duly sworn, stated that any representations therein contained are true.

Witness my hand and Notarial Seal this 8 MCKP ~~X~~th day of December, 1999.

My Commission Expires:

Oct. 11, 2007

Signature: Sharon K. Baer
Printed: Sharon K. Baer
Notary Public residing in Tippecanoe County, IN.

SEND TAXES TO:

_____
_____
_____

This instrument prepared by:
Joseph T. Bumbleburg, of the firm of
BALL, EGGLESTON, BUMBLEBURG, McBRIDE
WALKEY & STAPLETON, PC
810 Bank One Building P.O. Box 1535
Lafayette, Indiana 47902
Telephone: (765) 742-9046
Attorney # 2987-79

EXHIBIT 2

[redacted]

201616007469 9
201616007469
FILED FOR RECORD IN
TIPPECANOE COUNTY, IN
SHANNON WITHERS, RECORDER
05/09/2016 04:10:09PM
DEED 33.00

Tax ID Nos. 79-07-20-306-001.000-026
79-07-20-308-013.000-026
79-07-20-377-005.000-026

QUITCLAIM DEED

THIS INDENTURE WITNESSETH, That the WEST LAFAYETTE REDEVELOPMENT COMMISSION, governing body of the City of West Lafayette Department of Redevelopment ("Grantor") QUITCLAIMS to INTERLOCAL COOPERATION BOARD OF THE CITY OF WEST LAFAYETTE, INDIANA AND THE TRUSTEES OF PURDUE UNIVERSITY ("Grantee"), established under the Interlocal Cooperation Agreement, dated as of May 19, 2015, by and between the City of West Lafayette, Indiana and The Trustees of Purdue University, for NO consideration, the receipt and sufficiency of which are hereby acknowledged, the real estate in Tippecanoe County, in the State of Indiana more particularly described on Exhibit A attached hereto and incorporated herein by this reference.

The undersigned persons executing this Quitclaim Deed on behalf of Grantor represent and certify that such persons are duly authorized to execute and deliver this Quitclaim Deed pursuant to Resolution RC 2016-5 approved on February 17, 2016 and Resolution RC 2016-6 approved on March 10, 2016; that Grantor has full organizational capacity to convey the real estate described herein; and that all necessary action for the making of such conveyance has been taken and done.

IN WITNESS WHEREOF, Grantor has executed this deed this 10th day of March, 2016.

WEST LAFAYETTE REDEVELOPMENT COMMISSION

By: _____
Lawrence T. Oates

ATTEST:

_____
Stephen B. Curtis

DULY ENTERED FOR TAXATION SUBJECT TO FINAL ACCEPTANCE FOR TRANSFER

MAY 09 2016

_____
AUDITOR OF TIPPECANOE CO.

STATE OF INDIANA)
) SS:
TIPPECANOE COUNTY)

Before me, a Notary Public in and for said County and State, this 10th day of March, 2016, personally appeared the within named LAWRENCE T. OATES and STEPHEN B. CURTIS, who acknowledged the execution of the foregoing Quitclaim Deed as their free act and deed, for the intents and purposes therein contained and swore to the truth of the matters contained therein.

WITNESS my hand and Notarial Seal. I am a resident of Tippecanoe County, State of Indiana.

My Commission Expires:

NOV 30 2023

Thomas L. Brooks Jr
NOTARY PUBLIC

This transfer is for no consideration and a disclosure form is not necessary.

I affirm, under the penalties for perjury, that I have taken reasonable care to redact each Social Security number in this document unless required by law. Thomas L. Brooks, Jr.

This instrument prepared by: Thomas L. Brooks, Jr., of the firm MAYFIELD AND BROOKS, 8 North Third St., Suite 405, P.O. Box 650, Lafayette, IN 47902; Telephone: (765) 423-5454; Fax: (765) 420-8114

EXHIBIT "A"

Project: Re-State
Parcel: 125 Fee Simple
Tax ID: 79-07-20-306-001.000-026

One Hundred thirteen (113) feet off the west end of Lot 13 of the Chauncey Plat of Bottom Lands to the now City of West Lafayette, Tippecanoe County, Indiana.

EXCEPT: A part of Lot 13 in Chauncey's Plat of Bottom Lands to the Town of Chauncey, now West Lafayette, Indiana, the plat of which subdivision is recorded in Deed Record 48, page 278, in the Office of the Recorder of Tippecanoe County, Indiana, described as follows: Beginning at the west corner of said lot; thence North 88 degrees 41 minutes 52 seconds East 40.99 feet along the north line of said lot; thence South 56 degrees 34 minutes 12 seconds East 65.95 feet to the east line of the owner's land; thence South 17 degrees 41 minutes 01 second West 7.66 feet along said east line to the southwestern line of said lot; thence North 65 degrees 29 minutes 53 seconds West 102.96 feet along said southwestern line to the point of beginning and containing 0.027 acres, more or less.

This description was prepared for the City of West Lafayette, Indiana by Jessica L. Stapleton, Indiana Professional Surveyor, License Number LS20600032, on the 11th day of February, 2016.

Jessica L Stapleton

JESSICA L. STAPLETON
REGISTERED
No.
LS20600032
STATE OF
INDIANA
LAND SURVEYOR

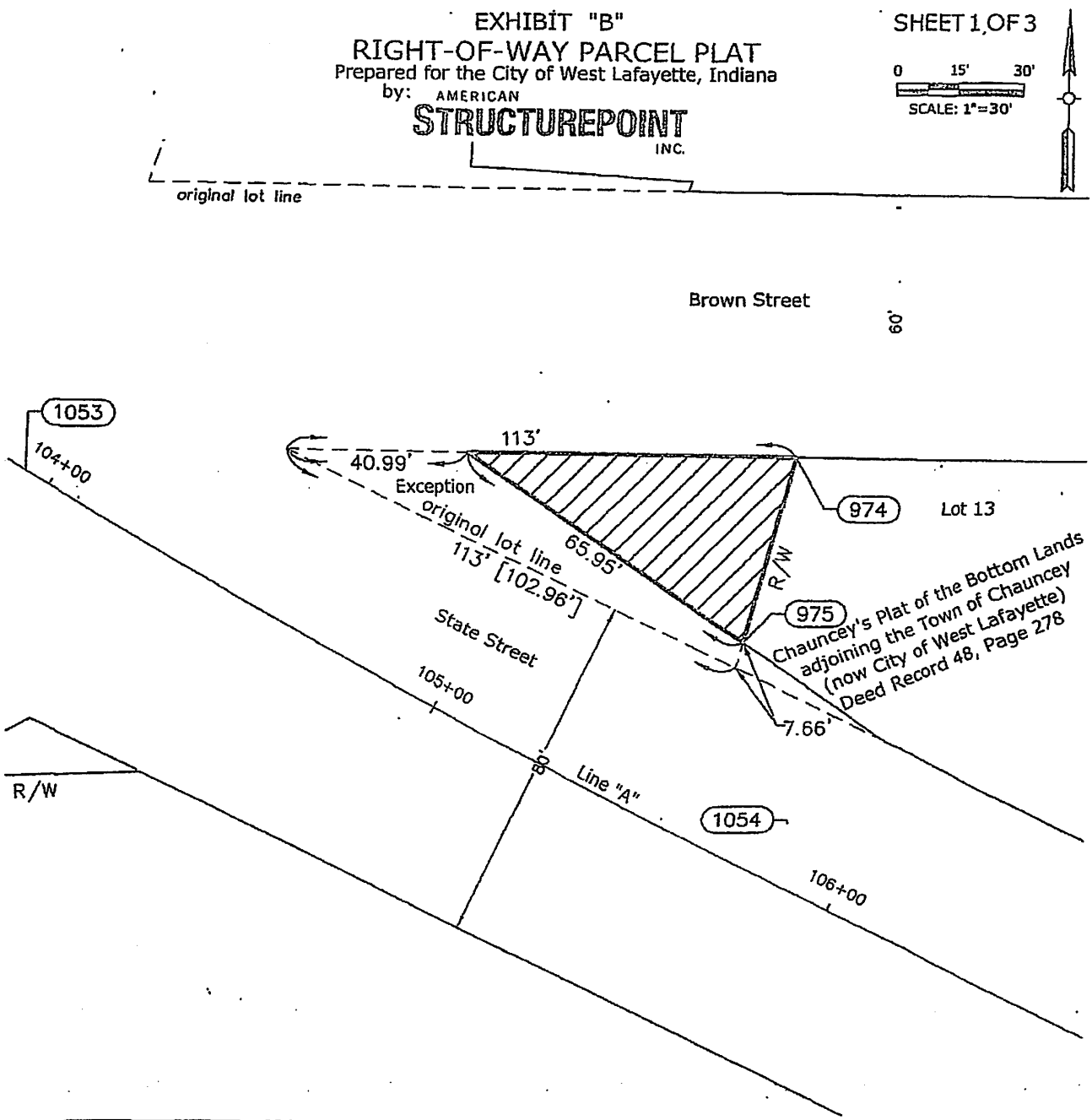
EXHIBIT "B"

RIGHT-OF-WAY PARCEL PLAT

Prepared for the City of West Lafayette, Indiana
by: AMERICAN STRUCTUREPOINT INC.

SHEET 1 OF 3

0 15' 30'
SCALE: 1"=30'



HATCHED AREA IS THE APPROXIMATE TAKING

OWNER:	WEST LAFAYETTE REDEVELOPMENT COMMISSION	DRAWN BY:	CMM
PARCEL:	125	CHECKED BY:	JLS
CODE:	N/A	DES. NO.:	N/A
PROJECT:	RE-STATE		
ROAD:	STATE STREET		
COUNTY:	TIPPECANOE		
SECTION:	20		
TOWNSHIP:	23 NORTH		
RANGE:	4 WEST		

INSTRUMENT NUMBER 9621057, DATED SEPTEMBER 25, 1996
INSTRUMENT NUMBER 9621058, DATED SEPTEMBER 25, 1996
INSTRUMENT NUMBER 9824841, DATED SEPTEMBER 15, 1998

THIS PLAT WAS PREPARED FROM PUBLIC DOCUMENTS AND NOT CHECKED BY A FIELD SURVEY.

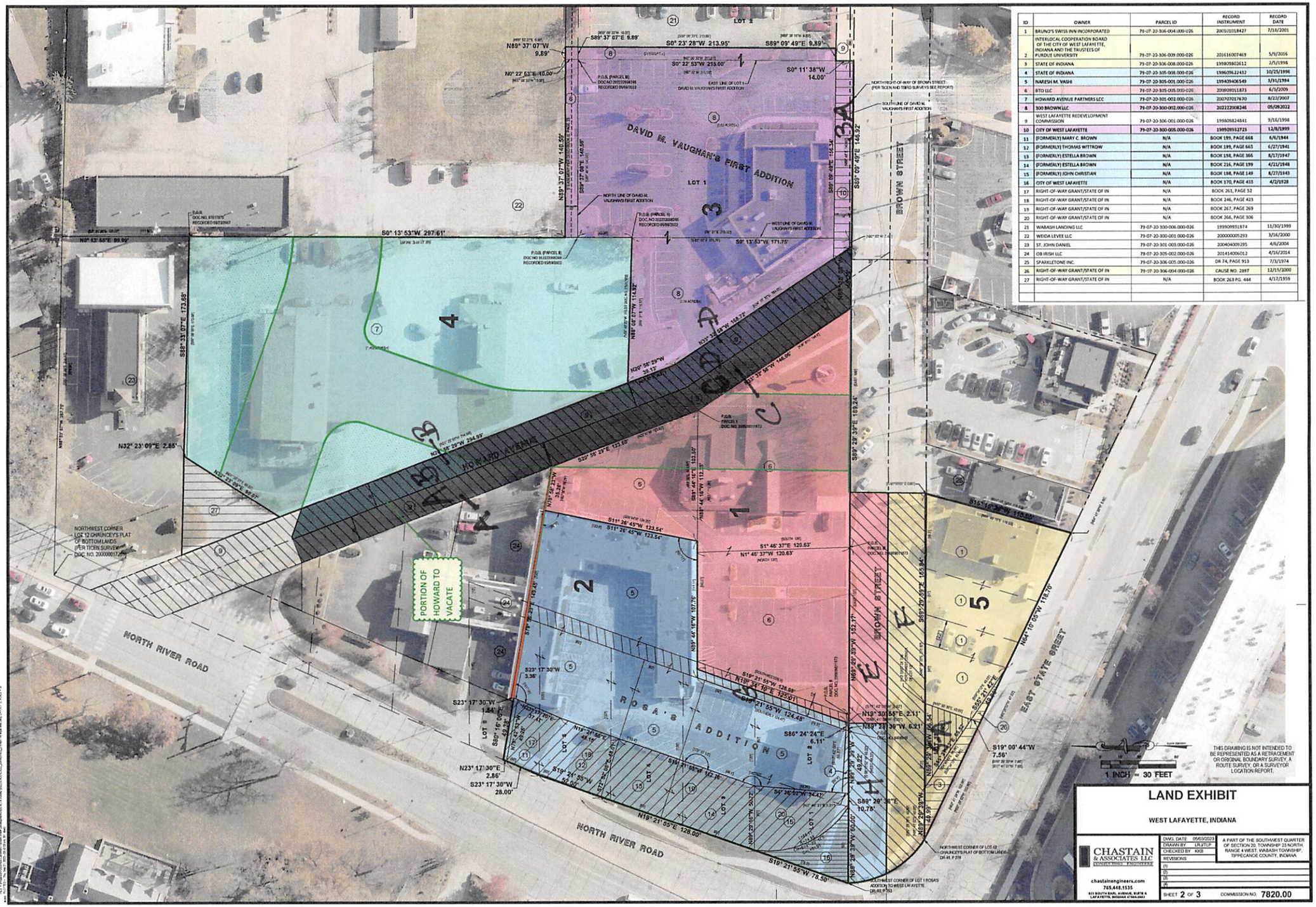
EXHIBIT 3

VACATION OF HOWARD AVENUE-LEGAL DESCRIPTION-EXHIBIT 1

A part of Lot Numbered 12 (twelve) in Chauncey's Plat of Bottom Lands, as per the plat thereof, Plat Book 48, Page 277 - 279, recorded January 15th/, 1866, in the Office of the Tippecanoe County Recorder, being platted on a part of the Southwest Quarter of Section Twenty (20), Township Twenty-three (23) North, Range Four (4) West, Wabash Township, Tippecanoe County, Indiana, more particularly described as follows:

Commencing at a point on the south line of a tract of land described in a Corporate Deed to Weida Levee LLC, Document Number 200000005293, recorded March 16, 2000, in the Office of the Tippecanoe County Recorder; said point being North 00°29'59 East, 10.00 feet and South 89°44'13" East, 9.89 feet from the Northeast corner of Lot Numbered 1 in David M. Vaughan's First Addition to the City of West Lafayette, as per the plat thereof, Plat Book 8, Page 25, recorded January 9, 1962, in said Recorder's Office and marked by 5/8" rebar with a plastic cap stamped "Ticen"; thence parallel with the east line of said Lot 1 (being the basis of bearings of the herein described tract) , South 00°16'22" West, 213.95 feet to the North right-of-way of Brown Street, per the Final Plat of Wabash Landing, Phase 1, Part 2, as per the plat thereof, Plat Cabinet AA, Page 170, recorded March 3, 2000 in said Recorders Office; thence along said north right-of-way line North 89°16'56" West, 9.89 feet; thence South 00°15'47" West, 14.00 feet to the North right-of-way line of Brown Street per said Chauncey's Plat of Bottom Lands; thence along said north right-of-way line North 89°17'17" West, 139.93 feet to the Point of Beginning; thence North 89°17'17" West, along said north right -of-way line, 55.41 feet to the western right-of-way line of Howard Avenue; thence along said western right-of-way line for the following two (2) courses; 1) North 33°40'05" West, 145.76 feet; 2) thence North 21°05'35" West, 335.31 feet; thence North 68°54'20" East, 21.85 feet; thence South 70°56'57" East to the eastern right-of-way line of said Howard Avenue, 23.74 feet; thence along said eastern right-of-way line for the following two (2) courses; 1) South 21°05'35" East, 315.60 feet; 2) thence South 33°40'05" East, 151.83 feet; thence South 89°16'56" East, parallel with northerly of and 14.00 feet distant from said northern right-of-way line of Brown Street, 16.33 feet; thence South 00°06'45" West, along the western line said Lot Numbered 1, 13.94 feet to the Point of Beginning, containing 0.45 acres, more or less.

EXHIBIT 4



ID	OWNER	PARCEL ID	RECORD INSTRUMENT	RECORD DATE
1	BRUNO'S SWISS INN INCORPORATED	79-07-20-306-004.000-026	200101018427	7/18/2001
2	INTERLOCAL COOPERATION BOARD OF THE CITY OF WEST LAFAYETTE, INDIANA AND THE TRUSTEES OF PURDUE UNIVERSITY	79-07-20-306-009.000-026	201616007469	5/9/2016
3	STATE OF INDIANA	79-07-20-306-008.000-026	199809802612	2/5/1998
4	STATE OF INDIANA	79-07-20-305-008.000-026	199609612432	10/25/1996
5	NARESH M. VASHI	79-07-20-305-001.000-026	199409406549	3/31/1994
6	BTO LLC	79-07-20-305-005.000-026	200909011873	6/3/2009
7	HOWARD AVENUE PARTNERS LCC	79-07-20-301-002.000-026	200707017670	8/22/2007
8	300 BROWN LLC	79-07-20-300-002.000-026	202212300246	05/09/2022
9	WEST LAFAYETTE REDEVELOPMENT COMMISSION	79-07-20-306-001.000-026	199809824841	9/16/1998
10	CITY OF WEST LAFAYETTE	79-07-20-300-005.000-026	199909932723	12/8/1999
11	(FORMERLY) MARY C. BROWN	N/A	BOOK 199, PAGE 668	6/6/1944
12	(FORMERLY) THOMAS WITTROW	N/A	BOOK 199, PAGE 663	6/27/1941
13	(FORMERLY) ESTELLA BROWN	N/A	BOOK 198, PAGE 366	8/17/1947
14	(FORMERLY) ESTELLA BROWN	N/A	BOOK 216, PAGE 199	4/21/1948
15	(FORMERLY) JOHN CHRISTIAN	N/A	BOOK 198, PAGE 149	8/27/1943
16	CITY OF WEST LAFAYETTE	N/A	BOOK 170, PAGE 433	4/2/1928
17	RIGHT-OF-WAY GRANT/STATE OF IN	N/A	BOOK 261, PAGE 52	
18	RIGHT-OF-WAY GRANT/STATE OF IN	N/A	BOOK 246, PAGE 423	
19	RIGHT-OF-WAY GRANT/STATE OF IN	N/A	BOOK 267, PAGE 269	
20	RIGHT-OF-WAY GRANT/STATE OF IN	N/A	BOOK 266, PAGE 306	
21	WABASH LANDING LLC	79-07-20-300-006.000-026	199909931974	11/30/1999
22	WEIDA LEVEE LLC	79-07-20-300-001.000-026	200000005293	3/16/2000
23	ST. JOHN DANIEL	79-07-20-301-003.000-026	200404009295	4/6/2004
24	OB IRISH LLC	79-07-20-305-002.000-026	201414006012	4/16/2014
25	SPARKLETONE INC.	79-07-20-306-005.000-026	DR 74, PAGE 913	7/3/1974
26	RIGHT-OF-WAY GRANT/STATE OF IN	79-07-20-306-004.000-026	CAUSE NO. 2897	12/15/2000
27	RIGHT-OF-WAY GRANT/STATE OF IN	N/A	BOOK 263 PG. 444	4/17/1959

THIS DRAWING IS NOT INTENDED TO BE REPRESENTED AS A RETRACEMENT OR ORIGINAL BOUNDARY SURVEY, A ROUTE SURVEY, OR A SURVEYOR LOCATION REPORT.

LAND EXHIBIT

WEST LAFAYETTE, INDIANA

CHASTAIN & ASSOCIATES LLC
CONSULTING ENGINEERS
chastainengineers.com
765.448.1535
825 SOUTH EARL AVENUE, SUITE A
LAFAYETTE, INDIANA 47904-2662

DWG. DATE 05/03/2023
DRAWN BY LR/JTP
CHECKED BY KKB
REVISIONS
(1)
(2)
(3)
(4)

A PART OF THE SOUTHWEST QUARTER OF SECTION 20, TOWNSHIP 23 NORTH, RANGE 4 WEST, WABASH TOWNSHIP, TIPPECANOE COUNTY, INDIANA

SHEET 2 OF 3 COMMISSION NO. 7820.00

EXHIBIT 5

ALLEY VACATION DESCRIPTION – ROSA'S ADDITION TO WEST LAFAYETTE

An Alley Twelve (12) feet in even width located along the entire east side of Rosa's Addition to West Lafayette, as per the plat thereof, Plat Book 1, Page 2, and described in Deed Record 93, Page 253, recorded October 27, 1890, in the Office of the Tippecanoe County Recorder, being platted on a part of the Southwest Quarter of Section Twenty (20), Township Twenty-three (23) North, Range Four (4) West, Wabash Township, Tippecanoe County, Indiana, more particularly described as follows:

Beginning at the Southeast corner of Lot 2 (two) in said in said Rosa's Addition, thence along the East line common to Lots Two (2) though Six (6) North 19°21'55" East 317.99 feet to the Northeast corner thereof; thence along the North line of said Rosa's Addition South 89°58'32" East 12.72 feet to the East line thereof; thence along the East line of said Rosa's Addition South 19°21'55" West 318.10 feet to the North line of Brown Street; thence along said North line North 89°29'39" West 12.68 feet to the Point of Beginning, containing 0.088 acres, more or less.

SUBJECT TO ALL EASEMENTS, RESTRICTIONS, AND RIGHTS-OF-WAY OF RECORD

SURVEYOR'S CERTIFICATION:

I, Kyle K. Betz, a Registered Professional Land Surveyor in the State of Indiana, do hereby certify that the above description was prepared under my supervision.

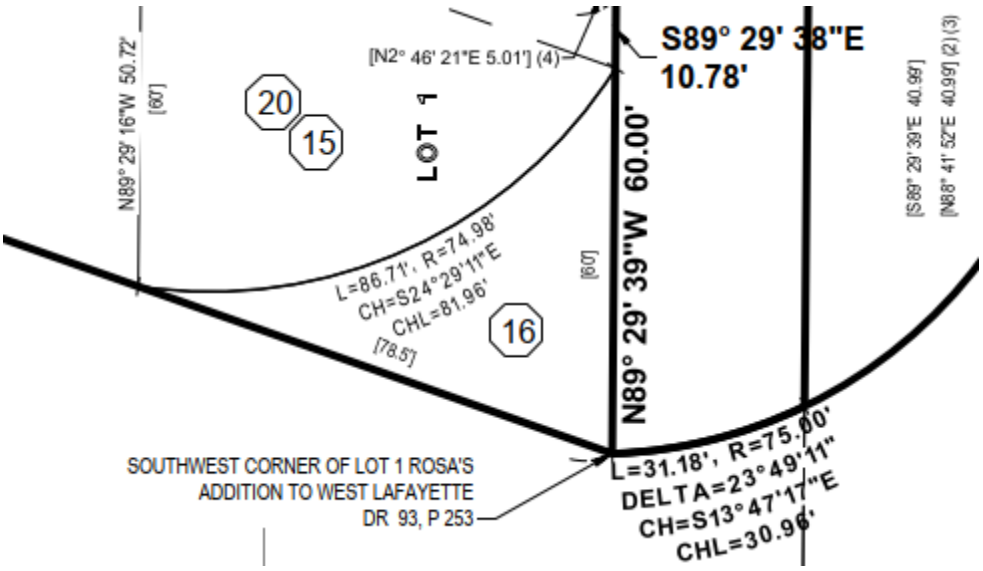
08/25/2023

KYLE K. BETZ (LS20400023) DATE

EXHIBIT 6

A part of Lot numbered One (1) in Rosa's Addition to the City of West Lafayette, Indiana, described as follows:

Commencing at the Northwest corner of said lot, and running thence southward along the east line of Ellsworth Street, and the west line of said lot, seventy eight and fifty hundredths (78.50) feet to the southwest corner thereof; thence east along the line of Brown Street Levee and and along the south line of said lot sixty (60) feet, to the southeast corner thereof, thence in a northwesterly direction; following the line of a curve to the right, as described by a seventy five (75) foot radius, about eighty nine (89) feet to the place of beginning.



STATE OF INDIANA)
TIPPECANOE COUNTY, INDIANA)

BEFORE THE COMMON COUNCIL OF THE
CITY OF WEST LAFAYETTE, INDIANA

PETITION FOR TRANSFER OF REAL ESTATE; PETITION TO VACATE RIGHT-OF-WAY

COME NOW the following entities by their designated representative, Landmark Properties, Inc., an Indiana corporation ("Landmark"): 300 Brown, LLC, an Indiana limited liability company ("300 Brown"); B.T.O., LLC, an Indiana limited liability company ("BTO"); Bruno's Swiss Inn, Inc., an Indiana corporation ("Swiss Inn"); Howard Avenue Partners LLC, an Indiana limited liability company ("HAP"); Naresh M. Vashi ("Vashi"); and OB Irish LLC, an Indiana limited liability company ("Nine Irish").

Landmark hereby respectfully petitions the Common Council of the City of West Lafayette, Indiana ("Council") for (1) the transfer of certain real estate owned by the City, and (2) the vacation of certain right-of-way located within the City of West Lafayette, Indiana ("City") and more particularly described and depicted herein. In support, Landmark states as follows:

TRANSFER OF REAL ESTATE

1. The City is the owner of certain real estate located in West Lafayette, Indiana consisting of approximately **0.045 acres** and having **State Identification No. 79-07-20-300-005.000-026** ("Transfer Real Estate 1"). Transfer Real Estate 1 is labeled as 3-A on the Transfer and Vacation Exhibit (defined below) and is more particularly described in the deed attached hereto and made a part hereof as **EXHIBIT 1**.

2. The City is the owner of certain real estate located in West Lafayette, Indiana consisting of approximately **0.0367 acres** and having **State Identification No. 79-07-20-306-009.000-026** ("Transfer Real Estate 2"). Transfer Real Estate 2 is labeled 5-A on the Transfer and Vacation Exhibit and is more particularly described in the deed attached hereto and made a part hereof as **EXHIBIT 2**.

3. The City is the owner of certain real estate located in West Lafayette, Indiana located near the intersection of N River Road and State Street ("Transfer Real Estate 3"). No State Identification Number has been assigned to Transfer Real Estate 3. Transfer Real Estate 3 is described and depicted in **EXHIBIT 7** attached hereto and made a part hereof.

4. Landmark hereby requests that the City transfer and convey Transfer Real Estate 1 to Landmark State Street Surplus, LLC, an Indiana limited liability company, an affiliate of Landmark ("LSSS Owner"). Transfer Real Estate 1 will become a part of the Landmark on the Levee Planned Development ("Planned Development"). Upon Landmark's information and belief, the City does not

wish to own Transfer Real Estate 1 because, on its own, it is undevelopable ground that serves no specific purpose. Upon Landmark's information and belief, Transfer Real Estate 1 has a value of less than $25,000.00.

5. Landmark hereby requests that the City transfer and convey Transfer Real Estate 2 to LSSS Owner. Transfer Real Estate 2 will become a part of the Planned Development. Upon Landmark's information and belief, the City does not wish to own Transfer Real Estate 2 because, on its own, it is undevelopable ground that serves no specific purpose. Additionally, upon Landmark's information and belief, the City does not wish to own the Transfer Real Estate 2 because it is located next to real estate that may require environmental cleanup. Upon Landmark's information and belief, Transfer Real Estate 2 has a value of less than $25,000.00.

6. Landmark hereby requests that the City transfer and convey Transfer Real Estate 3 to LSSS Owner. Transfer Real Estate 3 will become a part of the Planned Development. Upon Landmark's information and belief, the City does not wish to own Transfer Real Estate 3 because, on its own, it is undevelopable ground that serves no specific purpose. Upon Landmark's information and belief, Transfer Real Estate 3 has a value of less than $25,000.00.

VACATION OF RIGHT-OF-WAY

7. 300 Brown is the owner of the property commonly known as 300 Brown Street, having State Identification No. 79-07-20-300-002.000-026 ("300 Brown Real Estate"). The 300 Brown Real Estate is labeled 3 on the **EXHIBIT 3** attached hereto and made a part hereof ("Transfer and Vacation Exhibit"). 300 Brown intends to sell the 300 Brown Real Estate to Landmark or its assigns.

8. BTO is the owner of the property commonly known as 212 Brown Street, having State Identification No. 79-07-20-305-005.000-026 ("BTO Real Estate"). The BTO Real Estate is labeled 1 on the Transfer and Vacation Exhibit. BTO is under contract to sell the BTO Real Estate to Landmark or its assigns.

9. Swiss Inn is the owner of the property commonly known as 224 E State Street, having State Identification No. 79-07-20-306-004.000-026 ("Swiss Inn Real Estate"). The Swiss Inn Real Estate is labeled 5 on the Transfer and Vacation Exhibit. Swiss Inn is under contract to sell the Swiss Inn Real Estate to Landmark.

10. HAP is the owner of the property commonly known as 140 Howard Avenue, having State Identification No. 79-07-20-301-002.000-026 ("HAP Real Estate"). The HAP Real Estate is labeled 4 on the Transfer and Vacation Exhibit. HAP is under contract to sell the HAP Real Estate to Landmark.

11. Vashi is the owner of the property commonly known as 200 Brown Street, having State Identification No. 79-07-20-305-001.000-026 ("Vashi Real Estate"). The Vashi Real Estate is labeled 2 on the Transfer and Vacation Exhibit. Vashi is under contract to sell the Vashi Real Estate to Landmark.

12. Nine Irish is the owner of the property commonly known as 119 Howard Avenue, having State Identification No. 79-07-20-305-002.000-026 ("Nine Irish Real Estate").

13. The 300 Brown Real Estate, BTO Real Estate, Swiss Inn Real Estate, HAP Real Estate, and Vashi Real Estate are intended to be a part of the Planned Development. For the avoidance of doubt, it is understood that the Nine Irish Real Estate will not be a part of the Planned Development.

14. Howard Avenue is a public right-of-way ("Howard Avenue") located in West Lafayette, Indiana.

15. Brown Street is a public right-of-way ("Brown Street") located in West Lafayette, Indiana.

16. A public alley is located adjacent to the eastern boundary line of the Vashi Real Estate ("Alley"). Upon Landmark's information and belief, the east one-half of the Alley was previously vacated and transferred to the owner(s) of the BTO Real Estate.

17. As part of the Planned Development, Howard Avenue shall be relocated (and potentially renamed) ("Relocated Right-of-Way"). The Relocated Right-of-Way shall be dedicated to the public upon the recording of the final plat for the Planned Development. The West Lafayette Board of Public Works and Safety ("Board") is the governmental body and/or entity with authority to dedicate the Relocated Right-of-Way for public use. A separate petition for decision will be filed with the Board.

18. Landmark hereby requests that the portion of Howard Avenue lying between the Nine Irish Real Estate and the HAP Real Estate and shown on the Transfer and Vacation Exhibit be vacated. The area depicted in gray with hashmarks and labeled A on the Transfer and Vacation Exhibit shall be transferred and attach to the Nine Irish Real Estate. The area depicted in teal blue with hashmarks and labeled B on the Transfer and Vacation Exhibit shall be transferred and attach to the HAP Real Estate (part of this area to be transferred to the HAP Real Estate also lies to the east of the BTO Real Estate).

19. Landmark further requests that the portion of Howard Avenue lying between the BTO Real Estate and the HAP Real Estate and shown on the Transfer and Vacation Exhibit be vacated. The area depicted in orange with hashmarks and labeled C on the Transfer and Vacation Exhibit shall be transferred and attach to the BTO Real Estate. The area depicted in purple with hashmarks and labeled D on the Transfer and Vacation Exhibit shall be transferred and attach to the 300 Brown Real Estate.

20. Landmark further requests that the portion of Brown Street lying between the BTO Real Estate and the Swiss Inn Real Estate and shown on the Transfer and Vacation Exhibit be vacated. The area depicted in orange with hashmarks and labeled E on the Transfer and Vacation Exhibit shall be

transferred and attach to the BTO Real Estate. The area depicted in yellow with hashmarks and labeled F on the Transfer and Vacation Exhibit shall be transferred and attach to the Swiss Inn Real Estate.

21. Intentionally deleted

22. Landmark further requests that the portion of the public alley lying adjacent to the eastern boundary of the Vashi Real Estate and shown on the Transfer and Vacation Exhibit be vacated. The area depicted in blue with hashmarks and labeled G on the Transfer and Vacation Exhibit shall be transferred and attach to the Vashi Real Estate. The legal description for the public alley being vacated is attached hereto and made a part hereof as **EXHIBIT 4**.

23. Landmark further requests that the portion of Brown Street located adjacent to the southern boundary of the Vashi Real Estate and shown on the Transfer and Vacation Exhibit be vacated. The area depicted in blue with hashmarks and labeled H on the Transfer and Vacation Exhibit shall be transferred and attach to the Vashi Real Estate.

24. The entire area of the existing Howard Avenue being vacated is more particularly described in **EXHIBIT 5** attached hereto and made a part hereof.

25. All of the right-of-way being vacated is public right-of-way.

26. The proposed vacations will not hinder the growth or orderly development of the neighborhood in which the vacated areas are located or any property to which such areas are contiguous.

27. The proposed vacations will not make access to any lands by means of public way difficult or inconvenient.

28. The proposed vacations will not hinder the public's access to any church, school, or other public building or place.

29. The proposed vacations will not hinder the use of a public way by the neighborhood in which it is located or to which it is contiguous.

30. The Relocated Right-of-Way shall serve as a safer and more direct public right-of-way that will connect Brown Street with a new east-west right-of-way connecting to North River Road.

31. Appropriate public utility easements will be included on the final plat of the Planned Development.

32. As necessary, the City shall grant easements over public right-of-way to Landmark and/or its assigns for the erection, placement, and construction of the Relocated Right-of-Way, and for all other purposes for which a public road and right-of-way is commonly used including installing, altering, replacing, relocating, and operating utilities in, into, upon, over, across, and under said right-of-way, and including, but not limited to, all such uses permitted by the laws of the State of Indiana and ordinances of the County and the City. Such easements shall be for a term that commences upon the acceptance of the dedication until the acceptance of the completed Relocated Right-of-Way by the Board.

33. Landmark or its assigns, as part of the Planned Development, shall erect, place, or construct, or cause to be erected, placed, or constructed in, into, upon, over, across, or under the Relocated Right-of-Way any temporary or permanent structures for said public road. The Relocated Right-of-Way and all related improvements shall be constructed in reasonable compliance with City standards and specifications for public roads. Landmark or its assigns shall have the right to remove, excavate, or fill upon the Relocated Right-of-Way any fences, buildings, or other obstructions as may now be located within the area where the Relocated Right-of-Way will be constructed.

34. Upon Landmark's information and belief, the vacations and transfers referenced in this Petition are in the best interest of the City.

35. Upon Landmark's information and belief, the City is receiving equivalent value for each of the proposed vacations and transfers referenced in this Petition.

36. The approximate location of the Relocated Right-of-Way is depicted on the Transfer and Vacation Exhibit.

37. A list of the names and addresses of (a) all owners of land abutting and/or across the street from the areas to be vacated pursuant to this Petition, and (b) the utility companies serving West Lafayette, Indiana, and who may have an interest in this Petition, is attached hereto and made a part hereof as **EXHIBIT 6**.

[The remainder of this page intentionally left blank]

DocuSign Envelope ID: BED38D82-5161-4850-8909-D272C87FA630

WHEREFORE, Landmark, on behalf of the above-named owners, requests that the Council enter an order of vacation, dedication, and transfer in accordance with this Petition.

300 Brown, LLC,
an Indiana limited liability company

By: Landmark Properties, Inc., its duly authorized representative

By: DocuSigned by: 05B15947E87A42A...
Beau Pahud
Its: Vice President

B.T.O., LLC,
an Indiana limited liability company

By: Landmark Properties, Inc., its duly authorized representative

By: DocuSigned by: 05B15947E87A42A...
Beau Pahud
Its: Vice President

Bruno's Swiss Inn, Inc.,
an Indiana corporation

By: Landmark Properties, Inc., its duly authorized representative

By: DocuSigned by: 05B15947E87A42A...
Beau Pahud
Its: Vice President

Naresh M. Vashi

By: Landmark Properties, Inc., his duly authorized representative

By: DocuSigned by: 05B15947E87A42A...
Beau Pahud
Its: Vice President

DocuSign Envelope ID: BED38D82-5161-4850-8909-D272C87FA630

Howard Avenue Partners LLC,
an Indiana limited liability company

By: Landmark Properties, Inc., its duly authorized representative

By: DocuSigned by: 05B15947E87A42A...
Beau Pahud
Its: Vice President

OB Irish LLC,
an Indiana limited liability company

By: Landmark Properties, Inc., its duly authorized representative

By: DocuSigned by: 05B15947E87A42A...
Beau Pahud
Its: Vice President

This instrument prepared by:
Kevin J. Riley
Reiling Teder & Schrier, LLC
250 Main Street, Suite 601
P.O. Box 280
Lafayette, IN 47902-0280
Telephone: (765) 423-5333
Facsimile: (765) 423-4564
E-mail: kjr@rtslawfirm.com

EXHIBIT 1

DULY ENTERED FOR TAXATION
SUBJECT TO FINAL ACCEPTANCE
FOR TRANSFER

DEC 08 1999

AUDITOR OF TIPP. TK

9932723 12/08/1999 09:51A 1 of 1
Pamela K. Berglund, Tippecanoe County Recorder

Tax Duplicate Nos. 164-02500-0480
164-02500-0491

CORPORATE WARRANTY DEED

THIS INDENTURE WITNESSETH, That Wabash Landing, L.L.C. ("Grantor"), a limited liability corporation organized and existing under the laws of the State of Indiana CONVEYS AND WARRANTS to City of West Lafayette, Tippecanoe County, Indiana ("Grantee"), for the sum of ten and no/100 dollars ($10.00) and other valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the following described real estate in Tippecanoe County, State of Indiana:

A strip of land fourteen (14) feet in even width off of the entire southern end of the Robert W. Bibler Trust real estate described in Document Number 9708504 in the Office of the Recorder of Tippecanoe County, Indiana, said strip of land being located on a part of Lot 1 in David M. Vaughan's First Addition to the City of West Lafayette, and a part of Lot 12 in Chauncey's Plat of Bottom Lands in the City of West Lafayette, Wabash Township, Tippecanoe County, Indiana, containing 1960 square feet from tax key number 164-02500-0480, containing 155 square feet from tax key number 164-02500-0491 and containing a total of 2115 square feet, more or less.

The above described strip of land is intended to be adjacent to

and contiguous with the northern right-of-way line of Brown Street as per a plat of survey by Ticen Surveying recorded as Document Number 99-19612 in the aforesaid Office of the Recorder.

Subject to all easements, rights-of-way and restrictions of record.

This conveyance is an exempt transaction pursuant to exemption D of the Unified Subdivision Ordinance of Tippecanoe County.

The Grantor hereby certifies that there is no Indiana gross income tax due with respect to this transfer.

The undersigned person executing this deed on behalf of Grantor represent and certify that they are duly elected officers of Grantor and have been fully empowered, by proper resolution of the Board of Directors of Grantor, to execute and deliver this deed; that Grantor has full corporate capacity to convey the real estate described herein; and that all necessary corporate action for the making of such conveyance has been taken and done.

IN WITNESS WHEREOF, Grantor has executed this deed this 28 day of November, 1999.

Wabash Landing, L.L.C.

By: _____
Herman F. Renfro, Partner

STATE OF INDIANA)
) SS:
COUNTY OF Tippecanoe)

Before me, a Notary Public in and for said County and State, personally

appeared Wabash Landing, L.L.C., by Herman F. Renfro, partner,an Indiana Limited Liability corporation, who acknowledged the execution of the foregoing Corporate Warranty Deed for and on behalf of said Grantor, and who, having been duly sworn, stated that any representations therein contained are true.

Witness my hand and Notarial Seal this 8 MCKP ~~8~~ TH day of December, 1999.

My Commission Expires:

Oct. 11, 2007

Signature: Sharon K. Baer

Printed: Sharon K. Baer

Notary Public residing in Tippecanoe County, IN.

SEND TAXES TO:

_____

_____

_____

This instrument prepared by:
Joseph T. Bumbleburg, of the firm of
BALL, EGGLESTON, BUMBLEBURG, McBRIDE
WALKEY & STAPLETON, PC
810 Bank One Building P.O. Box 1535
Lafayette, Indiana 47902
Telephone: (765) 742-9046
Attorney # 2987-79

EXHIBIT 2

[redacted]

201616007469 9
201616007469
FILED FOR RECORD IN
TIPPECANOE COUNTY, IN
SHANNON WITHERS, RECORDER
05/09/2016 04:10:09PM
DEED 33.00

Tax ID Nos. 79-07-20-306-001.000-026
79-07-20-308-013.000-026
79-07-20-377-005.000-026

QUITCLAIM DEED

THIS INDENTURE WITNESSETH, That the WEST LAFAYETTE REDEVELOPMENT COMMISSION, governing body of the City of West Lafayette Department of Redevelopment ("Grantor") QUITCLAIMS to INTERLOCAL COOPERATION BOARD OF THE CITY OF WEST LAFAYETTE, INDIANA AND THE TRUSTEES OF PURDUE UNIVERSITY ("Grantee"), established under the Interlocal Cooperation Agreement, dated as of May 19, 2015, by and between the City of West Lafayette, Indiana and The Trustees of Purdue University, for NO consideration, the receipt and sufficiency of which are hereby acknowledged, the real estate in Tippecanoe County, in the State of Indiana more particularly described on Exhibit A attached hereto and incorporated herein by this reference.

The undersigned persons executing this Quitclaim Deed on behalf of Grantor represent and certify that such persons are duly authorized to execute and deliver this Quitclaim Deed pursuant to Resolution RC 2016-5 approved on February 17, 2016 and Resolution RC 2016-6 approved on March 10, 2016; that Grantor has full organizational capacity to convey the real estate described herein; and that all necessary action for the making of such conveyance has been taken and done.

IN WITNESS WHEREOF, Grantor has executed this deed this 10th day of March, 2016.

WEST LAFAYETTE REDEVELOPMENT COMMISSION

By: _____
Lawrence T. Oates

ATTEST:

_____
Stephen B. Curtis

DULY ENTERED FOR TAXATION SUBJECT TO FINAL ACCEPTANCE FOR TRANSFER

MAY 09 2016

AUDITOR OF TIPPECANOE CO.

STATE OF INDIANA)
) SS:
TIPPECANOE COUNTY)

Before me, a Notary Public in and for said County and State, this 10th day of March, 2016, personally appeared the within named LAWRENCE T. OATES and STEPHEN B. CURTIS, who acknowledged the execution of the foregoing Quitclaim Deed as their free act and deed, for the intents and purposes therein contained and swore to the truth of the matters contained therein.

WITNESS my hand and Notarial Seal. I am a resident of Tippecanoe County, State of Indiana.

My Commission Expires:

NOV 30 2023

Thomas L. Brooks Jr
NOTARY PUBLIC

This transfer is for no consideration and a disclosure form is not necessary.

I affirm, under the penalties for perjury, that I have taken reasonable care to redact each Social Security number in this document unless required by law. Thomas L. Brooks, Jr.

This instrument prepared by: Thomas L. Brooks, Jr., of the firm MAYFIELD AND BROOKS, 8 North Third St., Suite 405, P.O. Box 650, Lafayette, IN 47902; Telephone: (765) 423-5454; Fax: (765) 420-8114

EXHIBIT "A"

Project: Re-State
Parcel: 125 Fee Simple
Tax ID: 79-07-20-306-001.000-026

One Hundred thirteen (113) feet off the west end of Lot 13 of the Chauncey Plat of Bottom Lands to the now City of West Lafayette, Tippecanoe County, Indiana.

EXCEPT: A part of Lot 13 in Chauncey's Plat of Bottom Lands to the Town of Chauncey, now West Lafayette, Indiana, the plat of which subdivision is recorded in Deed Record 48, page 278, in the Office of the Recorder of Tippecanoe County, Indiana, described as follows: Beginning at the west corner of said lot; thence North 88 degrees 41 minutes 52 seconds East 40.99 feet along the north line of said lot; thence South 56 degrees 34 minutes 12 seconds East 65.95 feet to the east line of the owner's land; thence South 17 degrees 41 minutes 01 second West 7.66 feet along said east line to the southwestern line of said lot; thence North 65 degrees 29 minutes 53 seconds West 102.96 feet along said southwestern line to the point of beginning and containing 0.027 acres, more or less.

This description was prepared for the City of West Lafayette, Indiana by Jessica L. Stapleton, Indiana Professional Surveyor, License Number LS20600032, on the 11th day of February, 2016.

Jessica L Stapleton

JESSICA L. STAPLETON
REGISTERED
No. LS20600032
STATE OF INDIANA
LAND SURVEYOR

EXHIBIT "B"

RIGHT-OF-WAY PARCEL PLAT

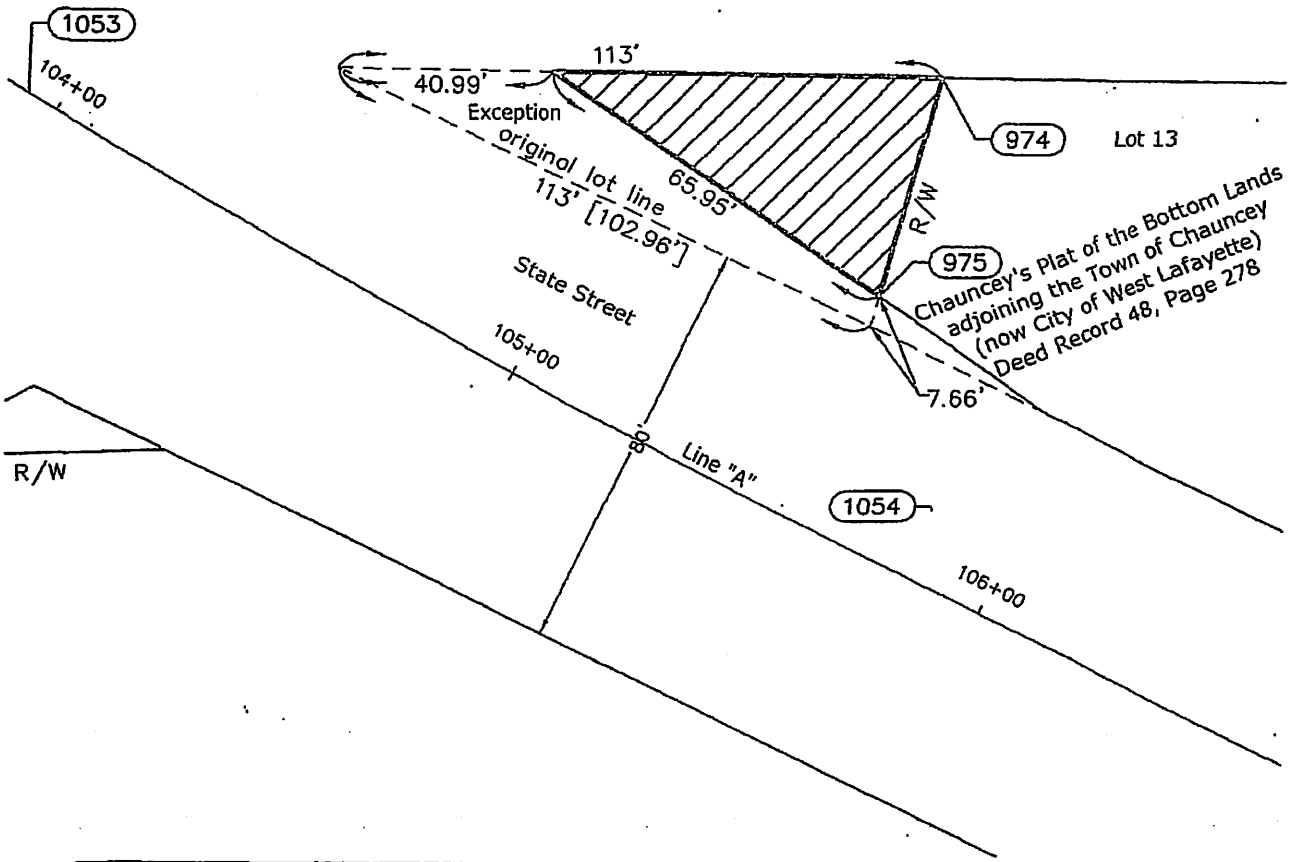
Prepared for the City of West Lafayette, Indiana

by: AMERICAN STRUCTUREPOINT INC.

SHEET 1 OF 3

0 15' 30'

SCALE: 1"=30'



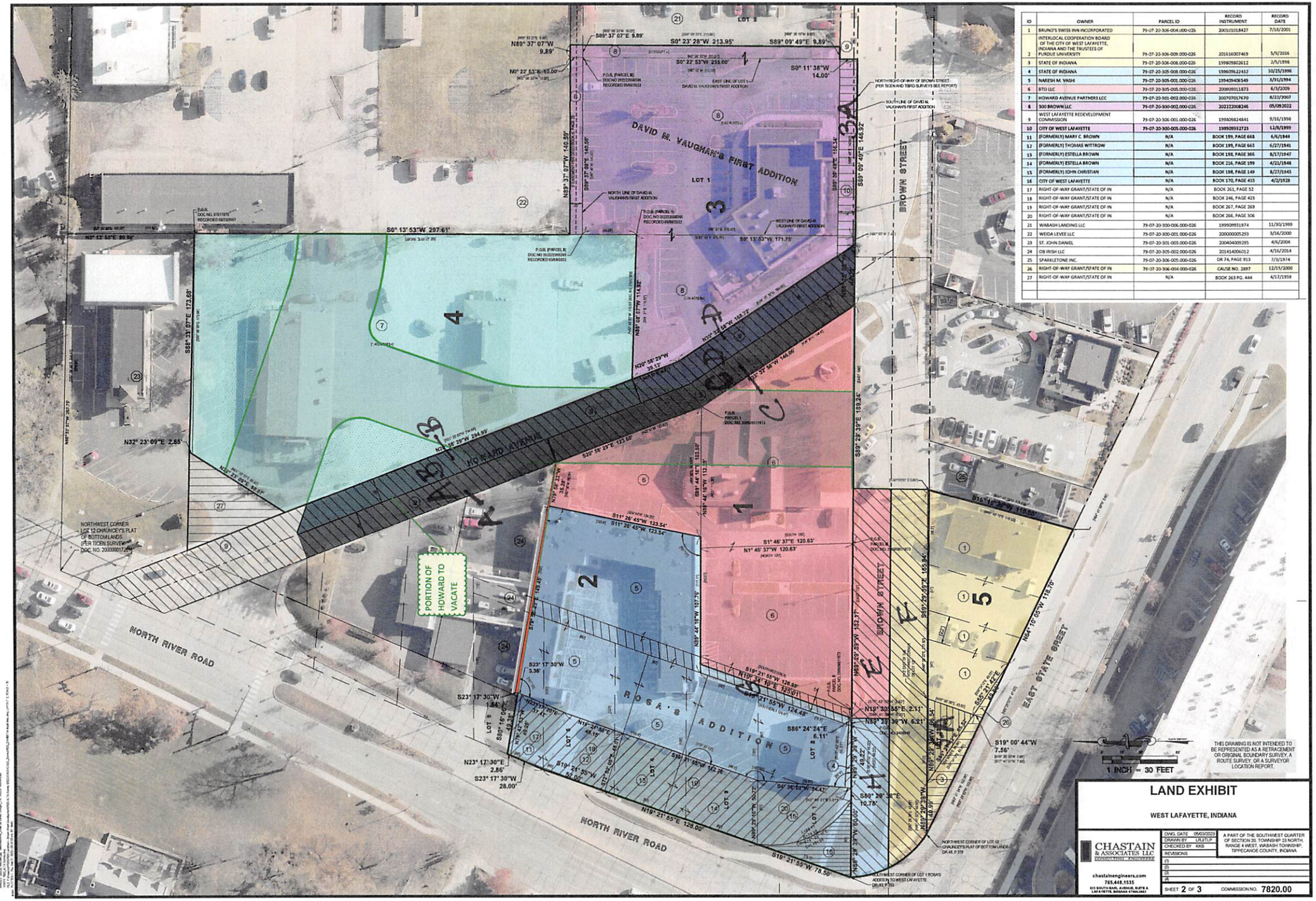
HATCHED AREA IS THE APPROXIMATE TAKING

OWNER:	WEST LAFAYETTE REDEVELOPMENT COMMISSION	DRAWN BY:	CMM
PARCEL:	125	CHECKED BY:	JLS
CODE:	N/A	DES. NO.:	N/A
PROJECT:	RE-STATE		
ROAD:	STATE STREET		
COUNTY:	TIPPECANOE		
SECTION:	20		
TOWNSHIP:	23 NORTH		
RANGE:	4 WEST		

INSTRUMENT NUMBER 9621057, DATED SEPTEMBER 25, 1996
INSTRUMENT NUMBER 9621058, DATED SEPTEMBER 25, 1996
INSTRUMENT NUMBER 9824841, DATED SEPTEMBER 15, 1998

THIS PLAT WAS PREPARED FROM PUBLIC DOCUMENTS AND NOT CHECKED BY A FIELD SURVEY.

EXHIBIT 3



ID	OWNER	PARCEL ID	RECORD INSTRUMENT	RECORD DATE
1	BRUNO'S SWISS INN INCORPORATED	79-07-20-306-004.000-026	2001010184?7	7/18/2001
2	INTERLOCAL COOPERATION BOARD OF THE CITY OF WEST LAFAYETTE, INDIANA AND THE TRUSTEES OF PURDUE UNIVERSITY	79-07-20-306-009.000-026	201616007469	5/9/2016
3	STATE OF INDIANA	79-07-20-306-008.000-026	199805802612	2/5/1998
4	STATE OF INDIANA	79-07-20-305-008.000-026	199609622452	10/25/1996
5	NARESH M. VASHI	79-07-20-305-001.000-026	199409406549	3/31/1994
6	BTO LLC	79-07-20-305-005.000-026	200909011873	6/1/2009
7	HOWARD AVENUE PARTNERS LCC	79-07-20-301-002.000-026	200707017670	8/22/2007
8	300 BROWN LLC	79-07-20-300-002.000-026	202212008246	05/09/2022
9	WEST LAFAYETTE REDEVELOPMENT COMMISSION	79-07-20-306-001.000-026	199809824641	9/16/1998
10	CITY OF WEST LAFAYETTE	79-07-20-300-005.000-026	199909932723	12/8/1999
11	(FORMERLY) MARY C. BROWN	N/A	BOOK 159, PAGE 668	6/8/1944
12	(FORMERLY) THOMAS WITTROW	N/A	BOOK 195, PAGE 663	6/27/1941
13	(FORMERLY) ESTELLA BROWN	N/A	BOOK 158, PAGE 365	8/17/1947
14	(FORMERLY) ESTELLA BROWN	N/A	BOOK 216, PAGE 199	4/21/1948
15	(FORMERLY) JOHN CHRISTIAN	N/A	BOOK 188, PAGE 149	6/27/1943
16	CITY OF WEST LAFAYETTE	N/A	BOOK 170, PAGE 433	4/2/1928
17	RIGHT-OF-WAY GRANT/STATE OF IN	N/A	BOOK 261, PAGE 52	
18	RIGHT-OF-WAY GRANT/STATE OF IN	N/A	BOOK 246, PAGE 423	
19	RIGHT-OF-WAY GRANT/STATE OF IN	N/A	BOOK 267, PAGE 269	
20	RIGHT-OF-WAY GRANT/STATE OF IN	N/A	BOOK 266, PAGE 306	
21	WABASH LANDING LLC	79-07-20-300-006.000-026	199909931974	11/30/1999
22	WEIDA LEVEE LLC	79-07-20-300-001.000-026	200000005293	3/16/2000
23	ST. JOHN DANIEL	79-07-20-301-003.000-026	200404009295	4/6/2004
24	OB IRISH LLC	79-07-20-305-002.000-026	201414006012	4/16/2014
25	SPARKLETONE INC.	79-07-20-306-005.000-026	DR 74, PAGE 913	7/3/1974
26	RIGHT-OF-WAY GRANT/STATE OF IN	79-07-20-306-004.000-026	CAUSE NO. 2897	12/13/2000
27	RIGHT-OF-WAY GRANT/STATE OF IN	N/A	BOOK 263 PG. 444	4/17/1959

THIS DRAWING IS NOT INTENDED TO BE REPRESENTED AS A RETRACEMENT OR ORIGINAL BOUNDARY SURVEY, A ROUTE SURVEY, OR A SURVEYOR LOCATION REPORT.

LAND EXHIBIT

WEST LAFAYETTE, INDIANA

CHASTAIN & ASSOCIATES LLC
chastainengineers.com
765.448.1535
825 SOUTH BAIL AVENUE, SUITE A
LAFAYETTE, INDIANA 47904-2662

DWG. DATE 05/03/2022
DRAWN BY LR/JTLP
CHECKED BY KKB
REVISIONS
(1)
(2)
(3)
(4)

A PART OF THE SOUTHWEST QUARTER OF SECTION 20, TOWNSHIP 23 NORTH, RANGE 4 WEST, WABASH TOWNSHIP, TIPPECANOE COUNTY, INDIANA

COMMISSION NO. 7820.00

EXHIBIT 4

ALLEY VACATION DESCRIPTION – ROSA'S ADDITION TO WEST LAFAYETTE

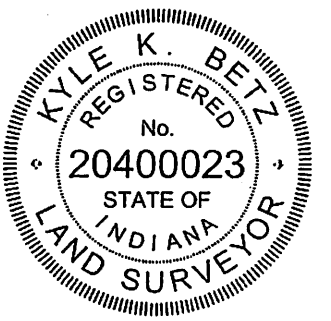
An Alley Twelve (12) feet in even width located along the entire east side of Rosa's Addition to West Lafayette, as per the plat thereof, Plat Book 1, Page 2, and described in Deed Record 93, Page 253, recorded October 27, 1890, in the Office of the Tippecanoe County Recorder, being platted on a part of the Southwest Quarter of Section Twenty (20), Township Twenty-three (23) North, Range Four (4) West, Wabash Township, Tippecanoe County, Indiana, more particularly described as follows:

Beginning at the Southeast corner of Lot 2 (two) in said in said Rosa's Addition, thence along the East line common to Lots Two (2) though Six (6) North 19°21'55" East 317.99 feet to the Northeast corner thereof; thence along the North line of said Rosa's Addition South 89°58'32" East 12.72 feet to the East line thereof; thence along the East line of said Rosa's Addition South 19°21'55" West 318.10 feet to the North line of Brown Street; thence along said North line North 89°29'39" West 12.68 feet to the Point of Beginning, containing 0.088 acres, more or less.

SUBJECT TO ALL EASEMENTS, RESTRICTIONS, AND RIGHTS-OF-WAY OF RECORD

SURVEYOR'S CERTIFICATION:

I, Kyle K. Betz, a Registered Professional Land Surveyor in the State of Indiana, do hereby certify that the above description was prepared under my supervision.



08/25/2023

KYLE K. BETZ (LS20400023) DATE

EXHIBIT 5

VACATION OF HOWARD AVENUE-LEGAL DESCRIPTION-[redacted]

A part of Lot Numbered 12 (twelve) in Chauncey's Plat of Bottom Lands, as per the plat thereof, Plat Book 48, Page 277 - 279, recorded January 15th/, 1866, in the Office of the Tippecanoe County Recorder, being platted on a part of the Southwest Quarter of Section Twenty (20), Township Twenty-three (23) North, Range Four (4) West, Wabash Township, Tippecanoe County, Indiana, more particularly described as follows:

Commencing at a point on the south line of a tract of land described in a Corporate Deed to Weida Levee LLC, Document Number 200000005293, recorded March 16, 2000, in the Office of the Tippecanoe County Recorder; said point being North 00°29'59 East, 10.00 feet and South 89°44'13" East, 9.89 feet from the Northeast corner of Lot Numbered 1 in David M. Vaughan's First Addition to the City of West Lafayette, as per the plat thereof, Plat Book 8, Page 25, recorded January 9, 1962, in said Recorder's Office and marked by 5/8" rebar with a plastic cap stamped "Ticen"; thence parallel with the east line of said Lot 1 (being the basis of bearings of the herein described tract) , South 00°16'22" West, 213.95 feet to the North right-of-way of Brown Street, per the Final Plat of Wabash Landing, Phase 1, Part 2, as per the plat thereof, Plat Cabinet AA, Page 170, recorded March 3, 2000 in said Recorders Office; thence along said north right-of-way line North 89°16'56" West, 9.89 feet; thence South 00°15'47" West, 14.00 feet to the North right-of-way line of Brown Street per said Chauncey's Plat of Bottom Lands; thence along said north right-of-way line North 89°17'17" West, 139.93 feet to the Point of Beginning; thence North 89°17'17" West, along said north right -of-way line, 55.41 feet to the western right-of-way line of Howard Avenue; thence along said western right-of-way line for the following two (2) courses; 1) North 33°40'05" West, 145.76 feet; 2) thence North 21°05'35" West, 335.31 feet; thence North 68°54'20" East, 21.85 feet; thence South 70°56'57" East to the eastern right-of-way line of said Howard Avenue, 23.74 feet; thence along said eastern right-of-way line for the following two (2) courses; 1) South 21°05'35" East, 315.60 feet; 2) thence South 33°40'05" East, 151.83 feet; thence South 89°16'56" East, parallel with northerly of and 14.00 feet distant from said northern right-of-way line of Brown Street, 16.33 feet; thence South 00°06'45" West, along the western line said Lot Numbered 1, 13.94 feet to the Point of Beginning, containing 0.45 acres, more or less.

EXHIBIT 6

INTERESTED PROPERTY OWNERS

STATE OF INDIANA
41 W 300 N
CRAWFORDSVILLE, IN 47933

SPARKLETONE INC
238 E STATE ST
WEST LAFAYETTE, IN 47906

WEST LAFAYETTE RETAIL LLC
6440 WESTFIELD BLVD
INDIANAPOLIS, IN 46220

M GOLDEN H LLC
717 NAVCO DR
LAFAYETTE, IN 47905

CITY OF WEST LAFAYETTE
222 N CHAUNCEY AVE
WEST LAFAYETTE, IN 47906

WABASH LANDING LLC
6930 ATRIUM BOARDWALK S
INDIANAPOLIS, IN 46250

CITY OF WEST LAFAYETTE CITY AND WEST LAFAYETTE REDEVELOPMENT COMMISSION
222 N CHAUNCEY AVE
WEST LAFAYETTE, IN 47906

DANIEL ST. JOHN
148 HOWARD AVE
WEST LAFAYETTE, IN 47906

WEIDA LEVEE LLC
302 VINE ST #3
WEST LAFAYETTE, IN 47906

UTILITY COMPANIES

CenterPoint Energy
Attn: Emily Henderson
2345 E Main Street
Danville, IN 46122

Comcast
Attn: Doug Fishburn
3465 South Street
Lafayette, IN 47905

Duke Energy
Attn: Brian Funk
1000 E Main Street
Plainfield, IN 46168

Indiana American Water Company Inc.
Attn: Bryan Forkner
153 N. Emerson Avenue
Greenwood, IN 46143

Indiana American Water Company Inc.
Attn: Bryan Forkner
1007 Happy Hollow Drive
West Lafayette, IN 47906

Frontier Communications
Attn: Chuck McKean
401 Merritt 7
Norwalk, CT 06851

Metronet
Attn: Lori Kemper
3701 Communications Way
Evansville, IN 47715

West Lafayette Wastewater Treatment
Attn: David Henderson
500 S. River Road
West Lafayette, IN 47906

Tipmont Remc / Wintek
Attn: Matt Knoth and/or Joe Kline
427 N 6th Street
Lafayette, IN 47901

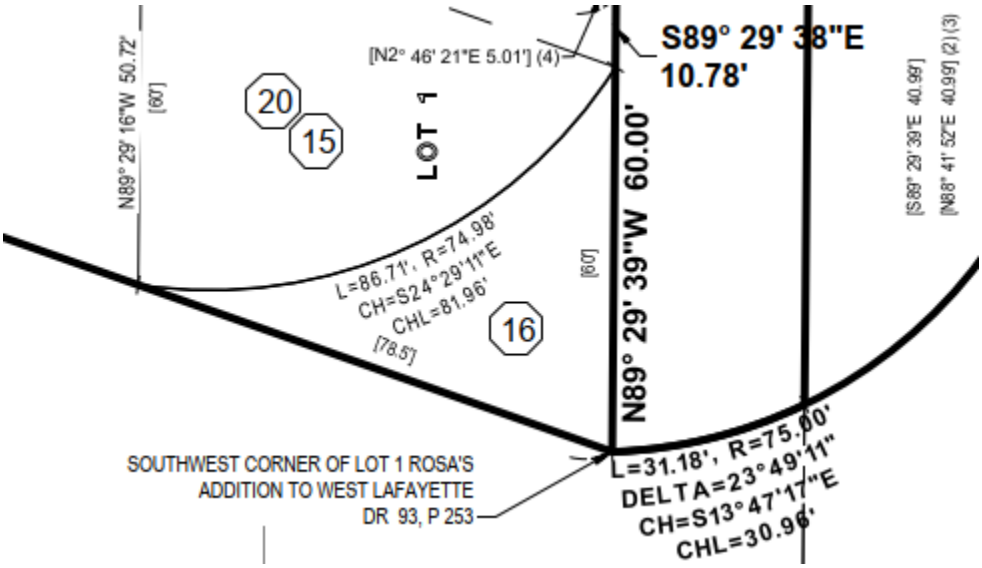
Wintek Corporation
Attn: Tipmont Holdings, Inc.
403 S. Main St.
Linden, IN 47955

West Lafayette Fire Department
Attn: Tony Schutter
300 North St.
West Lafayette, IN 47906

EXHIBIT 7

A part of Lot numbered One (1) in Rosa's Addition to the City of West Lafayette, Indiana, described as follows:

Commencing at the Northwest corner of said lot, and running thence southward along the east line of Ellsworth Street, and the west line of said lot, seventy eight and fifty hundredths (78.50) feet to the southwest corner thereof; thence east along the line of Brown Street Levee and and along the south line of said lot sixty (60) feet, to the southeast corner thereof, thence in a northwesterly direction; following the line of a curve to the right, as described by a seventy five (75) foot radius, about eighty nine (89) feet to the place of beginning.



COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA

AND

WEST LAFAYETTE BOARD OF PUBLIC WORKS AND SAFETY

Dear Council and Board:

As the owner of record (as shown in office of the Auditor of Tippecanoe County, Indiana) of the land described in the attached legal description, we hereby authorize Landmark Properties, Inc., an Indiana corporation, to file the attached petition and execute any and all petitions and documents necessary for and/or relating to (1) the vacation of portions of Howard Avenue and Brown Street, as more particularly described in the petition, (2) the transfer of certain real estate located in West Lafayette, Indiana by the City of West Lafayette, which said real estate is more particularly described in the petition, and (3) the dedication of a new right-of-way, as more particularly described in the petition.

Howard Avenue Partners LLC,
an Indiana limited liability company

By: _____
(written)

James J. Curtis, Jr.
(printed)

Its: Manager
(title)

STATE OF Indiana)
) SS:
COUNTY OF Hamilton)

Subscribed and sworn to before me this 30th day of August, 2023

Lauren Olson-Huff
NOTARY PUBLIC
My Commission Expires: 7/6/23
Commission No. NP0749981

Seal:

Lauren Olson-Huff

COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA

AND

WEST LAFAYETTE BOARD OF PUBLIC WORKS AND SAFETY

Dear Council and Board:

As the owner of record (as shown in office of the Auditor of Tippecanoe County, Indiana) of the land described in the attached legal description, we hereby authorize Landmark Properties, Inc., an Indiana corporation, to file the attached petition and execute any and all petitions and documents necessary for and/or relating to (1) the vacation of portions of Howard Avenue and Brown Street, as more particularly described in the petition, (2) the transfer of certain real estate located in West Lafayette, Indiana by the City of West Lafayette, which said real estate is more particularly described in the petition, and (3) the dedication of a new right-of-way, as more particularly described in the petition.

OB Irish LLC,
an Indiana limited liability company

By: _____
(written)
Sean O'Bryan
(printed)
Its: Owner
(title)

STATE OF Indiana)
) SS:
COUNTY OF Tippecanoe)

Subscribed and sworn to before me this 30th day of August, 2023

Amber Traeger
NOTARY PUBLIC
My Commission Expires: July 26, 2030
Commission No. NP0742609

Seal:

AMBER TRAEGER
Resident of Tippecanoe County
My Commission # NP0742609
Expires July 26, 2030

COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA

AND

WEST LAFAYETTE BOARD OF PUBLIC WORKS AND SAFETY

Dear Council and Board:

As the owner of record (as shown in office of the Auditor of Tippecanoe County, Indiana) of the land described in the attached legal description, we hereby authorize Landmark Properties, Inc., an Indiana corporation, to file the attached petition and execute any and all petitions and documents necessary for and/or relating to (1) the vacation of portions of Howard Avenue and Brown Street, as more particularly described in the petition, (2) the transfer of certain real estate located in West Lafayette, Indiana by the City of West Lafayette, which said real estate is more particularly described in the petition, and (3) the dedication of a new right-of-way, as more particularly described in the petition.

Himanshu B Desai

_____
(written)

_____
(printed)

STATE OF New Hampshire)
) SS:
COUNTY OF Hillsborough)

Subscribed and sworn to before me this 30 day of August, 2023

NOTARY PUBLIC
My Commission Expires: July 15 2025
Commission No. _____

Seal:

KARRISSAANN TAYLOR
Notary Public - New Hampshire
My Commission Expires Jul 15, 2025

COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA

AND

WEST LAFAYETTE BOARD OF PUBLIC WORKS AND SAFETY

Dear Council and Board:

As the owner of record (as shown in office of the Auditor of Tippecanoe County, Indiana) of the land described in the attached legal description, we hereby authorize Landmark Properties, Inc., an Indiana corporation, to file the attached petition and execute any and all petitions and documents necessary for and/or relating to (1) the vacation of portions of Howard Avenue and Brown Street, as more particularly described in the petition, (2) the transfer of certain real estate located in West Lafayette, Indiana by the City of West Lafayette, which said real estate is more particularly described in the petition, and (3) the dedication of a new right-of-way, as more particularly described in the petition.

B.T.O., LLC,
an Indiana limited liability company

By: _____
(written)
Bruno Itin
(printed)
Its: Owner
(title)

STATE OF Indiana)
) SS:
COUNTY OF Tippecanoe)

Subscribed and sworn to before me this 29th day of August, 2023

_____
NOTARY PUBLIC
My Commission Expires: 5-18-2030
Commission No. NP0652323

Seal:

AMY E. AREDDY
Notary Public, State of Indiana
Hamilton County
Commission Number NP0652323
My Commission Expires
May 18, 2030

COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA

AND

WEST LAFAYETTE BOARD OF PUBLIC WORKS AND SAFETY

Dear Council and Board:

As the owner of record (as shown in office of the Auditor of Tippecanoe County, Indiana) of the land described in the attached legal description, we hereby authorize Landmark Properties, Inc., an Indiana corporation, to file the attached petition and execute any and all petitions and documents necessary for and/or relating to (1) the vacation of portions of Howard Avenue and Brown Street, as more particularly described in the petition, (2) the transfer of certain real estate located in West Lafayette, Indiana by the City of West Lafayette, which said real estate is more particularly described in the petition, and (3) the dedication of a new right-of-way, as more particularly described in the petition.

Bruno's Swiss Inn, Inc.,
an Indiana corporation

By: _____
(written)

Bruno Fehr
(printed)

Its: Owner
(title)

STATE OF Indiana)

COUNTY OF Tippecanoe) SS:

Subscribed and sworn to before me this 29th day of August, 2023

_____
NOTARY PUBLIC

My Commission Expires: 5-18-2030

Commission No. NP0652323

Seal:

AMY E. AREDDY
Notary Public, State of Indiana
Hamilton County
Commission Number NP0652323
My Commission Expires
May 18, 2030

COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA

AND

WEST LAFAYETTE BOARD OF PUBLIC WORKS AND SAFETY

Dear Council and Board:

As the owner of record (as shown in office of the Auditor of Tippecanoe County, Indiana) of the land described in the attached legal description, we hereby authorize Landmark Properties, Inc., an Indiana corporation, to file the attached petition and execute any and all petitions and documents necessary for and/or relating to (1) the vacation of portions of Howard Avenue and Brown Street, as more particularly described in the petition, (2) the transfer of certain real estate located in West Lafayette, Indiana by the City of West Lafayette, which said real estate is more particularly described in the petition, and (3) the dedication of a new right-of-way, as more particularly described in the petition.

300 Brown, LLC,
an Indiana limited liability company

By: _____
(written)
Beau Pahud
(printed)

Its: Authorized Person
(title)

STATE OF Indiana)
) SS:
COUNTY OF Marion)

Subscribed and sworn to before me this 29th day of August, 2023

_____
NOTARY PUBLIC
My Commission Expires: 5-18-2030
Commission No. NP0652323

Seal:

AMY E. AREDDY
Notary Public, State of Indiana
Hamilton County
Commission Number NP0652323
My Commission Expires
May 18, 2030

Parcel Number: 79-07-20-306-009.000-026

CORPORATE QUIT CLAIM DEED

THIS INDENTURE WITNESSETH THAT City of West Lafayette, Tippecanoe County, Indiana, releases and quit claims to Landmark State Street Surplus, LLC, an Indiana limited liability company, in consideration of Ten Dollars ($10.00) and other valuable considerations, the following described real estate in Tippecanoe County, State of Indiana, to wit:

One Hundred thirteen (113) feet off the west end of Lot 13 of the Chauncey Plat of Bottom Lands to the now City of West Lafayette, Tippecanoe County, Indiana.

EXCEPT: A part of Lot 13 in Chauncey's Plat of Bottom Lands to the Town of Chauncey, now West Lafayette, Indiana, the plat of which subdivision is recorded in Deed Record 48, page 278, in the Office of the Recorder of Tippecanoe County, Indiana, described as follows:

Beginning at the west corner of said lot; thence· North 88 degrees 41 minutes 52 seconds East 40.99 feet along the north line of said lot; thence South 56 degrees 34 minutes 12 seconds East 65.95 feet to the east line of the owner's land; thence South 17 degrees 41 minutes 01 second West 7.66 feet along said east line to the southwestern line of said lot; thence North 65 degrees 29 minutes 53 seconds West 102.96 feet along said southwestern line to the point of beginning and containing 0.027 acres, more or less.

The undersigned person executing this deed represents and certifies on behalf of the Grantor, that the undersigned is a duly elected officer of the Grantor and has been fully empowered by proper resolution, or the by-laws of the Grantor to execute and deliver this deed; that the Grantor is a corporation in good standing where the subject real estate is situate; that the Grantor has full corporate capacity to convey the real estate described; and that all necessary action for the making of this conveyance has been taken.

The undersigned person executing this deed represents and certifies that this conveyance is for no monetary consideration and does not require the filing of Sales Disclosure Form 46021 (R8/7-08).

DATED this ____ day of _____, 2024.

[SEAL] CITY OF WEST LAFAYETTE, INDIANA

By _____

_____, Mayor

ATTEST:

_____
Sana Booker, Clerk

STATE OF INDIANA)
) SS:
TIPPECANOE COUNTY)

Before me, a Notary Public in and for said County and State, personally appeared City of West Lafayette, Tippecanoe County, by _____, Mayor, who acknowledged the execution of the foregoing Quit Claim Deed for and on behalf of said Grantor, and who, having been duly sworn stated that the representations therein contained are true.

WITNESS my hand and Notarial Seal this ____ day of _____, 202.

_____
(written)

_____
(printed) NOTARY PUBLIC
Resident of _____ County

My Commission Expires:
_____

This instrument prepared by: Kevin J. Riley of the firm of REILING TEDER & SCHRIER, LLC, 250 Main Street, Suite 601, PO Box 280, Lafayette, IN 47902-0280. Telephone: (765) 423-5333. E-Mail Address: kjr@rtslawfirm.com

I affirm, under the penalties for perjury, that I have taken reasonable care to redact each Social Security number in this document, unless required by law. Kevin J. Riley

Mail Tax Bills to Grantee:
_____
_____
_____
_____

Grantee address
(if different than billing address)
_____
_____
_____
_____

Parcel Number: 79-07-20-300-005.000-026

CORPORATE QUIT CLAIM DEED

THIS INDENTURE WITNESSETH THAT City of West Lafayette, Tippecanoe County, Indiana, releases and quit claims to Landmark State Street Surplus, LLC, an Indiana limited liability company, in consideration of Ten Dollars ($10.00) and other valuable considerations, the following described real estate in Tippecanoe County, State of Indiana, to wit:

A strip of land fourteen (14) feet in even width off of the entire southern end of the Robert Bibler Trust real estate described in Document Number 9708504 in the Office of the Recorder of Tippecanoe County, Indiana, said strip of land being located on a part of Lot 1 in David M. Vaughan's First Addition to the City of West Lafayette, and a part of Lot 12 in Chauncey's Plat of Bottom Lands in the City of West Lafayette, Wabash Township, Tippecanoe County, Indiana, containing 1960 square feet from tax key number 164-02500-0480, containing 155 square feet from tax key number 164-02500-0491 and containing a total of 2115 square feet, more or less.

The undersigned person executing this deed represents and certifies on behalf of the Grantor, that the undersigned is a duly elected officer of the Grantor and has been fully empowered by proper resolution, or the by-laws of the Grantor to execute and deliver this deed; that the Grantor is a corporation in good standing where the subject real estate is situate; that the Grantor has full corporate capacity to convey the real estate described; and that all necessary action for the making of this conveyance has been taken.

The undersigned person executing this deed represents and certifies that this conveyance is for no monetary consideration and does not require the filing of Sales Disclosure Form 46021 (R8/7-08).

DATED this ____ day of _____, 2024.

[SEAL] CITY OF WEST LAFAYETTE, INDIANA

By _____

_____, Mayor

ATTEST:

_____
Sana Booker, Clerk

STATE OF INDIANA)
) SS:
TIPPECANOE COUNTY)

Before me, a Notary Public in and for said County and State, personally appeared City of West Lafayette, Tippecanoe County, by _____, Mayor, who acknowledged the execution of the foregoing Quit Claim Deed for and on behalf of said Grantor, and who, having been duly sworn stated that the representations therein contained are true.

WITNESS my hand and Notarial Seal this ____ day of _____, 2024.

_____
(written)

_____
(printed) NOTARY PUBLIC
Resident of _____ County

My Commission Expires:
_____

This instrument prepared by: Kevin J. Riley of the firm of REILING TEDER & SCHRIER, LLC, 250 Main Street, Suite 601, PO Box 280, Lafayette, IN 47902-0280. Telephone: (765) 423-5333. E-Mail Address: kjr@rtslawfirm.com

I affirm, under the penalties for perjury, that I have taken reasonable care to redact each Social Security number in this document, unless required by law. Kevin J. Riley

Mail Tax Bills to Grantee:
_____
_____
_____
_____

Grantee address
(if different than billing address)
_____
_____
_____

Parcel Number: _____

CORPORATE QUIT CLAIM DEED

THIS INDENTURE WITNESSETH THAT City of West Lafayette, Tippecanoe County, Indiana, releases and quit claims to Landmark State Street Surplus, LLC, an Indiana limited liability company, in consideration of Ten Dollars ($10.00) and other valuable considerations, the following described real estate in Tippecanoe County, State of Indiana, to wit:

A part of Lot numbered One (1) in Rosa's Addition to the City of West Lafayette, Indiana, described as follows:

Commencing at the Northwest corner of said lot, and running thence southward along the east line of Ellsworth Street, and the west line of said lot, seventy eight and fifty hundredths (78.50) feet to the southwest corner thereof; thence east along the line of Brown Street Levee and along the south line of said lot sixty (60) feet, to the southeast corner thereof, thence in a northwesterly direction; following the line of a curve to the right, as described by a seventy five (75) foot radius, about eighty nine (89) feet to the place of beginning.

Excepting so much of the above-described lot as has already been dedicated to the public use, all as shown by a plat of such proposed opening now on file in the office of the City Clerk of said City.

The undersigned person executing this deed represents and certifies on behalf of the Grantor, that the undersigned is a duly elected officer of the Grantor and has been fully empowered by proper resolution, or the by-laws of the Grantor to execute and deliver this deed; that the Grantor is a corporation in good standing where the subject real estate is situate; that the Grantor has full corporate capacity to convey the real estate described; and that all necessary action for the making of this conveyance has been taken.

The undersigned person executing this deed represents and certifies that this conveyance is for no monetary consideration and does not require the filing of Sales Disclosure Form 46021 (R8/7-08).

DATED this ____ day of _____, 2024.

[SEAL] CITY OF WEST LAFAYETTE, INDIANA

By _____

_____, Mayor

ATTEST:

_____
Sana Booker, Clerk

STATE OF INDIANA)
) SS:
TIPPECANOE COUNTY)

Before me, a Notary Public in and for said County and State, personally appeared City of West Lafayette, Tippecanoe County, by _____, Mayor, who acknowledged the execution of the foregoing Quit Claim Deed for and on behalf of said Grantor, and who, having been duly sworn stated that the representations therein contained are true.

WITNESS my hand and Notarial Seal this ____ day of _____, 2024.

_____
(written)

_____
(printed) NOTARY PUBLIC
Resident of _____ County

My Commission Expires:
_____

This instrument prepared by: Kevin J. Riley of the firm of REILING TEDER & SCHRIER, LLC, 250 Main Street, Suite 601, PO Box 280, Lafayette, IN 47902-0280. Telephone: (765) 423-5333. E-Mail Address: kjr@rtslawfirm.com

I affirm, under the penalties for perjury, that I have taken reasonable care to redact each Social Security number in this document, unless required by law. Kevin J. Riley

Mail Tax Bills to Grantee:
_____
_____
_____

Grantee address
(if different than billing address)
_____
_____

_____ _____

Submitted by Marianne Mitten Owen
of Stuart & Branigin LLP

ORDINANCE NO. 04-2024

AN ORDINANCE TO ANNEX CERTAIN LANDS INTO THE CITY OF WEST LAFAYETTE, INDIANA

WHEREAS, the land described herein is partially contiguous to the current boundary of the City of West Lafayette, Indiana; and

WHEREAS, the Common Council of the City of West Lafayette, Indiana, has received a petition pursuant to Ind. Code § 36-4- 3-5.1 for the annexation of the land described herein from the owners of one hundred percent (100%) of the land, subject to all easements, rights-of-way, and restrictions of record, to be annexed; and

WHEREAS, the land can be used for future development within the City of West Lafayette, Indiana, within the reasonably near and foreseeable future; and

WHEREAS, all of the requirements of statute for the annexation of such land have been met.

THEREFORE BE IT ORDAINED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, THAT:

Section 1: The following described land be, and the same is, hereby annexed to and declared a part of the City of West Lafayette, Indiana:

Two (2) parcels of real property (i.e., Parcel ID Number: 79-02-36-400-001.000-023, and Parcel ID Number: 79-02-36-400-004.000-023), the boundary of the two (2) parcels is more particularly described as follows:

A part of the Southeast of Section 36, Township 24 North, Range 5 West, Tippecanoe County, Indiana, based upon an ALTA/NSPS Land Title Survey by John E. Fisher & Associates, PC, Project No. 04.54.7 dated September 5, 2007, and described as follows:

Commencing at the Southeast Corner of said Quarter Section; thence along the east line of said Quarter Section North 00 degrees 48 minutes 16 seconds West (basis of bearing) 331.83 feet to the Northeast Corner of the South Half of the South Half of the Southeast Quarter of said Quarter Section and the POINT OF BEGINNING; thence along the south line of said Half Half Quarter Section South 89 degrees 54 minutes 59 seconds West 1322.67 feet to the east line of the Southwest Quarter of said Southeast Quarter; thence along said east line South 00 degrees 48 minutes 29 seconds East, 2.01 feet to the north line of 10.00 acres off of

the entire south end of the Southwest Quarter of said Southeast Quarter; thence along the north line of the 10.00 acre parcel South 89 degrees 56 minutes 04 seconds West, 1322.34 feet to the west line of said Quarter Section; thence along said west line North 00 degrees 45 minutes 13 seconds West, 994.70 feet to the north line of the Southwest Quarter of said Southeast Quarter; thence along the north line of said Quarter Quarter Section North 89 degrees 52 minutes 02 seconds East, 1321.37 feet to the Northwest Corner of the Southeast Quarter of said Southeast Quarter; thence along the north line of said Quarter Quarter Section North 89 degrees 51 minutes 45 seconds East, 1322.71 feet to the east line of said Quarter Section; thence along said east line South 00 degrees 48 minutes 16 seconds East, 995.49 feet to the point of beginning, containing, 60.41 acres, more or less.

The annexation contemplated by this Ordinance is not intended to combine the two (2) parcels into one (1) parcel.

Section 2: Be it further ordained that the boundaries of the City of West Lafayette, Indiana, shall be, and same are, declared to extend so as to include all of the land described above as part of the City of West Lafayette, Indiana.

Section 3: The land annexed by this ordinance shall be included in council District 6.

Section 4: This ordinance shall be in full force and effect from and after its passage and signing by the Mayor and notice and filing, as provided by law.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____ AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____ 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

	AYE	NAY	ABSENT	ABSTAIN
Bellisario				
Blanco				
Burr				
Dennis				
Lee				
Leverenz				
Parker				
Sanders				
Veidemanis				

_____
Kathy Parker, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____ 2024.

_____
Sana G. Booker, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____ 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

Stuart + Branigin LAWYERS

Marianne Mitten Owen
765.428.7054
mmo@stuartlaw.com

January 19, 2024

BY E-MAIL
Sana G. Booker
West Lafayette Clerk
Margerum City Hall
222 North Chauncey Avenue
West Lafayette, IN 47906
sbooker@westlafayette.in.gov

Re: Petition for Voluntary Annexation into the City of West Lafayette, Indiana from Purdue Research Foundation

Dear Clerk Booker:

At the request of Purdue Research Foundation, attached please find an executed Petition for Voluntary Annexation into the City of West Lafayette regarding two parcels with approximately a total of 60.41 acres of real property, together with a Word version of the Ordinance regarding such Petition.

We understand that delivery of this Petition for Voluntary Annexation into the City of West Lafayette, Indiana, in care of you by January 25, 2024 is timely for initial hearing at the upcoming February public meetings and then, those thereafter.

Thank you for your attention to this matter. If you have any questions in regard to this matter, please let me know.

Very truly yours,

Marianne Mitten Owen

MMO
Attachments

cc: Brittany Heidenreich (BNHeidenreich@prf.org)
Jeremy Slater (jdslater@prf.org)
Eric H. Burns (eburns@witheredlaw.com)
Kris Uhler (kuhler@witheredlaw.com)
Nicole Foster (nfoster@westlafayette.in.gov)

PETITION FOR VOLUNTARY ANNEXATION
INTO THE CITY OF WEST LAFAYETTE, INDIANA

PURDUE RESEARCH FOUNDATION, an Indiana corporation (formed and existing under the Indiana Foundation or Holding Companies Act, Acts of 1921, ch. 246), ("Petitioner"), as the owner of real property more particularly described below hereby submits this Petition for Voluntary Annexation into the City of West Lafayette, Indiana (the "Petition"), and in support thereof, represents, and warrants to the City of West Lafayette, Indiana, as follows:

1. Petitioner is the owner of the two (2) parcels of real property (i.e., Parcel ID Number: 79-02-36-400-004.000-023, and Parcel ID Number: 79-02-36-400-001.000-023), the boundary of the two (2) parcels is more particularly described in EXHIBIT A and illustrated on EXHIBIT B both of which are attached hereto and incorporated herein by reference (the "Property"). The annexation contemplated by this Petition is not intended to combine the two (2) parcels into one (1) parcel.

2. Petitioner constitutes one hundred percent (100%) of the owner of the Property; and is the true, rightful, and complete owner of the Property as described herein, subject to all easements, rights-of-way, and restrictions of record.

3. Petitioner, as the property owner, has the authority to execute and file this Petition and any other documents, and to file a required fiscal plan, necessary to effectuate annexation of the Property into the City of West Lafayette, Indiana.

4. In the event that the City of West Lafayette, Indiana, accepts and acts upon the Petition for Voluntary Annexation into the City of West Lafayette, Indiana, and in exchange for the benefits bestowed upon the Property by the City of West Lafayette, Indiana, Petitioner hereby releases and waives all rights to remonstrance against and, in any way, to oppose either directly or indirectly the annexation of the Property into the City of West Lafayette, Indiana, whether it be via formal or informal means.

5. Petitioner has verified that more than thirty-five percent (35%) of the aggregate external boundary of the Property coincides with the corporate boundaries of the City of West Lafayette, Indiana.

6. Petitioner hereby executes this Petition, and consents to its filing with the Common Council of the City of West Lafayette, Indiana.

PETITION FOR VOLUNTARY ANNEXATION
INTO THE CITY OF WEST LAFAYETTE, INDIANA

WHEREFORE, Petitioner requests that the Common Council of the City of West Lafayette, Indiana, adopt an ordinance annexing the Property into the City of West Lafayette, Indiana.

DATED this 16th day of January, 2024.

PURDUE RESEARCH FOUNDATION
an Indiana corporation (formed and existing under the Indiana Foundation or Holding Companies Act, Acts of 1921, ch. 246)

By: Jeremy D. Slater

Name: [signature]

Title: Vice President - PRF

STATE OF INDIANA)
) SS:
TIPPECANOE COUNTY)

Before me, the undersigned, a Notary Public, in and for said State and County, personally appeared PURDUE RESEARCH FOUNDATION, an Indiana corporation (formed and existing under the Indiana Foundation or Holding Companies Act, Acts of 1921, ch. 246) [signature], by Jeremy Slater, its Vice President - PRF, who acknowledged the execution of the foregoing Petition for Voluntary Annexation into the City of West Lafayette, Indiana, and swore to the truth of the matters contained therein.

Witness my hand and seal this 16th day of January, 2024.

Natasha Rasmussen

Printed Name: Natasha Rasmussen
Notary Public

My Commission Expires: Apr. 4, 2030

County of Residence: Tippecanoe

Commission Expiration: Apr. 4, 2030

NATASHA RASMUSSEN
Notary Public - Seal
Tippecanoe County - State of Indiana
Commission Number NP0740293
My Commission Expires Apr 4, 2030

PETITION FOR VOLUNTARY ANNEXATION
INTO THE CITY OF WEST LAFAYETTE, INDIANA

EXHIBIT A
LEGAL DESCRIPTION OF THE
PROPERTY

A part of the Southeast of Section 36, Township 24 North, Range 5 West, Tippecanoe County, Indiana, based upon an ALTA/NSPS Land Title Survey by John E. Fisher & Associates, PC, Project No. 04.54.7 dated September 5, 2007, and described as follows:

Commencing at the Southeast Corner of said Quarter Section; thence along the east line of said Quarter Section North 00 degrees 48 minutes 16 seconds West (basis of bearing) 331.83 feet to the Northeast Corner of the South Half of the South Half of the Southeast Quarter of said Quarter Section and the POINT OF BEGINNING; thence along the south line of said Half Half Quarter Section South 89 degrees 54 minutes 59 seconds West 1322.67 feet to the east line of the Southwest Quarter of said Southeast Quarter; thence along said east line South 00 degrees 48 minutes 29 seconds East, 2.01 feet to the north line of 10.00 acres off of the entire south end of the Southwest Quarter of said Southeast Quarter; thence along the north line of the 10.00 acre parcel South 89 degrees 56 minutes 04 seconds West, 1322.34 feet to the west line of said Quarter Section; thence along said west line North 00 degrees 45 minutes 13 seconds West, 994.70 feet to the north line of the Southwest Quarter of said Southeast Quarter; thence along the north line of said Quarter Quarter Section North 89 degrees 52 minutes 02 seconds East, 1321.37 feet to the Northwest Corner of the Southeast Quarter of said Southeast Quarter; thence along the north line of said Quarter Quarter Section North 89 degrees 51 minutes 45 seconds East, 1322.71 feet to the east line of said Quarter Section; thence along said east line South 00 degrees 48 minutes 16 seconds East, 995.49 feet to the **point of beginning,** containing, 60.41 acres, more or less.

PETITION FOR VOLUNTARY ANNEXATION
INTO THE CITY OF WEST LAFAYETTE, INDIANA

EXHIBIT B
ILLUSTRATION OF THE PROPERTY

(See attached.)

CENTER OF SECTION 36-24N-5W
(NOT LOCATED, SEE REPORT)

N 0°45'45" W 1322.13'

HADLEY MOORS SUBDIVISION PART 2
PLAT CABINET E, SLIDE 134
DOCUMENT NO. 9621369
RECORDED: OCTOBER 10, 1996

WEST QUARTER CORNER
SOUTHEAST QUARTER
SECTION 36-24N-5W

LOCKSLEY LANE

HADLEY MOORS SUBDIVISION PART 4
INST # 01023168, AUGUST 29, 2001
PLAT CABINET E, SLIDE 194

N89°52'02"E 1321.40'

WILLIAM W. SCHROEDER
INST # 91-10652, AUGUST 15, 1991
KEY # 134-08400-0380

NORTH QUARTER CORNER,
SOUTHEAST QUARTER,
SECTION 36-24N-5W
(NOT LOCATED, SEE REPORT)

N 0°48'50" W 1321.59'

COUNTY ROAD 228 WEST (YEAGER ROAD)

CENTER QUARTER CORNER,
SOUTHEAST QUARTER,
SECTION 36-24N-5W

SEE DETAIL C

TRACY JILG
DOC # 01-00867J, DATED
APRIL 18, 2001
KEY # 134-08400-0446

THE PARKINSON FAMILY TRUST
DOC # 96-12772,
DATED JUNE 27, 1996
KEY # 134-08400-0259

POSSIBLE RIGHT-OF-WAY ALONG
THIS LINE, NO SEARCH FOR
APPLICABLE R/W GRANTS

S89°51'45"W 1322.69'

COUNTY ROAD 100 WEST (YEAGER ROAD)

BERNTSEN A1NB MONUMENT,
EAST 1/4 CORNER
SECTION 36-24-5

S 0°48'16" E 1321.43'

GARY SCHROEDER TTEE, K/A LAND TRUST
DOC # 91-10652, DATED JULY 15, 1991
KEY # 134-08400-0380

FOUND 0.35' W, 11.69' N
OF SECTION CORNER (1"BG)

FOUND 0.29' E OF SECTION
CORNER (2"BG)

EAST QUARTER CORNER,
SOUTHEAST QUARTER,
SECTION 36-24N-5W

SEE DETAIL D

YEAGER ROAD
ASPHALT
CENTER QUARTER CORNER,
SOUTHEAST QUARTER,
SECTION 36-24N-5W
6.5'±
20'±

DETAIL C
NOT TO SCALE

YEAGER DITCH
(LEGAL DRAIN - SEE NOTES)
S 0°48'16" W 1321.43'

75.0'
75.0'

S 0°48'16" E 994.95'

N00°48'16"W 995.45'

COUNTY ROAD 100 WEST (YEAGER ROAD)

1 INCH = 100 FEET
0' 50' 100' 200'

POSSIBLE RIGHT-OF-WAY ALONG
THIS LINE, NO SEARCH FOR
APPLICABLE R/W GRANTS

GARY SCHROEDER - TRUSTEE
DOC # 88-17633, DATED DECEMBER 29, 1988
KEY # 134-07900-0066

KIMBERLY ESTATES
SUBDIVISION, PART TWO
PLAT CABINET A, SLIDE 7

1"IP, 2" AG

FENCE LINE
0.7'± WEST OF
PROPERTY LINE

FOUND 0.39' W OF LINE
BENT (2"AG)

0.5"IP, 1.5" BG

FENCE LINE
1.7'± WEST OF
PROPERTY LINE

0.5"IP, 1" AG

FENCE LINE
3.8'± – 2.1'± WEST
OF PROPERTY LINE

1" IP, FLUSH

N00°45'13"W 988.66'

FENCE LINE
0.8'± EAST OF
PROPERTY LINE

FENCE LINE
0.6'± EAST OF
PROPERTY LINE

0.5"IP, 5" AG

1"IP FOUND 0.56' E OF LINE (1"BG)

FENCE LINE
0.6'± EAST OF
PROPERTY LINE

FENCE LINE
0.6'± EAST OF
PROPERTY LINE

0.5"IP, 5" AG

FENCE LINE
0.5'± EAST OF
PROPERTY LINE

0.5"IP, FOUND 0.58' E OF
LINE BENT (3"AG)

KIMBERLY ESTATES
SUBDIVISION, PART TWO
PLAT CABINET A, SLIDE 7

6.1' GAP,
SEE REPORT

S89°52'02"W 1322.34'

7.4' GAP,
SEE REPORT

SEE DETAIL A

SEE DETAIL B

N 0°45'57" W 1324.10'

0.5"IP, FOUND 0.31' E
OF LINE (6"AG)

BERNTSEN RT-1 MONUMENT
SOUTH 1/4 CORNER
SECTION 36-24N-5W

0.5"IP, FOUND 0.60' E
OF LINE (4"AG)

WOOD CORNER POST
FOUND 0.58' W OF
SECTION CORNER

BERNTSEN A1NB MONUMENT
SOUTH 1/4 CLOSING CORNER
SECTION 1-23N-5W

1322.65'

1322.65'

1"IP FOUND 0.33' E, 2.52' N
OF SECTION CORNER (6"AG)

S 89°56'4" W 2645.30'

SOUTH QUARTER CORNER,
SOUTHEAST QUARTER,
SECTION 36-24N-5W
(MIDPOINT - SEE REPORT)

NO BUILDINGS

TRACT 2
30.000 ACRES

WABASH STATIONS INC
DOC # 93-20915, DATED SEPTEMBER 20, 1993
KEY # 134-08400-0248
KEY # 134-08400-0370

NORTH 30 ACRES
SOUTHEAST QUARTER,
SOUTHEAST QUARTER,
SECTION 36-24N-5W

SOUTH 10 ACRES
SOUTHEAST QUARTER,
SOUTHEAST QUARTER,
SECTION 36-24N-5W

PURDUE RESEARCH FOUNDATION
DEED BOOK 309, PAGE 520
KEY # 134-06400-0334

S00°48'29"E 994.23'

N 0°48'25" W 1325.67'

331.45'

NO BUILDINGS

TRACT 1
30.205 ACRES

GAP
3.3'
994.23'
6" AG
5.56'
FIELD FENCE
3.9'
"VESTER" CAP,
FOUND 0.13' E, 2.06' S
OF PROPERTY CORNER
331.45'
"VESTER" CAP,
FOUND 0.12' E, 0.40' S
OF PROPERTY CORNER

DETAIL B
NOT TO SCALE

N89°54'55"E 1322.64'

514.34'

IRON PIN FOUND

4.92'

PURDUE RESEARCH FOUNDATION
DOC # 92-16465, DATED JULY 28, 1992
KEY # 134-08400-0435

SOUTH HALF, SOUTH HALF,
SOUTHEAST QUARTER,
SOUTHEAST QUARTER,
SECTION 36-24N-5W

PURDUE RESEARCH FOUNDATION
DOC # 96-02633, DATED FEBRUARY 15, 1996
KEY # 134-07900-0099

331.49'

S 0°48'16" E 1321.43'

BERNTSEN A1NB MONUMENT
SOUTHEAST SECTION CORNER
SECTION 36-24N-5W

FOUND 0.51' E OF LINE (1" BG)
"VESTER" CAP,
FOUND 0.15' W, 6.11' S
OF PROPERTY CORNER
(FLUSH)
GAP

DETAIL A
NOT TO SCALE

YEAGER ROAD
GRAVEL ROAD
24'±
FOUND 0.35' W, 11.69' N
OF SECTION CORNER
(1"BG)
EAST QUARTER CORNER,
SOUTHEAST QUARTER,
SECTION 36-24N-5W
FOUND 0.29' E OF SECTION
CORNER (2"BG)
27'±

DETAIL D
NOT TO SCALE

LEGEND

△ = SECTION CORNER MONUMENTATION, FOUND AS NOTED

▲ = SECTION CORNER MONUMENTATION, CALCULATED POSITION, SEE REPORT

○ = DENOTES 5/8" REBAR WITH PLASTIC CAP STAMPED "FISHER P.C. 5092" SET AT GRADE, UNLESS OTHERWISE NOTED

● = DENOTES 1" IRON PIPE WITH PLASTIC CAP STAMPED "FISHER P.C. 5092" FOUND AT GRADE, UNLESS OTHERWISE NOTED

◎ = CAPPED REBAR FOUND, AS NOTED

◎ = IRON PIPE (IP) FOUND, AS NOTED

⊘ = OTHER MONUMENT, AS NOTED

◩ = RIGHT-OF-WAY MARKER

✱ = EXISTING WOOD POST

61 = EXISTING LOT NUMBERS

TCS = TIPPECANOE COUNTY SURVEYOR

[XX.XX'] = RECORD DIMENSION
XX.XX' = MEASURED DIMENSION
WHEN THE RECORD DIMENSION IS THE ONLY SHOWN, THE MEASURED DIMENSION IS THE SAME AS THE RECORD.

(X.X' AG) = ABOVE SURFACE GRADE
(X.X' BG) = BELOW SURFACE GRADE
ALL MONUMENTS WERE FOUND OR SET AT GRADE UNLESS OTHERWISE NOTED

FISHER
LAND SURVEYORS
CIVIL ENGINEERS

JOHN E. FISHER
& ASSOCIATES, P.C.
625 South Earl Avenue
Lafayette, Indiana 47904-3210
Office (765) 448-1535
Fax (765) 447-9595
www.fisher-assoc.net

ALTA/ACSM LAND TITLE SURVEY

WABASH STATIONS, INC.
WEST LAFAYETTE, INDIANA

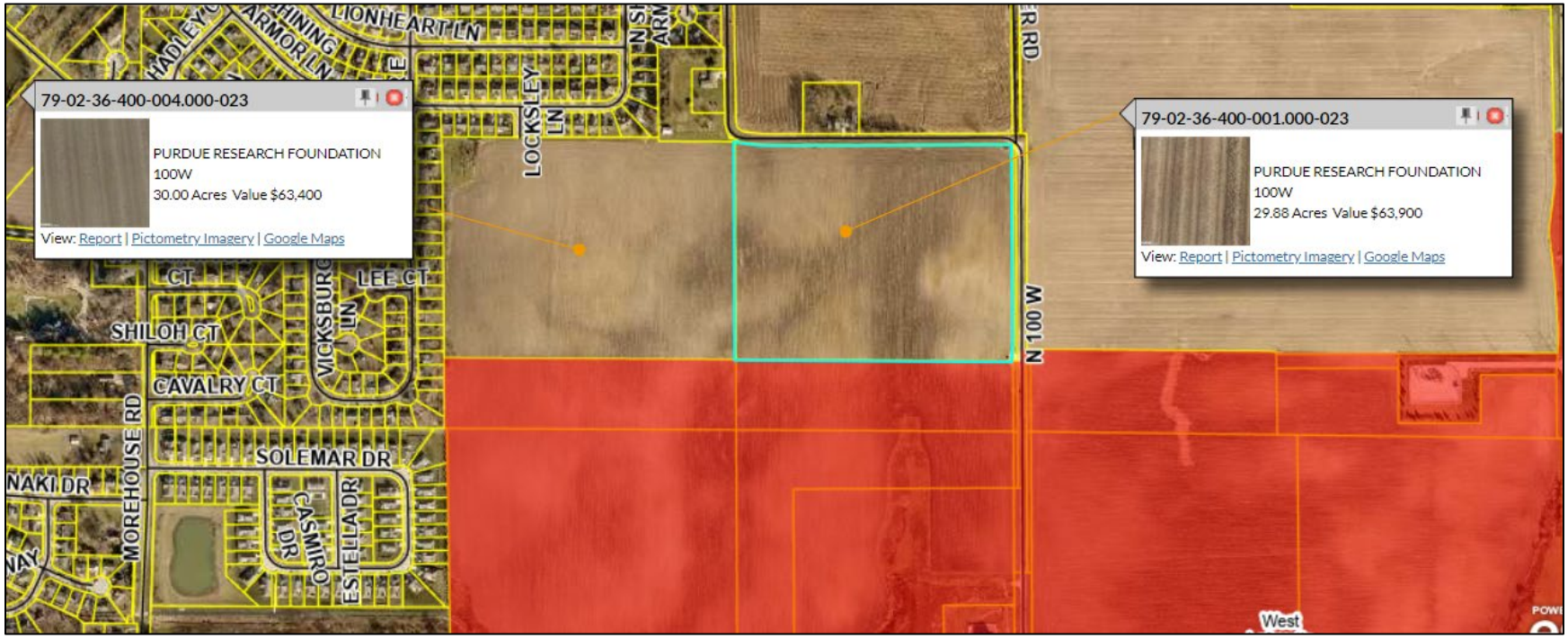
DWG. DATE	09/05/07
DRAWN BY	KKB
CHECKED BY	RAF
REVISIONS	
(1)	
(2)	
(3)	
(4)	
(5)	
(6)	
(7)	
(8)	

A PART OF THE SOUTH HALF OF THE SOUTHEAST QUARTER OF SECTION 36, TOWNSHIP 24 NORTH, RANGE 5 WEST, WABASH TOWNSHIP, TIPPECANOE COUNTY INDIANA

SHEET 2 OF 2 COMMISSION NO. 04.54.7

SCALE = 100
PS SCALE = 0.02
FILE = C:\Projects\04\04054\SURVEY\04054SURVEY.dwg, Layout: 2
PLOTTED = Wednesday, September 05, 2007 - 11:05:09 AM, tpeters

Ordinance No. 04-2024 Map (Informational)



Beacon Map Link:

https://beacon.schneidercorp.com/Application.aspx?AppID=578&LayerID=8505&PageTypeID=1&KeyValue=79-02-36-400-004.000-023

Submitted by the Controller

ORDINANCE NO. 05-2024

AN ORDINANCE TO ESTABLISH THE CUMULATIVE CAPITAL DEVELOPMENT FUND AND READOPT WEST LAFAYETTE CITY CODE PROVISIONS CONCERNING THE FUND

Whereas, IC 36-9-15.5 allows municipalities to establish a Cumulative Capital Development Fund; and

WHEREAS, the Common Council of the City of West Lafayette first established a Cumulative Capital Development Fund in 1984 and subsequently re-established the Fund to maintain the rate of five cents per hundred dollars assessed valuation ($0.05/$100) following Department of Local Government Finance administrative reductions following periodic reassessments; and

WHEREAS, the rate last established by Ordinance No. 03-2023 of five cents per hundred dollars assessed valuation ($0.05/$100) will be administratively reduced by the Department of Local Government Finance in 2025 as assessed valuation increases; and

WHEREAS, the Common Council of the City of West Lafayette finds that the Cumulative Capital Development Fund is necessary and prudent for the municipality; and

WHEREAS, the Common Council desires to re-establish the Cumulative Capital Development Fund rate in order to establish the rate of five cents per hundred dollars assessed valuation ($0.05/$100) for 2025; and

WHEREAS, the procedure for re-establishing the rate of the Cumulative Capital Development Fund is identical to the process initially used to establish the fund except no phase-in is required to re-establish the rate at the ceiling of five cents per hundred dollars assessed valuation ($0.05/$100);

NOW, THEREFORE, BE IT ORDAINED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE that:

Section 1. City Code Section 2-478 is re-adopted to establish the City of West Lafayette Cumulative Capital Development Fund as follows:

Sec. 25.08. Cumulative capital development fund.

(a) There is established a West Lafayette municipal cumulative capital development fund.

(b) An ad valorem property tax levy will be imposed and the revenues from the levy will be retained in the West Lafayette municipal cumulative capital development fund.

(c) The maximum rate of levy under subsection (b) of this section will not exceed five cents per one hundred dollars assessed valuation. A tax rate of five cents per one hundred dollars assessed valuation ($0.05/$100) will be levied beginning with taxes due and payable in the year 2025, and thereafter, continuing until reduced or rescinded.

(d) The funds accumulated in the West Lafayette municipal cumulative capital development fund will be used for any purpose allowed under Indiana Code § 36-9-15.5-2.

(e) Notwithstanding subsection (d) of this section, funds accumulated in the West Lafayette Cumulative Capital Development Fund may be spent for purposes other than the purposes stated in subsection (d) of this section, if the purpose is to protect the public health, welfare of safety in an emergency situation which demands immediate action. Money may be spent under the authority of this section only after the mayor issues a declaration that the public health, welfare, or safety is in immediate danger that requires the expenditure of money in the fund.

Section 2. The Controller is directed to submit proof of publication of the Notice of Public Hearing to be held on March 4, 2024, a certified copy of this ordinance, and proof of publication of the Notice of Adoption to the Department of Local Government Finance as provided by law. Said Cumulative Capital Development Fund is subject to the approval of the Department of Local Government Finance.

Section 3. This ordinance shall be in full force and effect from and after its passage and signing by the Mayor.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____, AND SECONDED BY COUNCILOR _____.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____, 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

	AYE	NAY	ABSENT	ABSTAIN
Belisario				
Blanco				
Burr				
Dennis				
Lee				
Leverenz				
Parker				
Sanders				
Veidemanis				

_____
Kathy Parker, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____, 2024.

_____
Sana G. Booker, Clerk

THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____, 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Sana G. Booker, Clerk

Sponsored by Councilors Iris O'Donnell Bellisario & Kathy Parker

RESOLUTION NO. 02-2024

RESOLUTION TO PROTECT OUR WETLANDS IN THE CITY OF WEST LAFAYETTE AND STATE OF INDIANA

WHEREAS, at least 85% of Indiana's original wetlands have been lost, but the state needs wetlands more than ever. Wetlands are needed for handling stormwater, reducing flooding, erosion, purifying water and recharging groundwater.

WHEREAS, West Lafayette is home to the Celery Bog, a significant wetland recognized by the Indiana Natural Heritage Program. The Celery Bog is a 195-acre property home to over 100 species of birds, mammals and wetland species.

WHEREAS, Tippecanoe County is home to the Purdue Wildlife Area which contains two wetland marshes that hold water all year (33 acres and 24 acres). Purdue Wildlife Area's marshes are emergent marshes of water depths of 6 inches to 3 feet. Purdue Wildlife Area's marshes provide benefits to wildlife and the Indian Creek watershed.

WHEREAS, Tippecanoe County is home to Prophetstown State Park which has focused on a restoration project over a 96-acre area for wetland restoration, stream bank stabilization and bottomland forest replacement.

WHEREAS, HB 1383 threatens Indiana's most valuable wetlands and the ecosystem services they provide Hoosier taxpayers.

WHEREAS, HB 1383 will reduce wetlands from Class III status to a Class II status targeting the following wetland classifications: forested swamps, sedge meadows, shrub swamps, wet floodplain forests, wet prairies, and wet sand prairies.

WHEREAS, this classification change would allow Class II wetlands to be destroyed, for many class II wetlands development on the wetland doesn't even require a permit.

WHEREAS, the past few years have been devastating for Indiana's remaining wetlands and we must protect these natural beauties for future generations.

WHEREAS, wetlands provide the following benefits to Hoosiers and residents in West Lafayette:

1) Save taxpayers money on stormwater infrastructure;
2) Purify water and remove pollutants; and
3) Store billions of tons of climate-polluting carbon dioxide.

WHEREAS, according to the Purdue Climate Change Research Center's Indiana Climate Change Impacts Assessment released on May 15, 2018, spending on wildlife-related relation (e.g. hunting, fishing, birding) brings in about $1.7 billion per year. HB 1383 threatens this impact on our community. (*See* https://ag.purdue.edu/indianaclimate/forest-ecosystems-report/).

WHEREAS, the City of West Lafayette has long demonstrated its leadership in dedication to protecting the environment and continues to do so in hopes of preserving wetlands like the Celery Bog for future generations.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF WEST LAFAYETTE, INDIANA COMMON COUNCIL, AS FOLLOWS:

The City of West Lafayette acknowledges the emotional, recreational and economic benefits that wetlands bring to its citizens.

The City of West Lafayette expresses its disapproval of HB 1383 and urges state leaders to vote against it.

INTRODUCED ON FIRST AND ONLY READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____, AND SECONDED BY COUNCILOR _____.

DULY RESOLVED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____, 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

	AYE	NAY	ABSENT	ABSTAIN
Bellisario				
Blanco				
Burr				
Dennis				
Lee				
Leverenz				
Parker				
Sanders				
Veidemanis				

_____
Kathy Parker, Presiding Officer

Attest:

_____
Nichole A. Foster, First Deputy Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____, 2024.

_____
Nichole A. Foster, First Deputy Clerk

THIS RESOLUTION APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____, 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Nichole A. Foster, First Deputy Clerk

Submitted by Department of Development

RESOLUTION NO. 03-2024 (Amended)

A RESOLUTION REAPPROPRIATING THE NECESSARY FUNDS RESULTING FROM THE 2019 COMMUNITY DEVELOPMENT APPLICATION OF THE CITY OF WEST LAFAYETTE UNDER TITLE I OF THE HOUSING AND COMMUNITY DEVELOPMENT ACT OF 1974, AS AMENDED

WHEREAS, the City of West Lafayette did apply for funding under Title I of the Housing and Community Development Act of 1974, as amended, and the regulations set forth in title 24 of the Code of Federal Regulations as an entitlement city, and

WHEREAS, the applications for these funds were filed with the U. S. Department of Housing and Urban Development following authorization granted to the Mayor of the City of West Lafayette by City of West Lafayette Resolution No. 05-19 and is contingent on the Department of Housing and Urban Development's review and

WHEREAS, the previous appropriation was approved by the Mayor of the City of West Lafayette and the City of West Lafayette City Council Resolution No. 16-23 and is contingent of the Department of Housing Urban Development's review and

WHEREAS, this application will be approved by the U. S. Department of Housing and Urban Development.

NOW THEREFORE, BE IT RESOLVED by the Common Council of the City of West Lafayette, Indiana, that the 2019 Community Development Block Grant funds as filed with the Department of Housing and Urban Development are hereby reappropriated, as follows:

Community Development – 2019 Budget

		Current	Proposed	Changed
General Program Administration	28601019	$0		$0
Public Facility Improvements (City Bus)	28605019	$60,000	($60,000)	$0
Housing Rehabilitation	28604119	$8,000		$8,000
Engineering Curb & Sidewalk	28603119	$0		$0
Public Services	28602019	$93,945	$60,000	$153,945
Small Business Stabilization Fund		$264,355		$264,355
	Total	$426,300	$0	$426,300

INTRODUCED ON FIRST AND ONLY READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____, AND SECONDED BY COUNCILOR _____.

DULY RESOLVED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____, 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

	AYE	NAY	ABSENT	ABSTAIN
Bellisario				
Blanco				
Burr				
Dennis				
Lee				
Leverenz				
Parker				
Sanders				
Veidemanis				

_____
Kathy Parker, Presiding Officer

Attest:

_____
Nichole A. Foster, First Deputy Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____, 2024.

_____
Nichole A. Foster, First Deputy Clerk

THIS RESOLUTION APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____, 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Nichole A. Foster, First Deputy Clerk

CERTIFIED:

_____
Nichole A. Foster, First Deputy Clerk

Motion by Council Member:

_____

Seconded by Council Member:

_____

EXAMINED AND APPROVED:

_____
Corporation Counsel

Submitted by Department of Development

RESOLUTION NO. 03-2024

A RESOLUTION REAPPROPRIATING THE NECESSARY FUNDS RESULTING FROM THE 2019 COMMUNITY DEVELOPMENT APPLICATION OF THE CITY OF WEST LAFAYETTE UNDER TITLE I OF THE HOUSING AND COMMUNITY DEVELOPMENT ACT OF 1974, AS AMENDED

WHEREAS, the City of West Lafayette did apply for funding under Title I of the Housing and Community Development Act of 1974, as amended, and the regulations set forth in title 24 of the Code of Federal Regulations as an entitlement city, and

WHEREAS, the applications for these funds were filed with the U. S. Department of Housing and Urban Development following authorization granted to the Mayor of the City of West Lafayette by City of West Lafayette Resolution No. 05-19 and is contingent on the Department of Housing and Urban Development's review and

WHEREAS, the previous appropriation was approved by the Mayor of the City of West Lafayette and the City of West Lafayette City Council Resolution No. 16-23 and is contingent of the Department of Housing Urban Development's review and

WHEREAS, this application will be approved by the U. S. Department of Housing and Urban Development.

NOW THEREFORE, BE IT RESOLVED by the Common Council of the City of West Lafayette, Indiana, that the 2019 Community Development Block Grant funds as filed with the Department of Housing and Urban Development are hereby reappropriated, as follows:

Community Development – 2019 Budget

		Current	Proposed	Changed
General Program Administration	28601019	$0		$0
Public Facility Improvements (City Bus)	28605019	$60,000	(-$60,000)	$0
Housing Rehabilitation	28604119	$8,000		$8,000
Engineering Curb & Sidewalk	28603119	$0		$0
Public Services	28602019	$93,945	(+$60,000)	$153,945
Small Business Stabilization Fund		$264,355		$264,355
	Total	$426,300	$426,300	$426,300

INTRODUCED ON FIRST AND ONLY READING ON THE _____ DAY OF _____, 2024.

MOTION TO ADOPT MADE BY COUNCILOR _____, AND SECONDED BY COUNCILOR _____.

DULY RESOLVED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____, 2024, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

	AYE	NAY	ABSENT	ABSTAIN
Bellisario				
Blanco				
Burr				
Dennis				
Lee				
Leverenz				
Parker				
Sanders				
Veidemanis				

_____
Kathy Parker, Presiding Officer

Attest:

_____
Nichole A. Foster, First Deputy Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____, 2024.

_____
Nichole A. Foster, First Deputy Clerk

THIS RESOLUTION APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____, 2024.

_____
Erin R. Easter, Mayor

Attest:

_____
Nichole A. Foster, First Deputy Clerk

CERTIFIED:

_____
Nichole A. Foster, First Deputy Clerk

Motion by Council Member:

_____

Seconded by Council Member:

_____

EXAMINED AND APPROVED:

_____
Corporation Counsel

APPLICATION FORM
CITY OF WEST LAFAYETTE BOARDS AND COMMISSIONS

Please use this form to express your interest in serving on a particular board or commission. You may attach additional material if you wish. Please note that applications are kept on file for eighteen months. The City of West Lafayette makes appointments to City Boards and Commissions at their regular meetings as vacancies occur. Completed applications are public documents and are subject to public records request. Please only provide information you are comfortable sharing. If you prefer not to provide all contact information publicly, please supply it separately for internal use. Some boards/commissions have additional requirements. The City will follow up if necessary. To learn more and to find a complete list of boards/commissions visit: westlafayette.in.gov/boards/

General Questions:

Have you been a City resident for at least 12 months? ☑ Yes ☐ No
Are you currently in default to the City of West Lafayette? ☐ Yes ☑ No
Are you related to any City of West Lafayette public official (including by marriage)? ☐ Yes ☑ No
Do you have any pending litigation against the City? ☐ Yes ☑ No
Are you a convicted felon of a violent crime? ☐ Yes ☑ No

Name of City Board or Commission: If applying for more than one board/commission, please list order of preference:

1.) Redevelopment Commission

2.)

3.)

Applicant Name: Arnold Chen
Home Address: 818 Sparta Street
Occupation: Professor
Business Address:
Email Address: arnold_chen@hotmail.com

Phone: 510-390-1042
Business: Purdue University
Phone: 765-494-9404

Are you currently serving or have you served on any municipal/local government board or commissions? If so, please list the location and provide approximate dates:

none

Please answer each question in as much detail as possible

Education/Credentials:

Graduate of West Lafayette High School!
Bachelors of Science - Purdue University - Electrical Engineering
Masters of Science - University of Illinois - Electrical and Computer

Professional activities that relate to this board(s)/commission(s):

Managing Director of the Burton D. Morgan Center for Entrepreneurship at Purdue University 2017-2024
Various leadership positions at several Silicon Valley startups (1998-2015)

Community activities that relate to this board(s)/commission(s):

None

Why are you interested in serving on this board(s)/commission(s)?

Like many in the community, I grew up in West Lafayette in 70's and 80's. I ended up in California for my first job and spent almost 20 years out west. In 2015 my wife and two kids decided to relocate back to West Lafayette to

What talents or experience would you bring to the board(s)/commission(s)?

In my role as the managing director of Purdue's Center for Entrepreneurship, I utilized various skills, including building relationships, coaching early-stage startup companies, and analyzing business models. My startup experience in

Any other comments or information you wish to provide to the mayor and the City Commissioners?

Are you involved in any personal, professional or business pursuit that would affect your ability to make fair and impartial recommendations as a member of a City advisory board or commission? ☐ Yes ☑ No

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Appointed members are expected to attend all meetings. A member who misses more than three (3) consecutive unexcused meetings or 1/3 of all meetings will resign to the board/commission chair. Are you aware of the meeting schedule and are you available to attend regularly scheduled meetings? ☑ Yes ☐ No

Signature Arnold Digitally signed by Arnold Date: 2024.01.24 14:21:11 -05'00' Date 1/24/2024

I certify that there are no misrepresentations, omissions or falsification on this application and by signing this application I give consent to the City to conduct a background check to verify the information I have provided.

Please return this form with any attachments to: clerk@westlafayette.in.gov; or mail to: City Clerk City of West Lafayette, 222 N. Chauncey Avenue, West Lafayette, IN 47906.

Thank you for your interest in serving as a volunteer board or commission member. Your willingness to serve is greatly appreciated.